Furniture Manual

Heartland BioWorks HQ

INDIANAPOLIS, INDIANA

OWNER:
HEARTLAND BIOWORKS
INDIANAPOLIS, INDIANA

APPLIED RESEARCH INSTITUTE
INDIANAPOLIS INDIANA

ARCHITECT:
RATIO Design

RATIO

RATIO PROJECT NO. 24317.000
EDA AWARD NO. ED25HDQ0G0089

11/02/2026

ISSUED FOR BID

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SECTION 000100 – INSTRUCTIONS TO BIDDERS

PART 1 - GENERAL

1.1 INSTRUCTIONS TO BIDDERS

A. The instructions to Bidders for this Project are contained in AIA Document A701 – 2018, Instructions to Bidders, (2018 Edition – Electronic Format), with certain modifications incorporated directly into the Document.

B. A sample copy of the AIA Document A701 – 2018 is attached to this section.

1.2 SUPPLEMENTARY INSTRUCTIONS TO BIDDERS

A. Refer to Division 00 Section "Supplementary Instructions to Bidders" for additional modifications to the Instructions to Bidders beyond those incorporated directly into ***Section 000100 – Instructions to Bidders.***

PART 2 – PRODUCTS (NOT USED)

PART 3 – EXECUTION (NOT USED)

END OF SECTION 000100

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AIA® Document A701™ – 2018

Instructions to Bidders

for the following Project:
(Name, location, and detailed description)

THE OWNER:
(Name, legal status, address, and other information)

THE ARCHITECT:
(Name, legal status, address, and other information)

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ADDITIONS AND DELETIONS: The author of this document has added information needed for its completion. The author may also have revised the text of the original AIA standard form. An *Additions and Deletions Report* that notes added information as well as revisions to the standard form text is available from the author and should be reviewed.

This document has important legal consequences. Consultation with an attorney is encouraged with respect to its completion or modification.

FEDERAL, STATE, AND LOCAL LAWS MAY IMPOSE REQUIREMENTS ON PUBLIC PROCUREMENT CONTRACTS. CONSULT LOCAL AUTHORITIES OR AN ATTORNEY TO VERIFY REQUIREMENTS APPLICABLE TO THIS PROCUREMENT BEFORE COMPLETING THIS FORM.

It is intended that AIA Document G612™–2017, Owner's Instructions to the Architect, Parts A and B will be completed prior to using this document.

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ARTICLE 1 DEFINITIONS

§ 1.1 Bidding Documents include the Bidding Requirements and the Proposed Contract Documents. The Bidding Requirements consist of the advertisement or invitation to bid, Instructions to Bidders, supplementary instructions to bidders, the bid form, and any other bidding forms. The Proposed Contract Documents consist of the unexecuted form of Agreement between the Owner and Contractor and that Agreement's Exhibits, Conditions of the Contract (General, Supplementary and other Conditions), Drawings, Specifications, all Addenda, and all other documents enumerated in Article 8 of these Instructions.

§ 1.2 Definitions set forth in the General Conditions of the Contract for Construction, or in other Proposed Contract Documents apply to the Bidding Documents.

§ 1.3 Addenda are written or graphic instruments issued by the Architect, which, by additions, deletions, clarifications, or corrections, modify or interpret the Bidding Documents.

§ 1.4 A Bid is a complete and properly executed proposal to do the Work for the sums stipulated therein, submitted in accordance with the Bidding Documents.

§ 1.5 The Base Bid is the sum stated in the Bid for which the Bidder offers to perform the Work described in the Bidding Documents, to which Work may be added or deleted by sums stated in Alternate Bids.

§ 1.6 An Alternate Bid (or Alternate) is an amount stated in the Bid to be added to or deducted from, or that does not change, the Base Bid if the corresponding change in the Work, as described in the Bidding Documents, is accepted.

§ 1.7 A Unit Price is an amount stated in the Bid as a price per unit of measurement for materials, equipment, or services, or a portion of the Work, as described in the Bidding Documents.

§ 1.8 A Bidder is a person or entity who submits a Bid and who meets the requirements set forth in the Bidding Documents.

§ 1.9 A Sub-bidder is a person or entity who submits a bid to a Bidder for materials, equipment, or labor for a portion of the Work.

ARTICLE 2 BIDDER'S REPRESENTATIONS

§ 2.1 By submitting a Bid, the Bidder represents that:

- **.1** the Bidder has read and understands the Bidding Documents;
- **.2** the Bidder understands how the Bidding Documents relate to other portions of the Project, if any, being bid concurrently or presently under construction;
- **.3** the Bid complies with the Bidding Documents;
- **.4** the Bidder has visited the site, become familiar with local conditions under which the Work is to be performed, and has correlated the Bidder's observations with the requirements of the Proposed Contract Documents. Bidder shall assume the responsibility, on behalf of his sub-bidders and materials suppliers, for obtaining and verifying all measurements and their accuracy at the Project site which are applicable to any and all materials and labor to be furnished by them or furnished to others for installation. No request for additional compensation, or omission of work from the Contract which is due to failure of the Bidder in this regard, if ultimately awarded such, will be considered;
- **.5** the Bid is based upon the materials, equipment, and systems required by the Bidding Documents without exception; and
- **.6** the Bidder has read and understands the provisions for liquidated damages, if any, set forth in the form of Agreement between the Owner and Contractor.
- **.7** the Bidder has included within his bid all funding for building permit fees, and all related fees necessary for construction of the Project that would be paid to local jurisdictions and utility companies.

ARTICLE 3 BIDDING DOCUMENTS

§ 3.1 Distribution

§ 3.1.1 Bidders shall obtain complete Bidding Documents, as indicated below, from the issuing office designated in the advertisement or invitation to bid, for the deposit sum, if any, stated therein.

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(Indicate how, such as by email, website, host site/platform, paper copy, or other method Bidders shall obtain Bidding Documents.)

«Bidders may obtain complete sets of electronic copies of the Bid Documents through RATIO Architects, LLC. »

§ 3.1.2 Any required deposit shall be refunded to Bidders who submit a bona fide Bid and return the paper Bidding Documents in good condition within ten days after receipt of Bids. The cost to replace missing or damaged paper documents will be deducted from the deposit. A Bidder receiving a Contract award may retain the paper Bidding Documents, and the Bidder's deposit will be refunded.

§ 3.1.3 Bidders shall use complete sets of Bidding Documents in preparing Bids. Neither the Owner, Architect, nor Construction Manager assumes responsibility for errors or misinterpretations resulting from the use of incomplete sets of Bidding Documents.

§ 3.1.4 The Owner, Architect, and Construction Manager may make copies of the Bidding Documents available on the above terms for the purpose of obtaining Bids on the Work. No license or grant of use is conferred by issuance of copies of the Bidding Documents.

§ 3.1.5 The Bidding Documents will be available for the sole purpose of obtaining Bids on the Work. No license or grant of use is conferred by distribution of the Bidding Documents.

§ 3.2 Modification or Interpretation of Bidding Documents

§ 3.2.1 The Bidder shall carefully study the Bidding Documents, shall examine the site and local conditions, and shall notify the Architect of errors, inconsistencies, or ambiguities discovered and request clarification or interpretation pursuant to Section 3.2.2.

§ 3.2.2 Requests for clarification or interpretation of the Bidding Documents shall be submitted by the Bidder in writing and shall be received by the Architect according to timeline provided in the Invitation to Bid, and prior to the date for receipt of Bids. The Architect shall reasonably respond to such request. However, neither the Architect nor the Owner shall have responsibility or liability for failure to respond.
(Indicate how, such as by email, website, host site/platform, paper copy, or other method Bidders shall submit requests for clarification and interpretation.)

«Bidder shall submit requests for clarification by email to the addresses provided in the Invitation to Bid. »

§ 3.2.3 Modifications and interpretations of the Bidding Documents shall be made by Addendum. Modifications and interpretations of the Bidding Documents made in any other manner shall not be binding, and Bidders shall not rely upon them.

§ 3.3 Substitutions

§ 3.3.1 The materials, products, and equipment described in the Bidding Documents establish a standard of required function, dimension, appearance, and quality to be met by any proposed substitution.

§ 3.3.2 Substitution Process

§ 3.3.2.1 Written requests for substitutions shall be received by the Architect as outlined in the Invitation to Bid, and prior to the date for receipt of Bids. Requests shall be submitted in the same manner as that established for submitting clarifications and interpretations in Section 3.2.2.

§ 3.3.2.2 Bidders shall submit substitution requests on a Substitution Request Form if one is provided in the Bidding Documents.

§ 3.3.2.3 If a Substitution Request Form is not provided, requests shall include (1) the name of the product, material, or equipment specified in the Bidding Documents; (2) the reason for the requested substitution; (3) a complete description of the proposed substitution including the name of the material or equipment proposed as the substitute, performance and test data, and relevant drawings, details, finishes; and (4) any other information necessary for an evaluation. The request shall include a statement setting forth changes in other materials, equipment, or other portions of the Work, including changes in the work of other contracts or the impact on any Project Certifications (such as LEED), that will result from incorporation of the proposed substitution.

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§ 3.3.3 The burden of proof of the merit of the proposed substitution is upon the proposer. The Architect's decision of approval or disapproval of a proposed substitution shall be final.

§ 3.3.4 If the Architect approves a proposed substitution prior to receipt of Bids, such approval shall be set forth in an Addendum. Approvals made in any other manner shall not be binding, and Bidders shall not rely upon them.

§ 3.3.5 No substitutions will be considered after the Contract award unless specifically provided for in the Contract Documents.

§ 3.3.6 The phrase "or an approved equal" within the Contract Documents means a material or product for which a request for approval has been submitted as required by Paragraph 3.3.2.3 above and for which the Architect's/Engineer's approval has been granted prior to receipt of bids.

§ 3.4 Addenda

§ 3.4.1 Addenda will be transmitted to Bidders known by the issuing office to have received complete Bidding Documents. Addenda will be issued by email.
(Indicate how, such as by email, website, host site/platform, paper copy, or other method Addenda will be transmitted.)

«All addenda will be issued by email. »

§ 3.4.2 Addenda will be available where Bidding Documents are on file.

§ 3.4.3 Prior to submitting a Bid, each Bidder shall ascertain that the Bidder has received all Addenda issued, and the Bidder shall acknowledge their receipt in the Bid.

ARTICLE 4 BIDDING PROCEDURES

§ 4.1 Preparation of Bids

§ 4.1.1 Bids shall be submitted on the forms included with or identified in the Bidding Documents.

§ 4.1.2 All blanks on the bid form, including signatures, shall be legibly executed. Paper bid forms shall be executed in a non-erasable medium.

§ 4.1.3 Sums shall be expressed in both words and numbers, unless noted otherwise on the bid form. In case of discrepancy, the amount entered in words shall govern.

§ 4.1.4 Edits to entries made on paper bid forms will be grounds for rejection of the Bid. Bids shall contain no recapitulation of the work to be done.

§ 4.1.5 All requested Alternates shall be bid. If no change in the Base Bid is required, enter "No Change" or as required by the bid form.

§ 4.1.6 Where two or more Bids for designated portions of the Work have been requested, the Bidder may, without forfeiture of the bid security, state the Bidder's refusal to accept award of less than the combination of Bids stipulated by the Bidder. The Bidder shall neither make additional stipulations on the bid form nor qualify the Bid in any other manner.

§ 4.1.7 Each copy of the Bid shall state the legal name and legal status of the Bidder. As part of the documentation submitted with the Bid, the Bidder shall provide evidence of its legal authority to perform the Work in the jurisdiction where the Project is located. Each copy of the Bid shall be signed by the person or persons legally authorized to bind the Bidder to a contract. A Bid by a corporation shall further name the state of incorporation and have the corporate seal affixed. A Bid submitted by an agent shall have a current power of attorney attached, certifying the agent's authority to bind the Bidder.

§ 4.1.8 A Bidder shall incur all costs associated with the preparation of its Bid.

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§ 4.3 Submission of Bids
§ 4.3.1 All copies of the Bid, the bid security, if any, and any other documents required to be submitted with the Bid shall be submitted electronically. Bids shall be identified with the Project Name, the Bidder's name and address and, Release Number for which the Bid is submitted. Bidder shall include all requirements as outlined in Section 001116 Invitation to Bid.
:
(Indicate how, such as by website, host site/platform, paper copy, or other method Bidders shall submit their Bid.)
Electronic Bids shall be submitted by email to the addresses provided in the Invitation to Bid.

§ 4.3.1.4 Faxed proposals will not be accepted unless specifically indicated in Notice to Bidders or Bid Form.

4.3.1.5 Document 0 Section – "Subcontractor and Material List" shall be submitted in duplicated separately to the Architect to address specified, within two, (2), working days of Bid date and time if requested.»

§ 4.3.2 Paper copies of the Bid, the bid security, and any other documents required to be submitted with the Bid shall be submitted electronically via email.

§ 4.3.3 Bids shall be submitted by the date and time and at the place indicated in the invitation to bid. Bids submitted after the date and time for receipt of Bids, or at an incorrect place, will not be accepted.

§ 4.3.4 The Bidder shall assume full responsibility for timely delivery at the location designated for receipt of Bids.

§ 4.3.5 A Bid submitted by any method other than as provided in this Section 4.3 will not be accepted.

§ 4.4 Modification or Withdrawal of Bid
§ 4.4.1 Prior to the date and time designated for receipt of Bids, a Bidder may submit a new Bid to replace a Bid previously submitted, or withdraw its Bid entirely, by notice to the party designated to receive the Bids. Such notice shall be received and duly recorded by the receiving party on or before the date and time set for receipt of Bids. The receiving party shall verify that replaced or withdrawn Bids are removed from the other submitted Bids and not considered. Notice of submission of a replacement Bid or withdrawal of a Bid shall be worded so as not to reveal the amount of the original Bid.

§ 4.4.1 The stipulated time period after receipt of bids, referred to in Paragraph 4.4.1, during which a Bid may not be modified, withdrawn, or canceled shall be sixty (60) days.

§ 4.4.2 Withdrawn Bids shall not be resubmitted.

§ 4.4.3 After the date and time designated for receipt of Bids, a Bidder who discovers that it made a clerical error in its Bid shall notify the Architect of such error within two days, or pursuant to a timeframe specified by the law of the jurisdiction where the Project is located, requesting withdrawal of its Bid. Upon providing evidence of such error to the reasonable satisfaction of the Architect, the Bid shall be withdrawn and not resubmitted. If a Bid is withdrawn pursuant to this Section 4.4.3, the bid security will be attended to as follows:
(State the terms and conditions, such as Bid rank, for returning or retaining the bid security.)
« »
§4.5 Supplemental Information to be Submitted with Bid
§4.5.1 Each Bidder shall submit with his Bid a list of projects similar in type, size and complexity, that his company has completed within the last 5 years. This list shall include: project name; size of project in square feet; final project cost; date project was completed; name of Owner, Architects, General Contractor, if the Bidder was not the General Contractor; and telephone numbers and names of persons to contact for each entity.

ARTICLE 5 CONSIDERATION OF BIDS
§ 5.1 Opening of Bids
At the discretion of the Owner, properly identified Bids received on time will be privately opened.

§ 5.2 Rejection of Bids
Unless otherwise prohibited by law, the Owner shall have the right to reject any or all Bids.

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§ 5.2.1 A bid by a Bidder who contacts an Owner staff member, or who sends or distributes any promotional item or materials to an Owner staff member from the time Bidding Documents are available and bids are accepted until the time a Contract is awarded may be subject to rejection.

§ 5.3 Acceptance of Bid (Award)

§ 5.3.1 It is the intent of the Owner to award a Contract to the lowest responsive and responsible Bidder, provided the Bid has been submitted in accordance with the requirements of the Bidding Documents. Unless otherwise prohibited by law, the Owner shall have the right to waive informalities and irregularities in a Bid received and to accept the Bid which, in the Owner's judgment, is in the Owner's best interests.

§ 5.3.2 Unless otherwise prohibited by law, the Owner shall have the right to accept Alternates in any order or combination, unless otherwise specifically provided in the Bidding Documents, and to determine the lowest responsive and responsible Bidder on the basis of the sum of the Base Bid and Alternates accepted.

- **.1** The Owner shall have the option, exercisable within sixty (60) calendar days after execution of the Contract, of including or excluding the work required by any alternate proposal, for the sum or sums established for said Alternate Bid.
- **.2** The Owner shall have the option, exercisable within sixty (60) calendar days after execution of the Contract, to accept any or all of the Alternate proposals for the sum or sums established for said Alternates in the Bid. Acceptance of such Alternate proposals after execution of the Contract shall not change the Contract Time for the Work as stated in the Contract, except as specifically noted in the Alternate proposal.
- **.3** Alternate proposals not accepted by the Owner within the specified sixty (60) day period will automatically expire, unless extended in writing by the Owner.
- **.4** Alternate proposals accepted after execution of the Contract shall be incorporated into the Contract by Change Order.

§ 5.3.3 In determining the lowest responsive and responsible Bidder, the Owner shall consider the following:

- **.1** Whether the Bidder has submitted a bid that conforms to all material aspects of the Bidding Documents;
- **.2** Whether the Bidder has submitted a bid that specifically complies with the Notice to Bidders and Instructions to Bidders;
- **.3** Whether the Bidder has complied with all applicable laws, statutes, ordinances, resolutions, rules and regulations pertaining to Award of the Contract;
- **.4** The Bidder's ability and capacity to perform the Work with appropriate facilities and employees;
- **.5** The Bidder's integrity, character and reputation; and
- **.6** The Bidder's competence and experience completing work similar to work of this Project with a record of successful in-service performance.

§ 5.3.4 In order to facilitate evaluation of the Bids, the Owner may contact apparent low Bidders after receipt of Bids to discuss the proposals, time schedules, and proposed subcontractors and materials upon which Bids are based. In the event that Bidders would ultimately be awarded a Contract, result of such discussions will be incorporated into a Pre-Award Memorandum which will become a part of the Contract Documents.

ARTICLE 6 POST-BID INFORMATION

§ 6.1 Contractor's Qualification Statement

Bidders to whom award of a Contract is under consideration shall submit to the Architect, upon request and within the timeframe specified by the Architect, a properly executed AIA Document A305™, Contractor's Qualification Statement, unless such a Statement has been previously required and submitted for this Bid.

§ 6.2 Owner's Financial Capability

A Bidder to whom award of a Contract is under consideration may request in writing, fourteen days prior to the expiration of the time for withdrawal of Bids, that the Owner furnish to the Bidder reasonable evidence that financial arrangements have been made to fulfill the Owner's obligations under the Contract. The Owner shall then furnish such reasonable evidence to the Bidder no later than seven days prior to the expiration of the time for withdrawal of Bids. Unless such reasonable evidence is furnished within the allotted time, the Bidder will not be required to execute the Agreement between the Owner and Contractor.

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§ 6.3 Submittals

§ 6.3.1 Unless required to be submitted with the Bid, the Bidder shall furnish in writing, to the Owner through the Architect, within two (2) working days of receiving a request, the following:

.1 a designation of the Work to be performed with the Bidder's own forces;

.2 names of the principal products and systems proposed for the Work and the manufacturers and suppliers of each; and

.3 names of persons or entities (including those who are to furnish materials or equipment fabricated to a special design) proposed for the principal portions of the Work.

.4 upon request of the Architect or Owner, the selected Bidder(s), shall within seven (7) days thereafter, submit the following:

A. cost breakdown showing the costs for each major item of work included in the Bid.

§ 6.3.2 The Bidder will be required to establish to the satisfaction of the Architect and Owner the reliability and responsibility of the persons or entities proposed to furnish and perform the Work described in the Bidding Documents.

§ 6.3.3 Prior to the execution of the Contract, the Architect will notify the Bidder if either the Owner or Architect, after due investigation, has reasonable objection to a person or entity proposed by the Bidder. If the Owner or Architect has reasonable objection to a proposed person or entity, the Bidder may, at the Bidder's option, withdraw the Bid or submit an acceptable substitute person or entity.

§ 6.3.4 Persons and entities proposed by the Bidder and to whom the Owner and Architect have made no reasonable objection must be used on the Work for which they were proposed and shall not be changed except with the written consent of the Owner and Architect.

ARTICLE 7 MISCELLANEOUS PROVISIONS

§ 7.1 Bidder Questions

§ 7.1.1 Submit all questions about the Drawings and Project Manual electronically to dmcnutt@ratiodesign.com. Replies will be issued to all Bidders in the form of written Addenda to the Drawings and Project Manual and will become part of the Contract Documents. The Architect and Owner will not make, nor be responsible for, oral replies. Questions received less than ten (10) calendar days before the bid opening cannot be answered.

« »

§ 7.2 Governing Laws and Regulations

§ 7.2.1 Codes and Standards:

.1 International Building Code, latest edition, with Indiana Amendments, latest edition.

.2 NFPA 101, latest edition.

ARTICLE 8 ENUMERATION OF THE PROPOSED CONTRACT DOCUMENTS

§ 8.1 Copies of the proposed Contract Documents have been made available to the Bidder and consist of the following documents:

.1 Section 005300 Standard AIA – A151-219 Standard Form of Agreement between Owner and Vendor for Furniture, Furnishings, and Equipment (FF&E), and all Exhibits contained within.

« »

.2 Section 004200: Proposal Form

.3 Section 012201: Unit Price Schedules

.5 Drawings

Number	Title	Date
«»		

.6 Specifications

Section	Title	Date	Pages
« »			

.7 Addenda:

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Number	Date	Pages
« »		

.8 Other Exhibits:

(Check all boxes that apply and include appropriate information identifying the exhibit where required.)

[« »] AIA Document E204™–2017, Sustainable Projects Exhibit, dated as indicated below:
(Insert the date of the E204-2017.)
« »

[« »] The Sustainability Plan:

Title	Date	Pages
« »		

[« »] Supplementary and other Conditions of the Contract:

Document	Title	Date	Pages
« »			

.9 Other documents listed below:

(List here any additional documents that are intended to form part of the Proposed Contract Documents.)

« »

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DOCUMENT 001116 - INVITATION TO BID

1.1 PROJECT INFORMATION

A. Notice to Bidders: Prequalified bidders are invited to submit bids for Project as described in this Document according to the Instructions to Bidders.

B. Project Identification: Heartland Bioworks HQ

1. Project Location: 1200 Indiana Avenue, Indianapolis IN 46202.

C. Owner: Applied Research Institute
1. Owner's Technical Representative: Kate Luken-Warpool, JS Held, Kate.Warpool@jsheld.com.

D. Architect: RATIO Design.
1. Architect's Representative: Dana McNutt, dmcnutt@ratiodesign.com.

E. Project Description: Project consists of procurement and installation of furniture for building consisting of offices, training labs, conference rooms, specialty spaces, and various support spaces.
1. Project Background: The Regional Tech Hubs program is a federal program created through the CHIPS+Science Act and managed by the U.S. Economic Development Administration (EDA) within the U.S. Department of Commerce, to foster innovation, increase domestic manufacturing, create local jobs, and drive regional economic growth. In 2024, Heartland BioWorks was one of only 31 to receive designations as a Hub, and one of only 18 to receive implementation funding. Led by the non-profit Applied Research Institute (ARI), this $51 million funding will be used to begin implementing the EDA's vision for Heartland BioWorks Hub.

The Heartland BioWorks facility will house resources needed to provide meaningful, relevant classroom and hands-on benchtop and pilot scale educational experiences to prepare trainees to enter the biomanufacturing workforce as well as upskilling opportunities for existing employees to advance their careers.

In addition, the facility will serve as the BioWorks Consortium headquarters, providing an accessible, dedicated location for industry, academia, government, and other relevant entities to meet, discuss, and drive activity in support and growth of the region's biomanufacturing ecosystem.

F. Furniture Contract: Bids will be received for the following Work:
1. Single Package consisting of the following prime contract:
a. Ancillary Package: Lounge, Conference/Meeting
b. Systems Package: Open Office Workstation Typicals, Enclosed Offices, Storage.

1.2 BID/RFP SUBMITTAL AND OPENING

A. Owner will receive electronic bids until the bid time and date at the location indicated below. Owner will consider bids prepared in compliance with the Instructions to Bidders issued by Owner, and delivered as follows:

1. Bid Due Date: **November 30, 2026**

2. Bid Time: **1:00 p.m.** local time.

3. Location: Bid packages shall be submitted electronically to the following addresses:
   a. Dana McNutt, dmcnutt@ratiodesign.com
   b. Diana Coram, dcoram@ratiodesign.com
   c. Kate Luken-Warpool, kate.warpool@jsheld.com

B. Bids will be thereafter **privately opened**.

1.3 BID QUESTIONS

A. Any questions or communications during the bid period may be submitted by 12:00pm (noon) on Wednesday, **October 15, 2026**. Questions submitted after the deadline will be responded to at the discretion of the Architect. All questions will be accepted in writing only, and directed to:
1. Dana McNutt, dmcnutt@ratiodesign.com
2. Diana Coram, dcoram@ratiodesign.com
3. Kate Luken-Warpool, kate.warpool@jsheld.com

B. All addenda will be issued via electronic mail.

1.4 BID SECURITY

A. Bid security shall be required. Each Proposal shall be accompanied by Bid Security in the form of a Bid Bond, certified check, cashier's check, or irrevocable letter of credit in an amount equal to five percent (5%) of the Proposer's Total Proposal Amount.

B. The Bid Security shall be made payable to Applied Research Institute, Inc. and shall serve as a guarantee that the Proposer, if selected for award, will execute the Contract and provide all required bonds, certificates of insurance, and other contract documents within ten (10) calendar days following Notice of Intent to Award.

C. The Bid Security of the successful Proposer shall be retained until execution of the Contract and acceptance of all required contract security. Bid Security submitted by unsuccessful Proposers will be returned in accordance with applicable procurement procedures.

D. Failure to provide the required Bid Security with the Proposal shall render the Proposal non-responsive and ineligible for consideration.

E. No bids may be withdrawn for a period of **60** days after opening of bids. Owner reserves the right to reject any and all bids and to waive informalities and irregularities.

1.5 PERFORMANCE BOND

A. The successful Proposer shall furnish a Performance Bond in the amount of one hundred percent (100%) of the Contract Value within ten (10) calendar days following receipt of Notice of Award.

B. The Performance Bond shall be issued by a surety company licensed to conduct business in the State of Indiana and acceptable to Applied Research Institute, Inc.

C. The Performance Bond shall guarantee the faithful performance of all Contract requirements, including, but not limited to:
1. Procurement and acquisition of specified furnishings, fixtures, and equipment;
2. Project management and coordination;
3. Warehousing and inventory management;
4. Delivery and installation;
5. Punch-list completion;
6. Warranty obligations; and
7. Correction of defective work and replacement of damaged products.

D. Failure to provide the required Performance Bond within the specified time may result in forfeiture of Bid Security and cancellation of the award, at the sole discretion of the Owner.

1.6 PAYMENT BOND

A. The successful Proposer shall furnish a Payment Bond in the amount of one hundred percent (100%) of the Contract Value.

B. The Payment Bond shall guarantee payment of all labor, materials, equipment, transportation, installation services, warehousing services, and other obligations incurred in the performance of the Contract.

C. The Payment Bond shall be issued by a surety licensed to conduct business in the State of Indiana and shall remain in effect until final acceptance of the Contract.

1.7 DOCUMENTS

A. Online Procurement and Contracting Documents: Online access will be provided to prime bidders only.

B. Bid Response Format: each bid response MUST include;

a. Proposal Form
b. Vendor Experience Questionnaire
c. Company/Project Information:
    1) Organizational Chart
        a) Include name of assigned project manager and number of years relative experience.
        b) Include name of assigned lead installer (who will be on site daily for the duration of the project) and number of years relative experience.
    2) Client Service Information
        a) Include the following schedules in vendor submission: procurement lead times, milestone deadlines, and proposed installation schedule based on the dates provided in this RFP.
    3) List of Similar Projects (Section 000120 A701-1997 Instructions to Bidders, Subparagraph 4.5.1)
    4) Sub-vendor and Supplier List: intention is to identify any subcontractors required to complete the work, or any vendors outside of vendors known as a part of the specifications as noted in the documents. Not intended as a summary of manufacturers already listed in the specifications.
d. Specifications: Detailed digital and written specifications showing that products match criteria of basis of design specification. Each component, dimension, and designated finish must be clearly described in a manner easily recognizable as to allow for review and comparison. Excel electronic file of the unit cost schedules are required.
e. Drawings: Plan views, 3D/Isometric, and rendered views of all systems workstation furniture and custom tables shall be provided to ensure materials and configurations are clearly understood. Dealer to provide detailed electrical wiring/routing diagrams indicating all wire management support and required connections to building power.
f. Unit Cost Schedules as provided in Section 012201: Cost Schedules and Summaries shall be submitted with the electronic bid document. Dealership shall submit the digital Microsoft Excel file provided in your package. Any questions on procedure for filling out form can also be directed to Dana McNutt.
    1) Provide bid based on prices per quantity defined in package.
    2) ***Discounting*** (not net cost) submitted to remain valid for an additional six (6) months after date owner has taken occupancy. Owner reserves the right to purchase additional specified items at any time during this period.
    3) Owner reserves the right to adjust quantities of specified items after bid award.
g. All line items within each package, are to be submitted to be considered a complete package.
h. It is the responsibility of the Bidder to verify that bids match specifications and furniture plans. Any discrepancies shall be brought to the immediate attention of the Architect.

i. All images of furniture on specifications are for reference only and are not always an indication of all product features. Related questions shall be submitted during the bid question period. Refer to Section 1.4, A.

j. No substitutions will be considered prior to receipt of Bids unless written request for approval has been received by the Architect as outlined in 1.4, A. Such requests shall include the name of the material or equipment for which it is to be substituted and a complete description of the proposed substitution including drawings, performance and test data, and other information necessary for an evaluation. A statement setting forth changes in other materials, equipment, or other portions of the Work, including changes in the work of other contracts that incorporation of the proposed substitution would require, shall be included. The burden of proof of the merit of the proposed substitution is upon the proposer. The Architect's decision of approval or disapproval of a proposed substitution shall be final.

1.8 TIME OF COMPLETION

A. Bidders shall begin the Work on receipt of the Notice to Proceed and shall complete the Work within the Contract Time.

1.9 BIDDER'S QUALIFICATIONS AND PROPOSAL PROCESS

A. The FF&E vendor must be selected in accordance with the procurement standards set forth in the 2CFR 200 and accordingly to EDA publication "Summary of EDA Construction Standards".

B. The FF&E vendor must be willing to comply with the standards set for the in the 2CFR 200, and accordingly to EDA publication "Summary of EDA Construction Standards".
   1. Process:
      a. Define written technical evaluation process
      b. EDA approval of solicitation process
      c. Public notification & RFP Release
      d. Host pre-RFP submission meeting
      e. Technical Evaluation
      f. Recommendation and Award
      g. Award and Contracting
   2. Technical Evaluation Criteria
      a. Experience with projects of similar nature and size.
      b. Specialized experience with classroom labs, biopharma manufacturing, and competence of proposed personnel assigned to this project.
      c. Capacity to accomplish the work in the required timeline provided.
      d. Past performance on contracts with Government agencies and the private industry in terms of cost control, quality of work, and compliance with performance schedules.
      e. Familiarity with the general geographic location.
      f. Fee (The proposed contract value will be divided by the score as a percentage to determine the best value. The lowest contract value will be selected.)

C. Bidders must be properly licensed under the laws governing their respective trades and be able to obtain insurance and bonds required for the Work.

END OF DOCUMENT 001116

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PART 1 - GENERAL

1.1 STATEMENT OF INTENT

A. The purpose of this Section is to describe forms required for the Project.

1.2 BIDDING DOCUMENTS

A. Forms to be submitted with each Bid to qualify for acceptance:

1. Exhibit A: Document Section 004200 “Proposal Form.”

   a. Form is provided in the Project Manual. Submit electronically.

2. Exhibit B: “Sub-Vendor and Supplier List.”

   a. Form is to be on Bidder’s Letter Head, at the time of submission of proposal and in the manner described in the instructions, provide a listing of the names of Sub-Vendors, persons, suppliers, or organizations proposed for the principal portions of the Work and for the materials in the Schedule. This is intended to clarify any sub-contractors to complete the work, or exceptions to the specified manufacturers, not to be a list of manufacturers providing product as a part of the specification manual.

3. Exhibit C: Document Section 01201 “Unit Price List.”

   a. Form is provided in the Project Manual and electronically for each package. The Bidder shall submit form, at the time of submission of the proposal. Form shall also be provided as an electronic and editable document.

4. Exhibit D: Document Section 013302 “Electronic Claims Waiver”.

   a. Form is provided at the end of Section 013301 Submittal Procedures. The Bidder shall submit form, before the time of submission of the proposal if Bidder would like access to electronic CAD format files for the project.

5. Exhibit E: Document Section 003100 “Information Available to Bidders”.

   a. Forms are provided at the end of Section 013301 Submittal Procedures. The Bidder shall submit forms, at the time of submission of the proposal.

      1) Appendix B – Form CD-512_Certification Regarding Lobbying

      2) Appendix C – Requirements for Affirmative Action (EEO)

      3) Appendix D – Vendor Experience Questionnaire

1.3 CONTRACT FORMS

A. Forms of contract to be entered into between the Owner and the Vendor (Contractor) are made a part of the Contract Documents by reference.

1. Standard AIA – A151-2019 Standard Form of Agreement between Owner and Vendor for Furniture, Furnishings, and Equipment (FF&E)

b. Forms of contract shall be furnished to the successful Bidder for purposes of executing the Contract in accordance with the Agreement and accompanying bid documents.

PART 2 – PRODUCTS (Not Used)

PART 3 – EXECUTION (Not Used)

END OF DOCUMENT 001030

(BLANK)

SECTION 003100 – INFORMATION AVAILABLE TO BIDDERS

PART 1 - GENERAL

1.1 RELATED DOCUMENTS

A. Drawings and general provisions of the Contract, including General and Supplementary Conditions and other Division 01 Specification Sections, apply to this Section.

1.2 RELATED DOCUMENTS

A. Appendix A - EDA Construction Provisions for Construction Projects

B. Appendix B – Lobbying Certification and Restriction Form (CD-512)

C. Appendix C – Requirements for Affirmative Action (EEO)

D. Appendix D – Vendor Experience Questionnaire.

END OF SECTION 003100

OMB Number: 0610-0096
Expiration Date: 01/31/2025

U. S. DEPARTMENT OF COMMERCE
ECONOMIC DEVELOPMENT ADMINISTRATION

EDA CONTRACTING PROVISIONS
FOR CONSTRUCTION PROJECTS

These EDA Contracting Provisions for Construction Projects (EDA Contracting Provisions) are intended for use by recipients receiving federal assistance from the U. S. Department of Commerce - Economic Development Administration (EDA). They contain provisions specific to EDA and other federal provisions not normally found in non-federal contract documents. The requirements contained herein must be incorporated into all construction contracts and subcontracts funded wholly or in part with federal assistance from EDA.

OMB Number: 0610-0096
Expiration Date: 01/31/2025

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1. DEFINITIONS

Agreement – The written instrument that is evidence of the agreement between the Owner and the Contractor overseeing the Work.

Architect/Engineer - The person or other entity engaged by the Recipient to perform architectural, engineering, design, and other services related to the work as provided for in the contract.

Contract – The entire and integrated written agreement between the Owner and the Contractor concerning the Work. The Contract supersedes prior negotiations, representations, or agreements, whether written or oral.

Contract Documents – Those items so designated in the Agreement. Only printed or hard copies of the items listed in the Agreement are Contract Documents.

Contractor – The individual or entity with whom the Owner has entered into the Agreement.

Drawings or Plans – That part of the Contract Documents prepared or approved by the Architect/Engineer that graphically shows the scope, extent, and character of the Work to be performed by the Contractor.

EDA - The United States of America acting through the Economic Development Administration of the U.S. Department of Commerce or any other person designated to act on its behalf. EDA has agreed to provide financial assistance to the Owner, which includes assistance in financing the Work to be performed under this Contract. Notwithstanding EDA's role, nothing in this Contract shall be construed to create any contractual relationship between the Contractor and EDA.

Owner – The individual or entity with whom the Contractor has entered into the Agreement and for whom the Work is to be performed.

Project – The total construction of which the Work to be performed under the Contract Documents may be the whole, or a part.

Recipient – A non-Federal entity receiving a Federal financial assistance award directly from EDA to carry out an activity under an EDA program, including any EDA-approved successor to the entity.

Specifications – That part of the Contract Documents consisting of written requirements for materials, equipment, systems, standards, and workmanship as applied to the Work, and certain administrative requirements and procedural matters applicable thereto.

Subcontractor – An individual or entity having direct contract with the Contractor or with any other Subcontractor for the performance of a part of the Work at the Site.

Work – The entire construction or the various separately identifiable parts thereof required to be provided under the Contract Documents. Work includes and is the result of performing or providing all labor, services, and documentation necessary to produce such construction and furnishing, installing, and incorporating all materials and equipment into such construction, all as required by the Contract Documents.

2. APPLICABILITY

The Project to which the construction work covered by this Contract pertains is being assisted by the United States of America through federal assistance provided by the U.S. Department of Commerce - Economic Development Administration (EDA). Neither EDA, nor any of its departments, entities, or employees is a party to this Contract. The following EDA Contracting Provisions are included in this Contract and all subcontracts or related instruments pursuant to the provisions applicable to such federal assistance from EDA.

3. FEDERALLY REQUIRED CONTRACT PROVISIONS

(a) All contracts in excess of the simplified acquisition threshold - currently fixed at $150,000 (*see* 41 U.S.C. §§ 134 and 1908) must address administrative, contractual, or legal remedies in instances where contractors violate or breach contract terms, and provide for such sanctions and penalties as may be appropriate.

(b) All contracts in excess of $10,000 must address termination for cause and for convenience by the Recipient including the manner by which it will be effected and the basis for settlement.

(c) All construction contracts awarded in excess of $10,000 by recipients of federal assistance and their contractors or subcontractors shall contain a provision requiring compliance with Executive Order 11246 of September 24, 1965, *Equal Employment Opportunity*, as amended by Executive Order 11375 of October 13, 1967, and Department of Labor implementing regulations at 41 C.F.R. part 60.

(d) All prime construction contracts in excess of $2,000 awarded by Recipients must include a provision for compliance with the Davis-Bacon Act (40 U.S.C. §§ 3141-3148) as supplemented by Department of Labor regulations at 29 C.F.R. part 5. The contracts must also include a provision for compliance with the Copeland "Anti-Kickback" Act (18 U.S.C. § 874 and 40 U.S.C. § 3145) as supplemented by Department of Labor regulations at 29 C.F.R. part 3.

(e) All contracts awarded by the Recipient in excess of $100,000 that involve the employment of mechanics or laborers must include a provision for compliance with 40 U.S.C. §§ 3702 and 3704 (the Contract Work Hours and Safety Standards Act) as supplemented by Department of Labor regulations at 29 C.F.R. part 5.

(f) All contracts must include EDA requirements and regulations that involve a requirement on the contractor or sub-contractor to report information to EDA, the Recipient or any other federal agency.

(g) All contracts must include EDA requirements and regulations pertaining to patent rights with respect to any discovery or invention which arises or is developed in the course of or under such contract.

(h) All contracts must include EDA requirements and regulations pertaining to copyrights and rights in data.

(i) All contracts and subgrants in excess of $150,000 must contain a provision that requires compliance with all applicable standards, orders, or requirements issued under the Clean Air Act (42 U.S.C. § 7401 *et seq.*) and the Federal Water Pollution Control Act (Clean Water Act) (33 U.S.C. § 1251 *et seq.*), and Executive Order 11738, *Providing for Administration of the Clean Air Act and the Federal Water Pollution Control Act With Respect to Federal Contracts, Grants, or Loans*.

(j) Contracts must contain mandatory standards and policies relating to energy efficiency which are contained in the state energy conservation plan issued in compliance with the Energy Policy and Conservation Act (42 U.S.C.§ 6201).

(k) Contracts must contain a provision ensuring that contracts are not to be made to parties on the government wide Excluded Parties List System in the System for Award Management (SAM), in accordance with the OMB guidelines at 2 C.F.R. part 180.

(l) Contracts must contain a provision ensure compliance with the Byrd Anti-Lobbying Amendment (31 U.S.C. § 1352) under which contractors that apply or bid for an award of $100,000 or more must file the required certification. Each tier certifies to the tier above that it will not and has not used Federal appropriated funds to pay any person or organization for influencing or attempting to influence an officer or employee of any agency, a member of Congress, officer or employee of Congress, or an employee of a member of Congress in connection with obtaining any Federal contract, grant or any other award covered by 31 U.S.C. § 1352. Each tier must also disclose any lobbying with non-Federal funds that takes place in connection with obtaining any Federal award. Such disclosures are forwarded from tier to tier up to the non-Federal award.

(m) If the Recipient is a state agency or agency of a political subdivision of a state, any contract awarded must contain a provision ensuring compliance with section 6002 of the Solid Waste Disposal Act (42 U.S.C. § 6962), as amended by the Resource Conservation and Recovery Act related to the procurement of recovered materials.

4. REQUIRED PROVISIONS DEEMED INSERTED

Each and every provision of law and clause required by law to be inserted in this contract shall be deemed to be inserted herein and the contract shall be read and enforced as though it were included herein, and if through mistake or otherwise any such provision is not inserted, or is not correctly inserted, then upon the application of either party the contract shall forthwith be physically amended to make such insertion of correction.

5. INSPECTION BY EDA REPRESENTATIVES

The authorized representatives and agents of EDA shall be permitted to inspect all work, materials, payrolls, personnel records, invoices of materials, and other relevant data and records.

6. EXAMINATION AND RETENTION OF CONTRACTOR'S RECORDS

(a) The Owner, EDA, or the Comptroller General of the United States, or any of their duly authorized representatives shall, generally until three years after final payment under this contract, have access to and the right to examine any of the Contractor's directly pertinent books, documents, papers, or other records involving transactions related to this contract for the purpose of making audit, examination, excerpts, and transcriptions.

(b) The Contractor agrees to include in first-tier subcontracts under this contract a clause substantially the same as paragraph (a) above. "Subcontract," as used in this clause, excludes purchase orders that do not exceed $10,000.

(c) The periods of access and examination in paragraphs (a) and (b) above for records relating to (1) appeals under the disputes clause of this contract, (2) litigation or settlement of claims arising from the performance of this contract, or (3) costs and expenses of this contract to which the Owner, EDA, or Comptroller General or any of their duly authorized representatives has taken exception shall continue until disposition of such appeals, litigation, claims, or exceptions.

7. CONSTRUCTION SCHEDULE AND PERIODIC ESTIMATES

Immediately after execution and delivery of the contract, and before the first partial payment is made, the Contractor shall deliver to the Owner an estimated construction progress schedule in a form satisfactory to the Owner, showing the proposed dates of commencement and completion of each of the various subdivisions of work required under the Contract Documents and the anticipated amount of each monthly payment that will become due to the Contractor in accordance with the progress schedule. The Contractor also shall furnish the Owner (a) a detailed estimate giving a complete breakdown of the contract price and (b) periodic itemized estimates of work done for the purpose of making partial payments thereon. The costs employed in making up any of these schedules will be used only to determine the basis of partial payments and will not be considered as fixing a basis for additions to or deductions from the contract price.

8. CONTRACTOR'S TITLE TO MATERIAL

No materials, supplies, or equipment for the work shall be purchased by the Contractor or by any subcontractor that is subject to any chattel mortgage or under a conditional sale contract or other agreement by which an interest is retained by the seller. The Contractor warrants and guarantees that he/she has good title to all work, materials, and equipment used by him/her in the Work, free and clear of all liens, claims, or encumbrances.

9. INSPECTION AND TESTING OF MATERIALS

All materials and equipment used in the completion of the Work shall be subject to adequate inspection and testing in accordance with accepted standards. The laboratory or inspection agency shall be selected by the Owner. Materials of construction, particularly those upon which the strength and durability of any structure may depend, shall be subject to inspection and testing to establish conformance with specifications and suitability for intended uses.

10. "OR EQUAL" CLAUSE

Whenever a material, article, or piece of equipment is identified in the Contract Documents by reference to manufacturers' or vendors' names, trade names, catalogue numbers, etc., it is intended merely to establish a standard. Any material, article, or equipment of other manufacturers and vendors that will perform adequately the duties imposed by the general design will be considered equally acceptable provided the material, article, or equipment so proposed is, in the opinion of the Architect/Engineer, of equal substance and function. However, such substitution material, article, or equipment shall not be purchased or installed by the Contractor without the Architect/Engineer's written approval.

11. PATENT FEES AND ROYALTIES

(a) Contractor shall pay all license fees and royalties and assume all costs incident to the use in the performance of the Work or the incorporation in the Work of any invention, design, process, product, or device that is the subject of patent rights or copyrights held by others. If a particular invention, design, process, product, or device is specified in the Contract Documents for use in the performance of the Work and if, to the actual knowledge of Owner or Architect/Engineer, its use is subject to patent rights or copyrights calling for the payment of any license fee or royalty to others, the existence of such rights shall be disclosed by the Owner in the Contract Documents.

(b) To the fullest extent permitted by Laws and Regulations, the Contractor shall indemnify and hold harmless the Owner and the Architect/Engineer, and the officers, directors, partners, employees, agents, consultants, and subcontractors of each and any of them from and against all claims, costs, losses, and damages (including but not limited to all fees and charges of engineers, architects, attorneys, and other professionals and all court or arbitration or other dispute resolution costs) arising out of or relating to any infringement of patent rights or copyrights incident to the use in the performance of the Work or resulting from the incorporation in the Work of any invention, design, process, product, or device not specified in the Contract Documents.

12. CLAIMS FOR EXTRA COSTS

No claims for extra work or cost shall be allowed unless the same was done in pursuance of a written order from the Architect/Engineer approved by the Owner.

13. CONTRACTORS AND SUBCONTRACTORS INSURANCE

(a) The Contractor shall not commence work under this Contract until the Contractor has obtained all insurance reasonably required by the Owner, nor shall the Contractor allow any subcontractor to commence work on his/her subcontract until the insurance required of the subcontractor has been so obtained and approved.

(b) Types of insurance normally required are:

(1) Workers' Compensation
(2) Contractor's Public Liability and Property Damage
(3) Contractor's Vehicle Liability
(4) Subcontractors' Public Liability, Property Damage and Vehicle Liability
(5) Builder's Risk (Fire and Extended Coverage)

(c) **Scope of Insurance and Special Hazards:** The insurance obtained, which is described above, shall provide adequate protection for the Contractor and his/her subcontractors, respectively, against damage claims that may arise from operations under this contract, whether such operations be by the insured or by anyone directly or indirectly employed by him/her and also against any of the special hazards that may be encountered in the performance of this Contract.

(d) **Proof of Carriage of Insurance:** The Contractor shall furnish the Owner with certificates showing the type, amount, class of operations covered, effective dates, and dates of expiration of applicable insurance policies.

14. CONTRACT SECURITY BONDS

(a) If the amount of this Contract exceeds $150,000, the Contractor shall furnish a performance bond in an amount at least equal to one hundred percent (100%) of the Contract price as security for the faithful performance of this Contract and also a payment bond in an amount equal to one hundred percent (100%) of the Contract price or in a penal sum not less than that prescribed by State, Territorial, or local law, as security for the payment of all persons performing labor on the Work under this Contract and furnishing materials in connection with this Contract. The performance bond and the payment bond may be in one or in separate instruments in accordance with local law. Before final acceptance, each bond must be approved by EDA. If the amount of this Contract does not exceed $150,000, the Owner shall specify the amount of the payment and performance bonds.

(b) All bonds shall be in the form prescribed by the Contract Documents except as otherwise provided in applicable laws or regulations, and shall be executed by such sureties as are named in the current list of *Companies Holding Certificates of Authority as Acceptable Sureties on Federal Bonds and as Acceptable Reinsuring Companies* as published in Treasury Circular 570 (amended) by the Financial Management Service, Surety Bond Branch, U.S. Department of the Treasury. All bonds signed by an agent must be accompanied by a certified copy of the agent's

authority to act. Surety companies executing the bonds must also be authorized to transact business in the state where the Work is located.

15. **LABOR STANDARDS - DAVIS-BACON AND RELATED ACTS**
(as required by section 602 of PWEDA)

(a) **Minimum Wages**

(1) All laborers and mechanics employed or working upon the site of the Work in the construction or development of the Project will be paid unconditionally and not less often than once a week, and without subsequent deduction or rebate on any account (except such payroll deductions as are permitted by regulations issued by the Secretary of Labor under the Copeland Act at 29 C.F.R. part 3, the full amount of wages and bona fide fringe benefits (or cash equivalents thereof) due at the time of payment computed at rates not less than those contained in the wage determination of the Secretary of Labor, which is attached hereto and made a part hereof, regardless of any contractual relationship that may be alleged to exist between the Contractor and such laborers and mechanics. Contributions made or costs reasonably anticipated for bona fide fringe benefits under Section 1(b)(2) of the Davis-Bacon Act on behalf of laborers or mechanics are considered wages paid to such laborers or mechanics, subject to the provisions of 29 C.F.R. § 5.5(a)(1)(iv); also, regular contributions made or costs incurred for more than a weekly period (but not less often than quarterly) under plans, funds, or programs, which cover the particular weekly period, are deemed to be constructively made or incurred during such weekly period. Such laborers and mechanics shall be paid the appropriate wage rate and fringe benefits on the wage determination for the classification of work actually performed, without regard to skill, except as provided in 29 C.F.R. § 5.5(a)(4). Laborers or mechanics performing work in more than one classification may be compensated at the rate specified for each classification for the time actually worked therein, provided that the employer's payroll records accurately set forth the time spent in each classification in which work is performed. The wage determination (including any additional classification and wage rates determined under 29 C.F.R. § 5.5(a)(1)(ii) and the Davis-Bacon poster (WH-1321) shall be posted at all times by the contractor and its subcontractors at the site of the work in a prominent and accessible place where it can be easily seen by the workers.

(2) (i) Any class of laborers or mechanics to be employed under the Contract, but not listed in the wage determination, shall be classified in conformance with the wage determination. EDA shall approve an additional classification and wage rate and fringe benefits therefore only when the following criteria have been met:

(A) The work to be performed by the classification requested is not performed by a classification in the wage determination;

(B) The classification is utilized in the area by the construction industry; and

(C) The proposed wage rate, including any bona fide fringe benefits, bears a

reasonable relationship to the wage rates contained in the wage determination.

(ii) If the Contractor and the laborers and mechanics to be employed in the classification (if known), or their representatives, and EDA or its designee agree on the classification and wage rate (including the amount designated for fringe benefits where appropriate), a report of the action taken shall be sent by EDA or its designee to the Administrator of the Wage and Hour Division, Employment Standards Administration, U.S. Department of Labor, Washington, D.C. 20210.

(iii) In the event the Contractor, the laborers or mechanics to be employed in the classification or their representatives, and EDA or its designee do not agree on the proposed classification and wage rate (including the amount designated for fringe benefits, where appropriate), EDA or its designee shall refer the questions, including the views of all interested parties and the recommendation of EDA or its designee, to the Administrator for determination.

(iv) The wage rate (including fringe benefits where appropriate) determined pursuant to paragraphs (a)(2)(ii) or (iii) of this section, shall be paid to all workers performing work in the classification under this contract from the first day on which work is performed in the classification.

(3) Whenever the minimum wage rate prescribed in the contract for a class of laborers or mechanics includes a fringe benefit which is not expressed as an hourly rate, the Contractor shall either pay the benefit as stated in the wage determination or shall pay another bona fide fringe benefit or an hourly cash equivalent thereof.

(4) If the Contractor does not make payments to a trustee or other third person, the Contractor may consider as part of the wages of any laborer or mechanic the amount of any costs reasonably anticipated in providing bona fide fringe benefits under a plan or program, provided, that the Secretary of Labor has found, upon the written request of the Contractor, that the applicable standards of the Davis-Bacon Act have been met. The Secretary of Labor may require the Contractor to set aside in a separate account assets for the meeting of obligations under the plan or program.

(b) **Withholding**

EDA or its designee shall upon its own action or upon written request of an authorized representative of the Department of Labor withhold or cause to be withheld from the Contractor under this Contract or any other federal contract with the same prime Contractor, or any other federally-assisted contract subject to Davis-Bacon prevailing wage requirements, which is held by the same prime contractor so much of the accrued payments or advances as may be considered necessary to pay laborers and mechanics, including apprentices, trainees and helpers, employed by the Contractor or any subcontractor the full amount of wages required by the Contract. In the event of failure to pay any laborer or mechanic, including any apprentice, trainee or helper employed or working on the site of the Work in the construction or development of the Project, all or part of the wages required by the Contract, EDA or its designee may, after written notice to the Contractor, sponsor, applicant, or owner, take such action as may be necessary to cause the suspension of any further payment, advance, or guarantee of funds until such violations

have ceased. EDA or its designee may, after written notice to the Contractor, disburse such amounts withheld for and on account of the Contractor or subcontractor to the respective employees to whom they are due. The Comptroller General shall make such disbursements in the case of direct Davis-Bacon Act contracts.

(c) **Payrolls and basic records**

(1) Payrolls and basic records relating thereto shall be maintained by the Contractor during the course of the Work and preserved for a period of three years thereafter for all laborers and mechanics working at the site of the Work in the construction or development of the Project. Such records shall contain the name, address, and social security number of each such worker, his or her correct classification, hourly rates of wages paid (including rates of contributions or costs anticipated for bona fide fringe benefits or cash equivalents thereof of the types described in section 1(b)(2)(B) of the Davis-Bacon Act), daily and weekly number of hours worked, deductions made and actual wages paid. Whenever the Secretary of Labor has found under 29 C.F.R. § 5.5(a)(1)(iv) that the wages of any laborer or mechanic include the amount of any costs reasonably anticipated in providing benefits under a plan or program described in section 1(b)(2)(B) of the Davis-Bacon Act, the Contractor shall maintain records which show that the commitment to provide such benefits is enforceable, the plan or program is financially responsible, and the plan or program has been communicated in writing to the laborers or mechanics affected, and provide records that show the costs anticipated or the actual cost incurred in providing such benefits. Contractors employing apprentices or trainees under approved programs shall maintain written evidence of the registration of apprenticeship programs and certification of trainee programs, the registration of the apprentices and trainees, and the ratios and wage rates prescribed in the applicable programs.

(2) (i) For each week in which Contract work is performed, the Contractor shall submit a copy of all payrolls to the Owner for transmission to EDA or its designee. The payrolls submitted shall set out accurately and completely all of the information required to be maintained under 29 C.F.R. part 5.5(a)(3)(i). This information may be submitted in any form desired. Optional Form WH-347 is available for this purpose. It may be purchased from the Superintendent of Documents (Federal Stock Number 029-005-00014-1), U.S. Government Printing Office, Washington, D.C. 20402; or downloaded from the U.S. Department of Labor's website at https://www.dol.gov/whd/forms/wh347.pdf. The prime Contractor is responsible for the submission of copies of payrolls by all subcontractors

(ii) Each payroll submitted shall be accompanied by a "Statement of Compliance," signed by the Contractor or subcontractor or his or her agent who pays or supervises the payment of the persons employed under the Contract and shall certify the following:

(A) That the payroll for the payroll period contains the information required to be maintained under 29 C.F.R. § 5.5(a)(3)(i) and that such information is correct and complete;

(B) That each laborer or mechanic (including each helper, apprentice, and trainee) employed on the Contract during the payroll period has been paid the full weekly wages earned, without rebate, either directly or indirectly, and that no deductions have been made either directly or indirectly from the full wages earned, other than permissible deductions as set forth in 29 C.F.R. part 3; and

(C) That each laborer or mechanic has been paid not less than the applicable wage rates and fringe benefits or cash equivalents for the classification of work performed, as specified in the applicable wage determination incorporated into the Contract.

(iii)The weekly submission of a properly executed certification set forth on the reverse side of Optional Form WH-347 shall satisfy the requirement for submission of the "Statement of Compliance" required by paragraph 15(c)(2)(ii) of this section.

(iv)The falsification of any of the above certifications may subject the Contractor or subcontractor to civil or criminal prosecution under section 1001 of Title 18 and section 3729 of Title 31 of the U.S. Code.

(3) The Contractor or subcontractor shall make the records required under paragraph 15(c)(1) of this section available for inspection, copying, or transcription by authorized representatives of EDA or its designee or the Department of Labor, and shall permit such representatives to interview employees during working hours on the job. If the Contractor or subcontractor fails to submit the required records or to make them available, EDA or its designee may, after written notice to the Contractor or Owner, take such action as may be necessary to cause the suspension of any further payment, advance, or guarantee of funds. Furthermore, failure to submit the required records upon request or to make such records available may be grounds for debarment action pursuant to 29 C.F.R. § 5.12.

(d) **Apprentices and Trainees**.

(1) **Apprentices**. Apprentices will be permitted to work at less than the predetermined rate for the work they performed when they are employed pursuant to and individually registered in a bona fide apprenticeship program registered with the U.S. Department of Labor, Employment and Training Administration, Bureau of Apprenticeship and Training (Bureau), or with a State Apprenticeship Agency recognized by the Bureau, or if a person is employed in his or her first 90 days of probationary employment as an apprentice in such an apprenticeship program, who is not individually registered in the program, but who has been certified by the Bureau of Apprenticeship and Training or a State Apprenticeship Agency (where appropriate) to be eligible for probationary employment as an apprentice. The allowable ratio of apprentices to journeymen on the job site in any craft classification shall not be greater than the ratio permitted to the Contractor as to the entire work force under the registered program. Any worker listed on a payroll at an apprentice wage rate who is not registered or otherwise employed as stated above, shall be paid not less than the applicable wage rate on the wage determination for the classification of work actually performed. In addition, any

apprentice performing work on the job site in excess of the ratio permitted under the registered program shall be paid not less than the applicable wage rate on the wage determination for the work actually performed. Where a Contractor is performing construction on a Project in a locality other than that in which its program is registered, the ratios and wage rates (expressed in percentages of the journeyman's hourly rate) specified in the Contractor's or subcontractor's registered program shall be observed. Every apprentice must be paid at not less than the rate specified in the registered program for the apprentice's level of progress, expressed as a percentage of the journeymen hourly rate specified in the applicable wage determination. Apprentices shall be paid fringe benefits in accordance with the provisions of the apprenticeship program. If the apprenticeship program does not specify fringe benefits, apprentices must be paid the full amount of fringe benefits listed on the wage determination for the applicable classification. If the Administrator determines that a different practice prevails for the applicable apprentice classification, fringes shall be paid in accordance with that determination. In the event the Bureau of Apprenticeship and Training, or a State Apprenticeship Agency recognized by the Bureau, withdraws approval of an apprenticeship program, the Contractor will no longer be permitted to utilize apprentices at less than the applicable predetermined rate for the work performed until an acceptable program is approved.

(2) **Trainees**. Except as provided in 29 C.F.R. § 5.16, trainees will not be permitted to work at less than the predetermined rate for the work performed unless they are employed pursuant to and individually registered in a program that has received prior approval, evidenced by formal certification by the U.S. Department of Labor, Employment and Training Administration. The ratio of trainees to journeymen on the job site shall not be greater than permitted under the plan approved by the Employment and Training Administration. Every trainee must be paid at not less than the rate specified in the approved program for the trainee's level of progress, expressed as a percentage of the journeyman's hourly rate specified in the applicable wage determination. Trainees shall be paid fringe benefits in accordance with the provisions of the trainee program. If the trainee program does not mention fringe benefits, trainees shall be paid the full amount of fringe benefits listed on the wage determination unless the Administrator of the Wage and Hour Division determines that there is an apprenticeship program associated with the corresponding journeyman wage rate on the wage determination which provides for less than full fringe benefits for apprentices. Any employee listed on the payroll at a trainee rate who is not registered and participating in a training plan approved by the Employment and Training Administration shall be paid not less than the applicable wage rate on the wage determination for the classification of work actually performed. In addition, any trainee performing work on the job site in excess of the ratio permitted under the registered program shall be paid not less than the applicable wage rate on the wage determination for the work actually performed. In the event the Employment and Training Administration withdraws approval of a training program, the Contractor will no longer be permitted to utilize trainees at less than the applicable predetermined rate for the work performed until an acceptable program is approved.

(3) **Equal employment opportunity**. The utilization of apprentices, trainees and journeymen under this part shall be in conformity with the equal employment opportunity

requirements of Executive Order 11246, *Equal Employment Opportunity*, as amended, and 29 C.F.R. part 30.

(e) **Compliance with Copeland Anti-Kickback Act Requirements**. The Contractor shall comply with the Copeland Anti-Kickback Act (18 U.S.C. § 874 and 40 U.S.C. § 3145) as supplemented by Department of Labor regulations (29 C.F.R. part 3, "Contractors and Subcontractors on Public Buildings or Public Works Financed in Whole or in Part by Loans or Grants of the United States"). The Act provides that the Contractor and any subcontractors shall be prohibited from inducing, by any means, any person employed in the construction, completion, or repair of public work, to give up any part of the compensation to which they are otherwise entitled. The Owner shall report all suspected or reported violations to EDA.

(f) **Subcontracts**. The Contractor and any subcontractors will insert in any subcontracts the clauses contained in 29 C.F.R. §§ 5.5(a)(1) through (10) and such other clauses as EDA or its designee may require, and also a clause requiring the subcontractors to include these clauses in any lower tier subcontracts. The prime Contractor shall be responsible for the compliance by any subcontractor or lower tier subcontractor with all the contract clauses in 29 C.F.R. § 5.5.

(g) **Contract termination; debarment**. The breach of the contract clauses in 29 C.F.R. § 5.5 may be grounds for termination of the contract, and for debarment as a Contractor and a subcontractor as provided in 29 C.F.R. § 5.12.

(h) **Compliance with Davis-Bacon and Related Act Requirements**. All rulings and interpretations of the Davis-Bacon and Related Acts contained in 29 C.F.R. parts 1, 3, and 5 are herein incorporated by reference in this contract.

(i) **Disputes concerning labor standards**. Disputes arising out of the labor standards provisions of this Contract shall not be subject to the general disputes clause of this Contract. Such disputes shall be resolved in accordance with the procedures of the Department of Labor set forth in 29 C.F.R. parts 5, 6, and 7. Disputes within the meaning of this clause include disputes between the contractor (or any of its subcontractors) and EDA or its designee, the U.S. Department of Labor, or the employees or their representatives.

(j) **Certification of Eligibility**.

(1)By entering into this Contract, the Contractor certifies that neither it nor any person or firm that has an interest in the Contractor's firm is a person or firm ineligible to be awarded Government contracts by virtue of section 3(a) of the Davis-Bacon Act or 29 C.F.R. § 5.12(a)(1).

(2) No part of this Contract shall be subcontracted to any person or firm ineligible for award of a Government contract by virtue of section 3(a) of the Davis-Bacon Act or 29 C.F.R. § 5.12(a)(1).

(3) The penalty for making false statements is prescribed in the U.S. Criminal Code, 18 U.S.C. § 1001.

16. **LABOR STANDARDS - CONTRACT WORK HOURS AND SAFETY STANDARDS ACT**

As used in this paragraph, the terms "laborers" and "mechanics" include watchmen and guards.

(a) **Overtime requirements**. No Contractor or subcontractor contracting for any part of the Contract work, which may require or involve the employment of laborers or mechanics, shall require or permit any such laborer or mechanic in any workweek in which that person is employed on such work to work in excess of forty hours in such workweek unless such laborer or mechanic receives compensation at a rate not less than one and one-half times the basic rate of pay for all hours worked in excess of forty hours in such workweek.

(b) **Violation; liability for unpaid wages, liquidated damages**. In the event of any violation of the clause set forth in paragraph (a) of this section, the Contractor and any subcontractor responsible therefore shall be liable for the unpaid wages. In addition, such Contractor and subcontractor shall be liable to the United States (in the case of work done under contract for the District of Columbia or a territory, to such District or to such territory), for liquidated damages. Such liquidated damages shall be computed with respect to each individual laborer or mechanic, including watchmen and guards, employed in violation of the clause set forth in paragraph (a) of this section, in the sum of $10 for each calendar day on which such individual was required or permitted to work in excess of the standard workweek of forty hours without payment of the overtime wages required by the clause set forth in paragraph (a) of this section.

(c) **Withholding for unpaid wages and liquidated damages**. EDA or its designee shall upon its own action or upon written request of an authorized representative of the Department of Labor withhold or cause to be withheld, from any monies payable on account of work performed by the Contractor or subcontractor under any such Contract or any other federal contract with the same prime Contractor, or any other federally-assisted contract subject to the Contract Work Hours and Safety Standards Act, which is held by the same prime Contractor such sums as may be determined to be necessary to satisfy any liabilities of such Contractor or subcontractor for unpaid wages and liquidated damages as provided in the clause set forth in paragraph (b) of this section.

(d) **Subcontracts**. The Contractor or subcontractor shall insert in any subcontracts the clauses set forth in paragraphs (a) through (c) of this section and also a clause requiring the subcontractors to include these clauses in any lower tier subcontracts. The prime Contractor shall be responsible for compliance by any subcontractor or lower tier subcontractor with the clauses set forth in paragraphs (a) through (c) of this section.

17. **EQUAL EMPLOYMENT OPPORTUNITY**

(a) The Recipient hereby agrees that it will incorporate or cause to be incorporated into any contract for construction work, or modification thereof, as defined in the regulations of the Secretary of Labor at 41 C.F.R. chapter 60, which is paid for in whole or in part with funds obtained from EDA, the following equal opportunity clause:

During the performance of this contract, the Contractor agrees as follows:

(1) The Contractor will not discriminate against any employee or applicant for employment because of race, color, religion, sex, sexual orientation, gender identity, or national origin. The Contractor will take affirmative action to ensure that applicants are employed, and that employees are treated during employment without regard to their race, color, religion, sex, sexual orientation, gender identity, or national origin. Such action shall include, but not be limited to the following: Employment, upgrading, demotion, or transfer; recruitment or recruitment advertising; layoff or termination; rates of pay or other forms of compensation; and selection for training including apprenticeship. The Contractor agrees to post in conspicuous places available to employees and applicants for employment notices to be provided setting forth the provisions of this nondiscrimination clause.

(2) The Contractor will, in all solicitations or advertisements for employees placed by or on behalf of the Contractor state that all qualified applicants will receive consideration for employment without regard to race, color, religion, sex, sexual orientation, gender identity, or national origin.

(3) The contractor will not discharge or in any other manner discriminate against any employee or applicant for employment because such employee or applicant has inquired about, discussed, or disclosed the compensation of the employee or applicant or another employee or applicant. This provision shall not apply to instances in which an employee who has access to the compensation information of other employees or applicants as a part of such employee's essential job functions discloses the compensation of such other employees or applicants to individuals who do not otherwise have access to such information, unless such disclosure is in response to a formal complaint or charge, in furtherance of an investigation, proceeding, hearing, or action, including an investigation conducted by the employer, or is consistent with the contractor's legal duty to furnish information.

(4) The Contractor will send to each labor union or representative of workers with which it has a collective bargaining agreement or other contract or understanding, a notice to be provided advising the said labor union or workers representatives of the Contractor's commitments hereunder, and shall post copies of the notice in conspicuous places available to employees and applicants for employment.

(5) The Contractor will comply with all provisions of Executive Order 11246 of September 24, 1965 and of the rules, regulations, and relevant orders of the Secretary of Labor.

(6) The Contractor will furnish all information and reports required by Executive Order 11246 of September 24, 1965, and by rules, regulations, and orders of the Secretary of Labor, or pursuant thereto, and will permit access to its books, records, and accounts by EDA and the Secretary of Labor for purposes of investigation to ascertain compliance with such rules, regulations, and orders.

(7) In the event of the Contractor's noncompliance with the nondiscrimination clauses of

this Contract or with any of the said rules, regulations, or orders, this Contract may be canceled, terminated, or suspended in whole or in part and the Contractor may be declared ineligible for further Government contracts or federally-assisted construction contracts in accordance with procedures authorized in Executive Order 11246 of September 24, 1965, and such other sanctions may be imposed and remedies invoked as provided in Executive Order 11246 of September 24, 1965, or by rule, regulation or order of the Secretary of Labor, or as otherwise provided by law.

(8) The Contractor will include the portion of the sentence immediately preceding paragraph 17(a)(1) and the provisions of paragraphs 17(a)(1) through (8) in every subcontract or purchase order unless exempted by rules, regulations, or orders of the Secretary of Labor issued pursuant to section 204 of Executive Order 11246 of September 24, 1965, so that such provisions will be binding upon each subcontractor or vendor. The Contractor will take such action with respect to any subcontract or purchase order as EDA or the Secretary of Labor may direct as a means of enforcing such provisions, including sanctions for noncompliance. Provided, however, that in the event the Contractor becomes involved in or is threatened with litigation with a subcontractor or vendor as a result of such direction by EDA or the Secretary of Labor, the Contractor may request the United States to enter into such litigation to protect the interests of the United States.

(9) The Recipient further agrees that it will be bound by the above equal opportunity clause with respect to its own employment practices when it participates in federally-assisted construction work. Provided, however, that if the Recipient so participating is a State or local government, the above equal opportunity clause is not applicable to any agency, instrumentality, or subdivision of such government that does not participate in work on or under the Contract.

(10)The Recipient agrees that it will assist and cooperate actively with EDA and the Secretary of Labor in obtaining the compliance of contractors and subcontractors with the equal opportunity clause and the rules, regulations, and relevant orders of the Secretary of Labor, that it will furnish EDA and the Secretary of Labor such information as they may require for the supervision of such compliance, and that it will otherwise assist EDA in the discharge of the EDA's primary responsibility for securing compliance.

(11) The Recipient further agrees that it will refrain from entering into any contract or contract modification subject to Executive Order 11246 of September 24, 1965, with a Contractor debarred from, or who has not demonstrated eligibility for, Government contracts and federally assisted construction contracts pursuant to the Executive Order and will carry out such sanctions and penalties for violation of the equal opportunity clause as may be imposed upon contractors and subcontractors by EDA or the Secretary of Labor pursuant to Part II, Subpart D of the Executive Order. In addition, the Recipient agrees that if it fails or refuses to comply with these undertakings, EDA may take any or all of the following actions: Cancel, terminate, or suspend in whole or in part this EDA financial assistance; refrain from extending any further assistance to the applicant under the program with respect to which the failure or refund occurred until satisfactory assurance of future compliance has been received from such applicant; and refer the case

to the Department of Justice for appropriate legal proceedings.

(b) Exemptions to Above Equal Opportunity Clause (41 C.F.R. chapter 60):

(1) Contracts and subcontracts not exceeding $10,000 (other than Government bills of lading, and other than contracts and subcontracts with depositories of Federal funds in any amount and with financial institutions which are issuing and paying agents for U.S. savings bonds and savings notes) are exempt. The amount of the Contract, rather than the amount of the federal financial assistance, shall govern in determining the applicability of this exemption.

(2) Except in the case of subcontractors for the performance of construction work at the site of construction, the clause shall not be required to be inserted in subcontracts below the second tier.

(3) Contracts and subcontracts not exceeding $10,000 for standard commercial supplies or raw materials are exempt.

18. **CONTRACTING WITH SMALL, MINORITY AND WOMEN'S BUSINESSES**

(a) If the Contractor intends to let any subcontracts for a portion of the work, the Contractor shall take affirmative steps to assure that small, minority and women's businesses are used when possible as sources of supplies, equipment, construction, and services.

(b) Affirmative steps shall consist of:

(1) Placing qualified small and minority businesses and women's business enterprises on solicitation lists;

(2) Ensuring that small and minority businesses and women's business enterprises are solicited whenever they are potential sources;

(3) Dividing total requirements, when economically feasible, into smaller tasks or quantities to permit maximum participation by small and minority businesses and women's business enterprises;

(4) Establishing delivery schedules, where the requirements of the contract permit, which encourage participation by small and minority businesses and women's business enterprises;

(5) Using the services and assistance of the U.S. Small Business Administration, the Minority Business Development Agency of the U.S. Department of Commerce, and State and local governmental small business agencies;

(6) Requiring each party to a subcontract to take the affirmative steps of this section; and

(7) The Contractor is encouraged to procure goods and services from labor surplus area firms.

19. **HEALTH, SAFETY, AND ACCIDENT PREVENTION**

(a) In performing this contract, the Contractor shall:

(1) Ensure that no laborer or mechanic shall be required to work in surroundings or under working conditions which are unsanitary, hazardous, or dangerous to their health and/or safety as determined under construction safety and health standards promulgated by the Secretary of Labor by regulation;

(2) Protect the lives, health, and safety of other persons;

(3) Prevent damage to property, materials, supplies, and equipment; and

(4) Avoid work interruptions.

(b) For these purposes, the Contractor shall:

(1) Comply with regulations and standards issued by the Secretary of Labor at 29 C.F.R. part 1926. Failure to comply may result in imposition of sanctions pursuant to the Contract Work Hours and Safety Standards Act (40 U.S.C. §§ 3701 – 3708); and

(2) Include the terms of this clause in every subcontract so that such terms will be binding on each subcontractor.

(c) The Contractor shall maintain an accurate record of exposure data on all accidents incident to work performed under this Contract resulting in death, traumatic injury, occupational disease, or damage to property, materials, supplies, or equipment, and shall report this data in the manner prescribed by 29 C.F.R. part 1904.

(d) The Owner shall notify the Contractor of any noncompliance with these requirements and of the corrective action required. This notice, when delivered to the Contractor or the Contractor's representative at the site of the Work, shall be deemed sufficient notice of the noncompliance and corrective action required. After receiving the notice, the Contractor shall immediately take corrective action. If the Contractor fails or refuses to take corrective action promptly, the Owner may issue an order stopping all or part of the Work until satisfactory corrective action has been taken. The Contractor shall not base any claim or request for equitable adjustment for additional time or money on any stop order issued under these circumstances.

(e) The Contractor shall be responsible for its subcontractors' compliance with the provisions of this clause. The Contractor shall take such action with respect to any subcontract as EDA, or the Secretary of Labor shall direct as a means of enforcing such provisions.

20. CONFLICT OF INTEREST AND OTHER PROHIBITED INTERESTS

(a) No official of the Owner who is authorized in such capacity and on behalf of the Owner to negotiate, make, accept, or approve, or to take part in negotiating, making, accepting, or approving any architectural, engineering, inspection, construction or material supply contract or any subcontract in connection with the construction of the Project, shall become directly or indirectly interested personally in this Contract or in any part hereof.

(b) No officer, employee, architect, attorney, engineer, or inspector of or for the Owner who is authorized in such capacity and on behalf of the Owner to exercise any legislative, executive, supervisory or other similar functions in connection with the construction of the Project, shall become directly or indirectly interested personally in this Contract or in any part thereof, any material supply contract, subcontract, insurance contract, or any other contract pertaining to the Project.

(c) The Contractor may not knowingly contract with a supplier or manufacturer if the individual or entity who prepared the Contract Documents has a corporate or financial affiliation with the supplier or manufacturer.

(d) The Owner's officers, employees, or agents shall not engage in the award or administration of this Contract if a conflict of interest, real or apparent, may be involved. Such a conflict may arise when: (i) the employee, officer or agent; (ii) any member of their immediate family; (iii) their partner or (iv) an organization that employs, or is about to employ, any of the above, has a financial interest in the Contractor. The Owner's officers, employees, or agents shall neither solicit nor accept gratuities, favors, or anything of monetary value from the Contractor or subcontractors.

(e) If the Owner finds after a notice and hearing that the Contractor, or any of the Contractor's agents or representatives, offered or gave gratuities (in the form of entertainment, gifts, or otherwise) to any official, employee, or agent of the Owner or EDA in an attempt to secure this Contract or favorable treatment in awarding, amending, or making any determinations related to the performance of this Contract, the Owner may, by written notice to the Contractor, terminate this Contract. The Owner may also pursue other rights and remedies that the law or this Contract provides. However, the existence of the facts on which the Owner bases such findings shall be an issue and may be reviewed in proceedings under the dispute resolution provisions of this Contract.

(f) In the event this Contract is terminated as provided in paragraph (e) of this section, the Owner may pursue the same remedies against the Contractor as it could pursue in the event of a breach of this Contract by the Contractor. As a penalty, in addition to any other damages to which it may be entitled by law, the Owner may pursue exemplary damages in an amount (as determined by the Owner) which shall not be less than three nor more than ten times the costs the Contractor incurs in providing any such gratuities to any such officer or employee.

21. RESTRICTIONS ON LOBBYING

(a) This Contract, or subcontract is subject to 31 U.S.C. § 1352, regarding lobbying restrictions. The section is explained in the common rule, 15 C.F.R. part 28 (55 FR 6736-6748, February 26, 1990). Each bidder under this Contract or subcontract is generally prohibited from using federal funds for lobbying the Executive or Legislative Branches of the Federal Government in connection with this EDA Award.

(b) **Contract Clause Threshold**: This Contract Clause regarding lobbying must be included in each bid for a contract or subcontract exceeding $100,000 of federal funds at any tier under the EDA Award.

(c) **Certification and Disclosure**: Each bidder of a contract or subcontract exceeding $100,000 of federal funds at any tier under the federal Award must file Form CD-512, *Certification Regarding Lobbying – Lower Tier Covered Transactions*, and, if applicable, Standard Form-LLL, *Disclosure of Lobbying Activities*, regarding the use of any nonfederal funds for lobbying. Certifications shall be retained by the Contractor or subcontractor at the next higher tier. All disclosure forms, however, shall be forwarded from tier to tier until received by the Recipient of the EDA Award, who shall forward all disclosure forms to EDA.

(d) **Continuing Disclosure Requirement**: Each Contractor or subcontractor that is subject to the Certification and Disclosure provision of this Contract Clause is required to file a disclosure form at the end of each calendar quarter in which there occurs any event that requires disclosure or that materially affects the accuracy of the information contained in any disclosure form previously filed by such person. Disclosure forms shall be forwarded from tier to tier until received by the Recipient of the EDA Award, who shall forward all disclosure forms to EDA.

(e) **Indian Tribes, Tribal Organizations, or Other Indian Organizations**: Indian tribes, tribal organizations, or any other Indian organizations, including Alaskan Native organizations, are excluded from the above lobbying restrictions and reporting requirements, but only with respect to expenditures that are by such tribes or organizations for lobbying activities permitted by other federal law. An Indian tribe or organization that is seeking an exclusion from Certification and Disclosure requirements must provide EDA with the citation of the provision or provisions of federal law upon which it relies to conduct lobbying activities that would otherwise be subject to the prohibitions in and to the Certification and Disclosure requirements of 31 U.S.C. § 1352, preferably through an attorney's opinion. Note, also, that a non-Indian subrecipient, contractor, or subcontractor under an award to an Indian tribe, for example, is subject to the restrictions and reporting requirements.

22. HISTORICAL AND ARCHAEOLOGICAL DATA PRESERVATION

The Contractor agrees to facilitate the preservation and enhancement of structures and objects of historical, architectural or archaeological significance and when such items are found and/or unearthed during the course of project construction. Any excavation by the Contractor that uncovers an historical or archaeological artifact shall be immediately reported to the Owner and a representative of EDA. Construction shall be temporarily halted pending the notification process and further directions issued by EDA after consultation with the State Historic

Preservation Officer (SHPO) for recovery of the items. *See* the National Historic Preservation Act of 1966 (54 U.S.C. § 300101 *et seq.*, formerly at 16 U.S.C. § 470 *et seq.*) and Executive Order No. 11593 of May 31, 1971.

23. **CLEAN AIR AND WATER**

Applicable to Contracts in Excess of $150,000

(a) **Definition**. "Facility" means any building, plant, installation, structure, mine, vessel, or other floating craft, location, or site of operations, owned, leased, or supervised by the Contractor or any subcontractor, used in the performance of the Contract or any subcontract. When a location or site of operations includes more than one building, plant, installation, or structure, the entire location or site shall be deemed a facility except when the Administrator, or a designee, of the United States Environmental Protection Agency (EPA) determines that independent facilities are collocated in one geographical area.

(b) In compliance with regulations issued by the EPA, 2 C.F.R. part 1532, pursuant to the Clean Air Act, as amended (42 U.S.C. § 7401 *et seq.*); the Federal Water Pollution Control Act, as amended (33 U.S.C. § 1251 *et seq.*); and Executive Order 11738, the Contractor agrees to:

(1) Not utilize any facility in the performance of this contract or any subcontract which is listed on the Excluded Parties List System, part of the System for Award Management (SAM), pursuant to 2 C.F.R. part 1532 for the duration of time that the facility remains on the list;

(2) Promptly notify the Owner if a facility the Contractor intends to use in the performance of this contract is on the Excluded Parties List System or the Contractor knows that it has been recommended to be placed on the List;

(3) Comply with all requirements of the Clean Air Act and the Federal Water Pollution Control Act, including the requirements of section 114 of the Clean Air Act and section 308 of the Federal Water Pollution Control Act, and all applicable clean air and clean water standards; and

(4) Include or cause to be included the provisions of this clause in every subcontract and take such action as EDA may direct as a means of enforcing such provisions.

24. **USE OF LEAD-BASED PAINTS ON RESIDENTIAL STRUCTURES**

(a) If the work under this Contract involves construction or rehabilitation of residential structures over $5,000, the Contractor shall comply with the Lead-based Paint Poisoning Prevention Act (42 U.S.C. § 4831). The Contractor shall assure that paint or other surface coatings used in a residential property does not contain lead equal to or in excess of 1.0 milligram per square centimeter or 0.5 percent by weight or 5,000 parts per million (ppm) by weight. For purposes of this section, "residential property" means a dwelling unit, common areas, building exterior surfaces, and any surrounding land, including outbuildings, fences and play equipment affixed to the land, belonging to an owner and available for use by residents, but not

including land used for agricultural, commercial, industrial or other non-residential purposes, and not including paint on the pavement of parking lots, garages, or roadways.

(b) As a condition to receiving assistance under PWEDA, recipients shall assure that the restriction against the use of lead-based paint is included in all contracts and subcontracts involving the use of federal funds.

25. ENERGY EFFICIENCY

The Contractor shall comply with all standards and policies relating to energy efficiency which are contained in the energy conservation plan issued in compliance with the Energy Policy and Conservation Act (42 U.S.C. § 6201) for the State in which the Work under the Contract is performed.

26. ENVIRONMENTAL REQUIREMENTS

When constructing a Project involving trenching and/or other related earth excavations, the Contractor shall comply with the following environmental constraints:

(1) **Wetlands**. When disposing of excess, spoil, or other construction materials on public or private property, the Contractor shall not fill in or otherwise convert wetlands.

(2) **Floodplains**. When disposing of excess, spoil, or other construction materials on public or private property, the Contractor shall not fill in or otherwise convert 100 year floodplain areas delineated on the latest Federal Emergency Management Agency (FEMA) Floodplain Maps, or other appropriate maps, i.e., alluvial soils on Natural Resource Conservation Service (NRCS) Soil Survey Maps.

(3) **Endangered Species**. The Contractor shall comply with the Endangered Species Act, which provides for the protection of endangered and/or threatened species and critical habitat. Should any evidence of the presence of endangered and/or threatened species or their critical habitat be brought to the attention of the Contractor, the Contractor will immediately report this evidence to the Owner and a representative of EDA. Construction shall be temporarily halted pending the notification process and further directions issued by EDA after consultation with the U.S. Fish and Wildlife Service.

27. DEBARMENT, SUSPENSION, INELIGIBILITY, AND VOLUNTARY EXCLUSIONS

As required by Executive Orders 12549 and 12689, *Debarment and Suspension*, 2 C.F.R. Part 180 and implemented by the Department of Commerce at 2 C.F.R. part 1326, for prospective participants in lower tier covered transactions (except subcontracts for goods or services under the $25,000 small purchase threshold unless the subrecipient will have a critical influence on or substantive control over the award), the Contractor agrees that:

(1) By entering into this Contract, the Contractor and subcontractors certify, that neither it nor its principals is presently debarred, suspended, proposed for debarment, declared

ineligible, or voluntarily excluded from participation in this Contract by any federal department or agency.

(2) Where the Contractor or subcontractors are unable to certify to any of the statements in this certification, the Contractor or subcontractors shall attach an explanation to this bid.

See also 2 C.F.R. part 180 and 2 C.F.R. § 200.342.

28. **EDA PROJECT SIGN**

The Contractor shall supply, erect, and maintain in good condition a Project sign according to the specifications provided by EDA. To the extent practical, the sign should be a free standing sign. Project signs shall not be located on public highway rights-of-way. Location and height of signs will be coordinated with the local agency responsible for highway or street safety in the Project area, if any possibility exists for obstructing vehicular traffic line of sight. Whenever the EDA site sign specifications conflict with State law or local ordinances, the EDA Regional Director will permit such conflicting specifications to be modified so as to comply with State law or local ordinance.

29. **BUY AMERICA**

To the greatest extent practicable, contractors are encouraged to purchase American-made equipment and products with funding provided under EDA financial assistance awards.

APPENDIX B

FORM **CD-512**
(REV 12-04)

U.S. DEPARTMENT OF COMMERCE

CERTIFICATION REGARDING LOBBYING
LOWER TIER COVERED TRANSACTIONS

Applicants should review the instructions for certification included in the regulations before completing this form. Signature on this form provides for compliance with certification requirements under 15 CFR Part 28, "New Restrictions on Lobbying."

LOBBYING

As required by Section 1352, Title 31 of the U.S. Code, and implemented at 15 CFR Part 28, for persons entering into a grant, cooperative agreement or contract over $100,000 or a loan or loan guarantee over $150,000 as defined at 15 CFR Part 28, Sections 28.105 and 28.110, the applicant certifies that to the best of his or her knowledge and belief, that:

(1) No Federal appropriated funds have been paid or will be paid, by or on behalf of the undersigned, to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress in connection with the awarding of any Federal contract, the making of any Federal grant, the making of any Federal loan, the entering into of any cooperative agreement, and the extension, continuation, renewal, amendment, or modification of any Federal contract, grant, loan, or cooperative agreement.

(2) If any funds other than Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress, or an employee of a member of Congress in connection with this Federal contract, grant, loan, or cooperative agreement, the undersigned shall complete and submit Standard Form-LLL, "Disclosure Form to Report Lobbying," in accordance with its instructions.

(3) The undersigned shall require that the language of this certification be included in the award documents for all subawards at all tiers (including subcontracts, subgrants, and contracts under grants, loans, and cooperative agreements) and that all subrecipients shall certify and disclose accordingly.

This certification is a material representation of fact upon which reliance was placed when this transaction was made or entered into. Submission of this certification is a prerequisite for making or entering into this transaction imposed by section 1352, title 31, U.S. Code. Any person who fails to file the required certification shall be subject to a civil penalty of not less than $10,000 and not more than $100,000 for each such failure occurring on or before October 23, 1996, and of not less than $11,000 and not more than $110,000 for each such failure occurring after October 23, 1996.

Statement for Loan Guarantees and Loan Insurance

The undersigned states, to the best of his or her knowledge and belief, that:

In any funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with this commitment providing for the United States to insure or guarantee a loan, the undersigned shall complete and submit Standard Form-LLL, ''Disclosure Form to Report Lobbying,'' in accordance with its instructions.

Submission of this statement is a prerequisite for making or entering into this transaction imposed by section 1352, title 31, U.S. Code. Any person who fails to file the required statement shall be subject to a civil penalty of not less than $10,000 and not more than $100,000 for each such failure occurring on or before October 23, 1996, and of not less than $11,000 and not more than $110,000 for each such failure occurring after October 23, 1996.

As the duly authorized representative of the applicant, I hereby certify that the applicant will comply with the above applicable certification.

NAME OF APPLICANT	AWARD NUMBER AND/OR PROJECT NAME
PRINTED NAME AND TITLE OF AUTHORIZED REPRESENTATIVE	
SIGNATURE	DATE

NOTICE OF REQUIREMENTS FOR AFFIRMATIVE ACTION TO ENSURE EQUAL EMPLOYMENT OPPORTUNITY (EXECUTIVE ORDER 11246 AND 41 CFR PART 60-4)

The following Notice shall be included in, and shall be a part of all solicitations for offers and bids on all Federal and federally assisted construction contracts or subcontracts in excess of $10,000.

The Offeror's or Bidder's attention is called to the "Equal Opportunity Clause" and the "Standard Federal Equal Employment Opportunity Construction Contract Specifications" set forth herein.

The goals and timetables for minority and female participation, expressed in percentage terms for the Contractor's aggregate workforce in each trade on all construction work in the covered area, are as follows:

Timetables	**Goals for minority participation for each trade**	**Goals for female participation for each trade**
	%	**6.9%**

These goals are applicable to all the Contractor's construction work (whether or not it is Federal or federally assisted) performed in the covered area. If the contractor performs construction work in a geographical area located outside of the covered area, it shall apply the goals established for such geographical area where the work is actually performed. With regard to this second area, the contractor also is subject to the goals for both its federally involved and non federally involved construction.
The Contractor's compliance with the Executive Order and the regulations in 41 CFR Part 60-4 shall be based on its implementation of the Equal Opportunity Clause, specific affirmative action obligations required by the specifications set forth in 41 CFR 60-4.3(a), and its efforts to meet the goals. The hours of minority and female employment and training must be substantially uniform throughout the length of the contract, and in each trade and the contractor shall make a good faith effort to employ minorities and women evenly on each of its projects. The transfer of minority or female employees or trainees from Contractor to Contractor or from project to project for the sole purpose of meeting the Contractor's goals shall be a violation of the contract, the Executive Order, and the regulations in 41 CFR Part 60-4. Compliance with the goals will be measured against the total work hours performed.

The Contractor shall provide written notification to the Director of the Office of Federal Contract Compliance Programs within 10 working days of award of any construction subcontract in excess of $10,000 at any tier for construction work under the contract resulting from this solicitation. The notification shall list the name, address and telephone number of the subcontractor; employer identification number of the subcontractor; estimated dollar amount of the subcontract; estimated starting and completion dates of the subcontract; and the geographical area in which the subcontract is to be performed.
As used in this Notice, and in the contract resulting from this solicitation, the "covered area" is:

State of _____

County of _____

City of _____

APPENDIX D

HEARTLAND BIOWORKS HEADQUARTERS

EXPERIENCE QUESTIONNNAIRE

1. Please provide a summary of relevant projects completed in the last five (5) years including building size, contract amount, actual amount, scheduled completion and actual completion.

Project Type	Contract Amount	Actual Amount	Square Footage	Scheduled Completion Date	Actual Completion	Name/Address of Owner

2. Have you ever failed to complete any work awarded to you? If yes, please explain.

3. Provide three (3) references for work completed on similar projects.

Name	Email	Phone	Project Name	Project Location

4. Provide your proposed schedule and proposed start date, as well as anticipated sub-contractors for major scopes of work, with a list of your recent work completed together in the past 5 years.

5. Do you have any experience working on a federally funded project or EDA project. If yes, please describe.

(BLANK)

VENDOR'S (CONTRACTOR'S) PROPOSAL FOR:

HEARTLAND BIOWORKS HEADQUARTERS – Furniture Package
1200 Indiana Avenue
Indianapolis, IN 46202

To: Applied Research Institute
1250 Indiana Avenue
Indianapolis, IN 46202

FROM: _____ Bidder Name

_____ Address

_____ City, State Zip

Pursuant to notices given, the undersigned proposes to furnish all material and labor, and perform all work necessary to complete the Heartland Bioworks Headquarters, Indianapolis, Indiana, in accordance with Contract Documents dated **November 2, 2026** prepared by RATIO Architects, Inc., 101 South Pennsylvania Street, Indianapolis, Indiana 46204, and all Addenda acknowledged herein:

1. BIDDER'S CERTIFICATION

a. The undersigned Bidder certifies that he/she has examined and fully comprehends the bidding requirements, the Conditions of the Contract, and the requirements and intent of the Bidding Documents.
b. The undersigned Bidder certifies that he/she has visited the site(s) and examined all conditions affecting the Work.
c. The undersigned Bidder certifies that applicable federal and Indiana state taxes are included in the Base Bid if required by State Law.

2. ADDENDA

a. The undersigned Bidder acknowledges receipt of the following Addenda:

1. Addendum No. _____ Dated _____

2. Addendum No. _____ Dated _____

3. PRICE SUMMARY:

BID SUM – ANCILLARY FURNITURE PACKAGE

_____ Dollars($_____)
Written amount Numerals

BID SUM – SYSTEMS FURNITURE PACKAGE

_____ Dollars($_____)
Written amount Numerals

BID SUM – SEATING PACKAGE

_____ Dollars($_____)
Written amount Numerals

4. UNIT PRICES FOR THE WORK (Refer to Division 1 Section "Unit Prices" for complete descriptions of each unit price.**)**
Submit the Unit Price and Summary List with the Proposal Form for each individual Package.

5. ACKNOWLEDGMENT

The undersigned Bidder understands that the Owner reserves the right to reject this bid, and that this bid shall remain open and shall not be withdrawn for a period of sixty (60) calendar days from the date prescribed for its opening.

6. TIME OF COMPLETION

If awarded this Contract, the undersigned Bidder acknowledges that work of the Base Bid and accepted Alternate Bids shall commence and be completed, including all punch list items, in accordance with work sequence described in Division 1 Section "Summary."

7. TAX EXEMPTIONS

Not applicable.

8. SUBSTITUTIONS
The undersigned Bidder has based his bid upon the materials, products, articles, equipment, brands, manufacturers, and processes described in the Bidding Documents or upon approved equivalents. Proof of equivalency of substitutions is the responsibility of the Bidder, but the Architect shall be the sole judge of equivalency. Proposed equivalent substitutions shall be equal in all respects to the requirements of the Bidding Documents, including but not limited to the design, quality, physical size, performance characteristics, strength, previous history of use, and to the method of installation, attachment, or connection to related or adjoining work. Determination of equivalency of proposed substitutions shall be made by the Architect before the bid opening date, as described in paragraph "Substitutions" in the Division 0 Document "Instructions to Bidders."

9. SIGNATURES

In testimony whereof, the Bidder (A Corporation) has caused this proposal to be signed by its president and secretary and fixed its corporate seal this _____day of _____, 2026.

Corporation Signatures:

By:_____
President

By:_____
Secretary Corporate Seal

Partnership Signatures:

In testimony whereof, the Bidder (a Partnership) has caused this proposal to be signed by each

partner this _____ day of _____,2026.

By:_____
Partner

By:_____
Partner

By:_____
Partner

END OF DOCUMENT 004200

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PART 1 - GENERAL

1.1 AGREEMENT

A. AIA Document A151 - 2019 Standard Form of Agreement Between Owner and Vendor for Furniture, Furnishings and Equipment (FF&E) where the basis of payment is a Stipulated Sum, (2019 Edition – Electronic Format), shall form the basis of the Contract between the Owner and the Vendor.

B. A copy of AIA Document A151 - 2019 is bound hereinafter.

PART 2 – PRODUCTS (Not Used)

PART 3 – EXECUTION (Not Used)

END OF SECTION 005203

DRAFT

AIA® Document A151™ – 2019

Standard Form of Agreement between Owner and Vendor for Furniture, Furnishings, and Equipment (FF&E)

AGREEMENT made as of the « » day of « » in the year « »
(In words, indicate day, month, and year.)

BETWEEN the Owner:
(Name, legal status, address, and other information)

«»

and the Vendor:
(Name, legal status, address, and other information)

« »« »

for the following Project:
(Name, location, and detailed description)

«»

The Architect:
(Name, legal status, address, and other information)

« »« »
« »
« »»

The Owner and Vendor agree as follows.

ADDITIONS AND DELETIONS: The author of this document has added information needed for its completion. The author may also have revised the text of the original AIA standard form. An *Additions and Deletions Report* that notes added information as well as revisions to the standard form text is available from the author and should be reviewed.

This document has important legal consequences. Consultation with an attorney is encouraged with respect to its completion or modification.

DRAFT

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ARTICLE 1 GENERAL PROVISIONS

§ 1.1 Governing Law, including the Uniform Commercial Code

This Agreement is for the sale of goods, specifically furniture, furnishings, and equipment (FF&E), and shall be governed by the law of the place where the Project is located, excluding that jurisdiction's choice of law rule and including the jurisdiction's Uniform Commercial Code (UCC) as adopted. If this Agreement conflicts with terms provided by the UCC, the Agreement shall prevail.

§ 1.2 The Contract Documents

The Contract Documents are enumerated in Article 16 and consist of this Agreement (including, if applicable, Supplementary and other Conditions of the Contract), Drawings, Specifications, Addenda issued prior to the execution of this Agreement, other documents listed in this Agreement, and Modifications issued after execution of this Agreement. The intent of the Contract Documents is to include all items necessary for the proper execution and completion of the Work by the Vendor. The Contract Documents are complementary, and what is required by one shall be as binding as if required by all. Performance by the Vendor shall be required to the extent consistent with the Contract Documents and reasonably inferable from them as being necessary to produce the indicated results.

§ 1.2.1 In the case of an inconsistency between Drawings and Specifications or within either Document not clarified by addendum, the better quality or greater quantity of product shall be provided in accordance with Architect's interpretation.

§ 1.3 The Contract

The Contract Documents form the Contract for the Work. The Contract represents the entire and integrated agreement between the parties hereto and supersedes all prior proposals, offers, terms and conditions, negotiations, representations, or agreements, either written or oral. The Contract may be amended or modified only by a Modification. The Contract

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Documents shall not be construed to create a contractual relationship of any kind between any persons or entities other than the Owner and the Vendor. The primary purpose of the Contract is the sale of goods, and any services provided are incidental to such primary purpose.

§ 1.4 Modifications
A Modification is a written amendment to the Contract for changes in the Work signed by both parties or a written order for a minor change in the Work signed by the Architect. A minor change in the Work is a change that is consistent with the intent of the Contract Documents and does not involve an adjustment in the Contract Sum or an extension of the Contract Time.

§ 1.5 The Work
The Work means the Vendor's performance, including the sale of FF&E and any incidental fabrication, shipping, warehousing, delivery, installation, and other items or services required by the Contract Documents and provided, or to be provided, by the Vendor. The Work includes all labor, materials, temporary protection, storage, and equipment necessary to fulfill the Vendor's obligations, except as specifically indicated in the Contract Documents to be the responsibility of others. The Work may constitute the whole or a part of the Project.

§ 1.6 Instruments of Service
Instruments of Service are representations, in any medium of expression now known or later developed, of the tangible and intangible creative work performed by the Architect and the Architect's consultants under their respective professional services agreements. Instruments of Service may include, without limitation, studies, surveys, models, sketches, drawings, specifications, and other similar materials.

§ 1.7 Ownership and Use of Drawings, Specifications, and Other Instruments of Service
§ 1.7.1 The Architect and the Architect's consultants shall be deemed the authors and owners of their respective Instruments of Service, including the Drawings and Specifications, and will retain all common law, statutory, and other reserved rights in their Instruments of Service, including copyrights. The Vendor, sub-vendors, and suppliers shall not own or claim a copyright in the Instruments of Service. Submittal or distribution to meet official regulatory requirements or for other purposes in connection with the Project is not to be construed as publication in derogation of the Architect's or Architect's consultants' reserved rights.

§ 1.7.2 The Vendor, sub-vendors, and suppliers are authorized to use and reproduce the Instruments of Service provided to them, subject to the protocols established pursuant to Sections 1.8 and 1.9, solely and exclusively for execution of the Work. All copies made under this authorization shall bear the copyright notice, if any, shown on the Instruments of Service. The Vendor, sub-vendors, and suppliers may not use the Instruments of Service on other projects, or in connection with additions to this Project outside the scope of the Work without the specific written consent of the Owner, Architect, and the Architect's consultants.

§ 1.8 Digital Data Use and Transmission
The parties shall agree upon protocols governing the transmission and use of Instruments of Service or any other information or documentation in digital form. The parties will use AIA Document E203™–2013, Building Information Modeling and Digital Data Exhibit, to establish the protocols for the development, use, transmission, and exchange of digital data.

§ 1.9 Building Information Models Use and Reliance
Any use of, or reliance on, all or a portion of a building information model without agreement to protocols governing the use of, and reliance on, the information contained in the model and without having those protocols set forth in AIA Document E203™–2013, Building Information Modeling and Digital Data Exhibit, and the requisite AIA Document G202™–2013, Project Building Information Modeling Protocol Form, shall be at the using or relying party's sole risk and without liability to the other party and its vendors or consultants, the authors of, or contributors to, the building information model, and each of their agents and employees.

§ 1.10 Severability
The invalidity of any provision of the Contract Documents shall not invalidate the Contract or its remaining provisions. If it is determined that any provision of the Contract Documents violates any law, or is otherwise invalid or unenforceable, then that provision shall be revised to the extent necessary to make that provision legal and enforceable. In such case the Contract Documents shall be construed, to the fullest extent permitted by law, to give effect to the parties' intentions and purposes in executing the Contract.

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§ 1.11 Notice

§ 1.11.1 Except as otherwise provided in Section 1.11.2, where the Contract Documents require one party to notify or give notice to the other party, such notice shall be provided in writing to the designated representative of the party to whom the notice is addressed and shall be deemed to have been duly served if delivered in person, by mail, by courier, or by electronic transmission in accordance with AIA Document E203™–2013, Building Information Modeling and Digital Data Exhibit, if completed, or as otherwise set forth below:

(If other than in accordance with AIA Document E203–2013, insert requirements for delivering Notice in electronic format such as name, title, and email address of the recipient and whether and how the system will be required to generate a read receipt for the transmission.)

« »

§ 1.11.2 Notice of Claims shall be provided in writing and shall be deemed to have been duly served only if delivered to the designated representative of the party to whom the notice is addressed by certified or registered mail, or by courier providing proof of delivery.

§ 1.12 Assignment of Contract

Neither party to the Contract shall assign the Contract without written consent of the other, except that the Owner may, without consent of the Vendor, assign the Contract to a lender providing financing for the Project if the lender assumes the Owner's rights and obligations under the Contract Documents. The Vendor shall execute all consents reasonably required to facilitate such assignment.

ARTICLE 2 CONTRACT SUM AND PAYMENTS

§ 2.1 Contract Sum

§ 2.1.1 The Owner shall pay the Vendor the Contract Sum in current funds for the Vendor's performance of the Contract. The Contract Sum shall be « » ($ « »), subject to additions and deductions as provided in the Contract Documents.

§ 2.1.2 Alternates

§ 2.1.2.1 Alternates, if any, included in the Contract Sum:

Item	Price

§ 2.1.2.2 Subject to the conditions noted below, the following alternates may be accepted by the Owner following execution of this Agreement. Upon acceptance, the Owner shall issue a Modification to this Agreement.

(Insert below each alternate and the conditions that must be met for the Owner to accept the alternate.)

Item	Price	Conditions for Acceptance

§ 2.1.3 Unit prices, if any:

(Identify the item and state the unit price and the quantity limitations, if any, to which the unit price will be applicable.)

Item	Units and Limitations	Price per Unit ($0.00)

§ 2.1.4 Allowances, if any, included in the Contract Sum:

(Identify each allowance.)

Item	Price

§ 2.1.5 Other:

(Insert provisions for bonus or other incentives, if any, that might result in a change to the Contract Sum.)

« »

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§ 2.2 Payments
§ 2.2.1 The Owner shall make payments to the Vendor in conformance with the following payment terms:
(Insert payment terms, such as payment due dates, deposit requirements, and prompt payment discounts, if any.)

« »

§ 2.2.1.1 The Vendor shall submit requests for payment and receive payment through the Owner per the following Payment Schedule, each Phase of the Work:

a.	At Order Placement (Deposit):	50%
b.	After Delivery/Installation:	40%
c.	Final Payment (Upon completion of Punch List)	10%
	Total:	100%

§ 2.2.1.2 Each Application for Payment shall be accompanied by the following:

a. Where applicable for payment, shipping and storage of material off-site at Vendors, Sub-vendors or Supplier's warehouse, or of similar kind, shall have attached to Pay Application a copy of material receipts, shipping invoices, and/or storage tickets, with appropriate insurance coverage.
b. At the Owner's option and in a form acceptable to the Owner, partial conditional waivers of lien from the Vendor, each Subcontractor, Sub-vendor and material supplier for all work performed by it included in the current Application contingent upon receipt of payment, and for all work performed by it included in all preceding Applications.
c. Payment Terms: Net sixty (60) days from invoice approval by Architect and delivery to Owner. Vendor Invoices shall be approved for payment only after all paperwork is confirmed.
d. Sums owed to the Owner by the Vendor may be deducted from payments otherwise due to the Vendor pursuant to Article 2.

§ 2.2.2 When payment is due pursuant to the payment terms of Section 2.2.1, the Vendor shall submit to the Owner an itemized invoice, supported by data substantiating the Vendor's right to payment.

§ 2.2.3 Except with the Owner's knowledge and consent, the Vendor shall not engage in any activity, or offer any employment, interest, or contribution to the Owner's employees or consultants, that would reasonably appear to compromise the Owner's employees' or consultants' judgment with respect to this Project.

§ 2.2.4 At the time of delivery/installation, the payment shall be approved provided all products are installed per the schedule established in the Contract Documents, and provided that the Owner accepts and has received all items invoiced for and associated documentation.
§ 2.2.5 Final payment shall be due no sooner than thirty-one (31) calendar days and no later than fifty-one (51) calendar days following the date of Final Completion. Final Completion is defined as all products are delivered and accepted, all documentation has been turned over to the Owner, and Owner has received confirmation that all Punch List Items are complete.

ARTICLE 3 TIME
§ 3.1 Contract Time
§ 3.1.1 Unless otherwise provided, Contract Time is the period of time, including authorized adjustments, allotted in the Contract Documents for completion of the Work. The Contract Time shall be measured from the date of commencement. The term "day" as used in the Contract Documents shall mean calendar day unless otherwise specifically defined.

§ 3.1.2 Time limits stated in the Contract Documents are of the essence of the Contract. By executing this Agreement, the Vendor confirms that the Contract Time is a reasonable period for performing the Work.

§ 3.1.3 If the Vendor is delayed at any time in the commencement or progress of the Work by (1) changes ordered in the Work; (2) labor disputes, fire, unusual delay in deliveries, abnormal adverse weather conditions not reasonably anticipatable, unavoidable casualties, or any causes beyond the Vendor's control; or (3) other causes that the Vendor

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asserts, and the Architect determines, justify delay, then the Contract Time shall be extended for such reasonable time as the Architect may determine, subject to the provisions of Article 14.

§ 3.1.4 Occupancy or utilization of all or a designated portion of the Work by the Owner or other Prime Contractors shall not constitute a waiver by the Owner of his rights provided under the General Conditions and these Supplementary General Conditions.

§ 3.2 Date of Commencement
The date of commencement of the Work shall be:
(Check one of the following boxes.)

[« »] The date of this Agreement.

[« »] A date set forth in a notice to proceed issued by the Owner.

[« »] Established as follows:
(Insert a date or a means to determine the date of commencement of the Work.)

« »

If a date of commencement of the Work is not selected, then the date of commencement shall be the date of this Agreement.

§ 3.3 Completion
§ 3.3.1 Completion of the Work occurs upon acceptance of all FF&E in the Contract Documents in accordance with Article 8.

§ 3.3.2 Subject to adjustments of the Contract Time as provided in the Contract Documents, the Vendor shall achieve completion of the entire Work:
(Check the appropriate box and complete the necessary information.)

[« »] Not later than « » (« ») calendar days from the date of commencement of the Work.

[« »] By the following date: « »

§ 3.3.3 Subject to adjustments of the Contract Time as provided in the Contract Documents, if portions of the Work are to be completed prior to completion of the entire Work, the Vendor shall achieve completion of such portions by the following dates:

Portion of Work	Completion Date

ARTICLE 4 OWNER
§ 4.1 The Owner's Representative
The Owner shall identify a representative authorized to act on behalf of the Owner with respect to the Project. The Owner's representative shall not be changed without ten days' prior notice to the Vendor. The Owner identifies the following representative:
(Name, address, email address, and other information)

« »
« »
« »
« »
« »
« »

DRAFT

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§ 4.2 Information and Services Required of the Owner

§ 4.2.1 The Owner shall retain an architect lawfully licensed to practice architecture, or an entity lawfully practicing architecture, in the jurisdiction where the Project is located. That person or entity is identified as the Architect in the Agreement and is referred to throughout the Contract Documents as if singular in number.

§ 4.2.2 Unless otherwise provided in the Contract Documents, the Owner shall provide

- **.1** areas of the Project premises that the Vendor may use to perform the Work;
- **.2** access to the Project premises for the Vendor at reasonable times;
- **.3** information regarding any restrictions on the use of, or access to, the Project premises;
- **.4** suitable space for receipt, inspection, acceptance, and staging of materials and FF&E;
- **.5** utilities and facilities on the Project premises and vertical transportation necessary for progress and execution of the Work; and
- **.6** a secured premises for storage of FF&E until acceptance.
- **.7** the Vendor with Electronic Documents only. All printing and reproduction cost shall be borne by the Vendor.

§ 4.2.3 The Owner shall furnish information or services required of the Owner by the Contract Documents with reasonable promptness. The Owner shall furnish any other information or services under the Owner's control and relevant to the Vendor's performance of the Work with reasonable promptness after receiving the Vendor's written request for such information or services.

ARTICLE 5 VENDOR

§ 5.1 The Vendor's Representative

The Vendor shall identify a representative authorized to act on behalf of the Vendor with respect to the Project. The Vendor's representative shall not be changed without ten days' prior notice to the Owner and Architect. The Vendor identifies the following representative:

(Name, address, email address, and other information)

« »
« »
« »
« »
« »
« »

§ 5.2 The Vendor shall not be relieved of its obligations to perform the Work in accordance with the Contract Documents by activities or duties of the Architect in the Architect's administration of the Contract.

§ 5.3 The Vendor shall coordinate its Work with the work provided by the Owner and the Owner's other vendors, consultants, and contractors. The Vendor may communicate with the Owner's other vendors, consultants, and contractors, for the purposes of completing the Work. The Vendor shall keep the Owner reasonably informed of any such communications. The Vendor shall be entitled to rely on the accuracy and completeness of work and information furnished by the Owner and the Owner's other vendors, consultants, and contractors. The Vendor shall provide prompt written notice to the Owner if the Vendor becomes aware of any error, omission, or inconsistency in such work or information.

§ 5.4 Review of Contract Documents and Inspection of Project Premises by Vendor

§ 5.4.1 Execution of the Contract by the Vendor is a representation that the Vendor has visited the Project premises, if required in the Contract Documents, and correlated personal observations with requirements of the Contract Documents.

- **.1** In general, drawings are diagrammatic and schematic, and cannot indicate every offset, fitting, and accessory required for complete installation and to avoid all conflict with other trades. Vendor shall review drawings to verify spaces available and make reasonable modifications as approved by Architect, without extra costs to Owner based on Vendor field verification. Maintain headroom and other space requirements in all areas; and where such requirements appear inadequate, notify Architect before proceeding.

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§ 5.4.2 Before starting each portion of the Work, including placing orders for FF&E, the Vendor shall (1) carefully study and compare the various Contract Documents relative to that portion of the Work, as well as the information furnished by the Owner pursuant to Section 4.2; (2) visit and inspect the Project premises in order to gain an understanding of the conditions under which the Work is to be performed; (3) determine availability of facilities for access, delivery, transportation, and staging; (4) determine any restrictions imposed by the Owner and the Owner's separate vendors and contractors; and (5) correlate observations with the requirements of the Contract Documents. The Vendor shall promptly report to the Owner and Architect conditions observed that would impede the Vendor's performance of the Work. The Vendor's obligations to review the Contract Documents are for the purpose of facilitating delivery and installation by the Vendor and are not for the purpose of discovering errors, omissions, or inconsistencies in the Contract Documents; however, the Vendor shall promptly report to the Architect any errors, inconsistencies, or omissions discovered by or made known to the Vendor as a request for information in such form as the Architect may require. It is recognized that the Vendor's review is made in the Vendor's capacity as a vendor and not as a licensed design professional, unless otherwise specifically provided for in the Contract Documents.

§ 5.4.3 The Vendor is not required to ascertain that the Contract Documents are in accordance with applicable laws, statutes, ordinances, codes, rules and regulations, or lawful orders of public authorities, but the Vendor shall promptly report to the Architect any nonconformity discovered by or made known to the Vendor as a request for information in such form as the Architect may require.

§ 5.4.4 If the Vendor believes that additional cost or time is involved because of clarifications or instructions the Architect issues in response to the Vendor's notices or requests for information pursuant to Sections 5.4.2 or 5.4.3, the Vendor shall submit Claims as provided in Article 14. If the Vendor fails to perform the obligations of Sections 5.4.2 or 5.4.3, the Vendor shall pay such costs and damages to the Owner, subject to Section 14.8, as would have been avoided if the Vendor had performed such obligations. If the Vendor performs those obligations, the Vendor shall not be liable to the Owner or Architect for damages resulting from errors, inconsistencies, or omissions in the Contract Documents, for differences between field measurements or conditions and the Contract Documents, or for nonconformities of the Contract Documents to applicable laws, statutes, ordinances, codes, rules and regulations, and lawful orders of public authorities.

§ 5.5 Supervision

§ 5.5.1 The Vendor shall supervise and direct the Work using the Vendor's best skill and attention. The Vendor shall be solely responsible for and have control over the means, methods, techniques, sequences, and procedures of fabrication, shipment, delivery, and installation, and for coordinating all portions of the Work under the Contract, unless the Contract Documents give other specific instructions concerning these matters.

§ 5.5.2 The Vendor shall be responsible to the Owner for acts and omissions of the Vendor's employees, sub-vendors, and their agents and employees, and other persons or entities performing portions of the Work for or on behalf of the Vendor or any of its sub-vendors. No Vendor's employees, Sub-vendors and their agents and employees, nor any other persons or entities performing portions of the Work for or on behalf of the Vendor or any of its Sub-vendors who is a convicted sex offender or who is listed on any sex offender registry shall be allowed on the Project site under any circumstances. Background checks of on-site employees are required and must be done through the Owner's source. The cost of each background check is estimated to be $20.00 per employee and will be the responsibility of the Vendor. The cost of Vendor's employee background checks will be deducted from their Contract via change order.

§ 5.5.3 The Vendor shall be responsible for inspection of portions of the Work already performed to determine that such portions are in proper condition for subsequent Work.

§ 5.6 Labor and Materials

§ 5.6.1 Unless otherwise provided in the Contract Documents, the Vendor shall provide and pay for labor, materials, tools, installation equipment and machinery, delivery, and other facilities and services necessary for proper execution and completion of the Work whether temporary or permanent and whether or not incorporated or to be incorporated in the Work.

§ 5.6.2 The Vendor shall enforce strict discipline and good order among the Vendor's employees and other persons carrying out the Work. The Vendor shall not permit employment of unfit persons or persons not skilled in tasks assigned to them.

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§ 5.6.3 The Vendor shall make no substitution or change in the Contract Documents unless done in accordance with a Modification, and after providing the Architect notice and a reasonable opportunity to evaluate the proposed substitution or change and consult with the Owner.

§ 5.6.4 The Vendor shall comply with the dimensions, figures and notations marked on the Drawings in preference to what the drawings may measure in scale; however, in the absence of figured dimensions, the Vendor shall contact the Architect for solution. Vendors shall not scale dimensions from the drawings unless expressly directed to do so by the Architect.

§ 5.7 Taxes

Unless otherwise provided in the Contract Documents, the Vendor shall pay sales, consumer, use, and other similar taxes that are legally enacted when quotes are received or negotiations concluded, whether or not yet effective or merely scheduled to go into effect.

§ 5.7.1 Vendor shall include in his proposal the cost of any and all State and Federal taxes applying to the operation of performing his Contract.

§ 5.7.2 The Vendor shall accept and assume the liability for timely compliance with the payment of all assessments and taxes under State and Federal Social Security laws, Unemployment Insurance, and other similar laws which otherwise might impose liability on the Owner in connection with the work described in Contract.

§ 5.7.3 This project is not tax-exempt and all appropriate tax costs shall be included.

§ 5.8 Permits, Fees, Notices, and Compliance with Laws

§ 5.8.1 Unless otherwise provided in the Contract Documents, the Vendor shall secure and pay for permits, fees, licenses, and inspections by government agencies necessary for proper execution and completion of the Work that are customarily secured after execution of the Contract and legally required at the time bids are received or negotiations concluded.

§ 5.8.2 The Vendor shall comply with and give notices required by applicable laws, statutes, ordinances, codes, rules and regulations, and lawful orders of public authorities applicable to performance of the Work. If the Vendor performs Work knowing it to be contrary to applicable laws, statutes, ordinances, codes, rules and regulations, or lawful orders of public authorities, the Vendor shall assume appropriate responsibility for such Work and shall bear the costs attributable to correction.

§ 5.9 Allowances

The Vendor shall include in the Contract Sum all allowances stated in the Contract Documents. The Owner shall select items under allowances with reasonable promptness. Allowance amounts shall include the costs to the Vendor of items delivered at the Project premises and all required taxes, less applicable trade discounts. Vendor's costs for unloading and handling at the Project premises, labor, installation, overhead, profit, and other expenses contemplated for stated allowance amounts shall be included in the Contract Sum but not in the allowance. Whenever costs are more than or less than allowances, the Contract Sum shall be adjusted accordingly by Modification. The amount of the Modification shall reflect the difference between actual costs and the allowances under Section 2.1.4.

§ 5.10 Vendor's Schedules

§ 5.10.1 The Vendor, promptly after being awarded the Contract, shall submit for the Owner's and Architect's information a progress schedule for the Work. The schedule shall not exceed time limits current under the Contract Documents, shall be revised at appropriate intervals as required by the progress of the Work and Project, shall be related to the entire Project, and shall provide for expeditious and practicable execution of the Work.

§ 5.10.2 The Vendor shall perform the Work in general accordance with the most recent schedule submitted to the Owner and Architect.

§ 5.10.3 The Vendor's progress schedule shall indicate dates for commencement and completion of phases of the Work within the Contract Time, including dates for order placement, fabrication, shipping, delivery, and installation. The schedule shall indicate other critical dates, such as deadlines for approval of submittals of colors, finishes, and materials. The Vendor shall obtain and submit for the Owner's and the Architect's information written confirmation from sub-vendors of dates of fabrication and delivery.

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§ 5.10.4 The Vendor shall cooperate with the Owner and Architect in coordinating the Vendor's progress schedule with those of contractors and separate vendors and with the requirements of the Owner and Architect. The Vendor shall cooperate in determining mutually acceptable dates and times for delivery, installation, and inspection of the Work, and use of services and facilities provided to the Vendor, all to be confirmed in writing within a reasonable time in advance of such dates and times.

§ 5.11 Submittals

§ 5.11.1 The Vendor shall review for compliance with the Contract Documents and submit to the Architect shop drawings, product data, samples, and similar submittals required by the Contract Documents in coordination with the Vendor's progress schedule and in such sequence as to allow the Architect reasonable time for review. By submitting shop drawings, product data, samples, and similar submittals, the Vendor represents to the Owner and Architect that the Vendor has (1) reviewed and approved them; (2) determined and verified materials, field measurements, and field installation criteria related thereto, or will do so; and (3) checked and coordinated the information contained within such submittals with the requirements of the Work and of the Contract Documents. The Work shall be in accordance with reviewed submittals. Shop drawings, product data, samples and similar submittals are not Contract Documents.

§ 5.11.2 The Vendor shall provide the Owner with available manufacturer's warranty documents, product data, and material safety data sheets.

§ 5.12 Cleaning Up

The Vendor shall keep the Project premises and surrounding area free from accumulation of waste materials and rubbish caused by operations under the Contract. At completion of the Work, the Vendor shall remove waste materials, rubbish, the Vendor's tools, construction equipment, machinery, and surplus material from and about the Project.

§ 5.13 Access to Work

The Vendor shall provide the Owner and Architect with reasonable access to the Work in preparation and progress wherever located.

§ 5.14 Indemnification

§ 5.14.1 To the fullest extent permitted by law, the Vendor shall indemnify and hold harmless the Owner, Architect, Architect's consultants, and agents and employees of any of them from and against claims, damages, losses and expenses, including but not limited to attorneys' fees, arising out of or resulting from performance of the Work, provided that such claim, damage, loss, or expense is attributable to bodily injury, sickness, disease or death, or to injury to or destruction of tangible property (other than the Work itself), but only to the extent caused by the negligent acts or omissions of the Vendor, a sub-vendor, anyone directly or indirectly employed by them, or anyone for whose acts they may be liable, regardless of whether or not such claim, damage, loss, or expense is caused in part by a party indemnified hereunder. Such obligation shall not be construed to negate, abridge, or reduce other rights or obligations of indemnity which would otherwise exist as to a party or person described in this Section 5.14.1.

§ 5.14.2 In claims against any person or entity indemnified under Section 5.14.1 by an employee of the Vendor, a sub-vendor, anyone directly or indirectly employed by them, or anyone for whose acts they may be liable, the indemnification obligation under Section 5.14.1 shall not be limited by a limitation on amount or type of damages, compensation, or benefits payable by or for the Vendor or sub-vendor under workers' compensation acts, disability benefit acts, or other employee benefit acts.

§ 5.14.3 Provided the Owner has fulfilled its payment obligations under the Contract Documents, the Vendor shall defend and indemnify the Owner from all loss, liability, damage or expense, including reasonable attorney's fees and litigation expenses, arising out of any lien claim or other claim for payment by any sub-vendor or supplier of any tier. Upon receipt of notice of a lien claim or other claim for payment, the Owner shall notify the Vendor. If approved by the applicable court, when required, the Vendor may substitute a surety bond for the property against which the lien or other claim for payment has been asserted.

§5.15 Use of Site

§ 5.15.1 The Vendor shall not bring any hazardous substance or material onto the Project site, as defined under applicable federal, state or local environmental statutes, laws, regulations and ordinances, and shall prohibit all Sub-Vendors and any other individuals or entities from bringing such hazardous substances onto the Project site.

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§ 5.15.2 The Vendor, its employees and sub-vendors shall only park vehicles in areas designated by Construction Manager and Owner. Onsite parking may not be available, and Vendor and their Sub-vendors shall be responsible for transport of their employees and materials to project site at no additional cost to owner.

§ 5.15.3 All onsite trailers, containers, etc. must be coordinated with the Construction Manager.

§ 5.15.4 The Vendor shall make all repairs or pay for repairing of streets, sidewalks, alleys, and any other access ways, as they are affected by his construction.

§ 5.15.5 The Vendor shall make all repairs or pay for repairing of streets, sidewalks, alleys, and any other access ways, as they are affected by his construction.

ARTICLE 6 TITLE AND RISK OF LOSS

§ 6.1 Title to all FF&E shall be transferred to the Owner upon acceptance in accordance with Article 8.

§ 6.2 The risk of loss with respect to all FF&E provided by the Vendor shall remain with the Vendor, and the Owner has no obligation to insure such FF&E, until acceptance in accordance with Article 8.

ARTICLE 7 DELIVERY AND INSTALLATION

§ 7.1 The Vendor shall deliver FF&E in accordance with the Vendor's progress schedule, or at a time agreed upon by the Owner and Architect, and in accordance with Article 5.

§ 7.2 Delivery and installation of all FF&E shall be made at the Project premises unless otherwise specified in the Contract Documents.

§ 7.3 The Vendor shall coordinate with the Owner regarding the logistics of the Vendor's delivery and installation obligations at the Project premises.

ARTICLE 8 ACCEPTANCE

§ 8.1 The Owner and Architect may conduct a preliminary observation of FF&E within seven days after its delivery to the Project premises for the purpose of verifying the delivery and quantities. Preliminary observations shall not constitute acceptance of, taking charge over, or taking control of, such FF&E. The Architect shall report to the Vendor any defects, damage, deficiencies, or nonconformity observed during the preliminary observation.

§ 8.2 When the Vendor considers the Work, or a portion thereof which the Owner agrees to accept separately, to be complete, the Vendor shall notify the Owner and Architect. The Vendor shall allow the Owner and Architect a reasonable amount of time to observe the FF&E to determine, based on conformance with the Contract Documents, if it is accepted or rejected in whole or in part. Based on the Architect's recommendation to the Owner and the Owner's own inspection, if any, the Owner shall accept or reject the FF&E, in whole or in part.

§ 8.3 If the Owner rejects any of the FF&E, the Owner, or the Architect acting on behalf of the Owner, shall notify the Vendor within seven days of the date of observation, specifying the basis for such rejection. Upon rejection, the Vendor shall provide a remedy and evidence of arrangements to accomplish such remedy. The Owner shall allow the Vendor a reasonable amount of time to remedy the rejected FF&E. When the Vendor considers the remedied FF&E to be complete, the parties shall follow the procedures set forth in Section 8.2. If the Owner rejects any of the FF&E for a second time, the Owner shall promptly notify the Vendor and the Vendor shall promptly remove the rejected FF&E from the Project premises and refund payments made for such rejected goods to the Owner. If the Vendor disagrees with an Owner's rejection, the Vendor may make a claim.

§ 8.4 FF&E not observed in accordance with Section 8.2 or rejected in accordance with Section 8.3 shall be deemed accepted.

§ 8.5 The Owner's acceptance under this Article 8 cannot be revoked; however, the provisions of this Article 8 do not preclude recovery of damages as provided by law. The Owner's acceptance, or failure to discover a Vendor's breach after acceptance, shall not bar the Owner from making claims in accordance with Article 14 or from remedies and damages due to the Vendor's breach of this Agreement, including the Vendor's breach of warranties in Article 9.

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ARTICLE 9 WARRANTIES

§ 9.1 The Vendor warrants to the Owner that the FF&E furnished under the Contract will be of good quality and new unless the Contract Documents require or permit otherwise. The Vendor further warrants that the FF&E will conform to the requirements of the Contract Documents. FF&E not conforming to these requirements may be considered defective. The Vendor's warranty excludes remedy for damage or defect caused by abuse, alterations to the FF&E not executed by the Vendor, improper or insufficient maintenance, improper operation, or normal wear and tear and normal usage.

§ 9.2 The Vendor assigns to the Owner all FF&E manufacturers' warranties and guarantees upon acceptance in accordance with Article 8.

§ 9.3 The Vendor hereby provides to the Owner all warranties relating to the FF&E implied by law, including the warranty of merchantability and warranty of fitness for a particular purpose.

§ 9.4 The Vendor acknowledges that no exclusion of, or limitation on, warranties contained in any proposal, product literature, or other submittal shall affect the warranties provided in this Article 9.

ARTICLE 10 ARCHITECT

§ 10.1 The Architect will provide administration of the Contract as described in the Contract Documents and will be an Owner's representative during the Vendor's performance, and until completion, of the Work. The Architect will have authority to act on behalf of the Owner only to the extent provided in the Contract Documents, unless otherwise modified in writing in accordance with other provisions of the Contract.

§ 10.2 Except as otherwise provided in the Contract Documents or when direct communications have been specially authorized, the Owner and Vendor shall endeavor to communicate with each other through the Architect about matters arising out of or relating to the Contract. Communications by and with the Architect's consultants shall be through the Architect. Communications by and with sub-vendors and suppliers shall be through the Vendor. Communications by and with separate vendors shall be through the Owner. The Contract Documents may specify other communication protocols.

§ 10.3 The Architect will assist the Owner in coordinating schedules for fabrication, delivery, and installation of the Work, but will not be responsible for failure of the Vendor or a sub-vendor to meet schedules for completion or to perform their respective duties and responsibilities in conformance with applicable schedules.

§ 10.4 The Architect will visit the Project premises at intervals appropriate to the stage of the Work, or as otherwise agreed with the Owner, to become generally familiar with, and to keep the Owner informed about, the progress and quality of the portion of the Work completed, and to determine, in general, if the Work observed is being performed in a manner indicating that the Work, when fully completed, will be in accordance with the Contract Documents. The Architect will not have control over, charge of, or responsibility for, the means, methods, techniques, sequences, or procedures of fabrication, shipment, delivery, storage, or installation, or for the safety precautions and programs in connection with the Work, as these are solely the Vendor's rights and responsibilities under the Contract Documents.

§ 10.5 The Architect may order minor changes in the Work. The Architect's order for minor changes shall be in writing. If the Vendor believes that the proposed minor change in the Work will affect the Contract Sum or Contract Time, the Vendor shall notify the Architect and shall not proceed to implement the change in the Work. If the Vendor performs the Work set forth in the Architect's order for a minor change without prior notice to the Architect that such change will affect the Contract Sum or Contract Time, the Vendor waives any adjustment to the Contract Sum or extension of the Contract Time.

§ 10.6 The Architect will conduct observations of FF&E and provide recommendations as set forth in Article 8. Pursuant to Article 8, the Architect is only responsible for identifying defects, deficiencies, or nonconformities that the Architect actually observes, or reasonably should observe, during its observations. The Architect is not required to make exhaustive or continuous observations to fulfill its responsibilities in Article 8 and has no responsibility to discover latent defects.

§ 10.7 The Architect will review or take other appropriate action upon the Vendor's submittals such as shop drawings, product data, and samples, but only for the limited purpose of checking for conformance with information given and the design concept expressed in the Contract Documents.

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§ 10.8 Damages incurred by the Vendor shall be limited to Project site specific actual damages and shall not include any off-site or other home office overhead, lost business opportunities, lost profit, lost reputation or similar damages.

§ 10.9 When a written decision of the Architect states that (1) the decision is final but subject to mediation and (2) a demand for mediation of a claim covered by such decision must be made within thirty (30) days after the date on which the party making the demand receives the final written decision, then failure to demand mediation within the said thirty (30) day period shall result in the Architect's decision becoming final and binding upon the Owner and Vendor.

§ 10.10 The parties shall endeavor to resolve their Claims by mediation. Requests for mediation shall be filed in writing with the other party to the Contract. Mediation shall proceed in advance of legal or equitable proceedings, which may be stayed pending mediation for a period of sixty (60) days from the date of filing, unless stayed for a longer period by Agreement of the parties or Court Order.

ARTICLE 11 RELATED ACTIVITIES OF OWNER OR OF SEPARATE VENDORS

§ 11.1 The Owner shall coordinate the activities of the Owner's own forces and of each separate vendor or contractor, if any, with the Work.

§ 11.2 If the Work depends for proper execution or results upon activities by the Owner or a separate vendor or contractor, the Vendor shall, prior to proceeding with that portion of the Work, promptly report to the Owner and Architect apparent discrepancies or defects in, or arising from, the activities of the Owner or separate vendors or contractors, that would impede the Vendor in achieving proper execution and results. If the Vendor fails to report reasonably discoverable discrepancies or defects, it shall be responsible for deficiencies or defects in its Work due to such deficiencies or defects.

§ 11.3 The Vendor shall reimburse the Owner for costs the Owner incurs that are payable to a separate vendor or contractor because of the Vendor's delays, improperly timed activities, or damage to the work of a separate vendor or contractor. The Owner shall be responsible to the Vendor for costs the Vendor incurs because of the delays, improperly timed activities, or damage to the Work caused by a separate vendor or contractor.

§ 11.4 If a dispute arises among the Vendor, separate vendors, or contractors, and the Owner as to the responsibility under their respective contracts for maintaining the Project premises and surrounding area free from waste materials and rubbish, the Owner may clean up and the Architect will allocate the cost among those responsible.

§ 11.5 If work done by the separate Vendor is damaged by the Vendor or if work done by the Vendor is damaged by the separate Vendor and the Owner is sued by one or the other, the Owner shall defend such proceeding at the Vendor 's expense. If any judgment or award against the Owner arises there from, the Vendor shall pay or satisfy it. If no judgment or award arises against the Owner, the Vendor shall pay all attorney's fees and court or arbitration costs.

§ 11.6 A Vendor shall not endanger the work of any other Vendors on the project by cutting, excavating, or otherwise altering any work by others. Only written consent from the Architect shall authorize cutting or altering by a Vendor of work done by another Vendor under a separate contract, involved with this Project.

ARTICLE 12 PROTECTION OF PERSONS AND PROPERTY

§ 12.1 Safety Precautions and Programs

The Vendor shall be responsible for initiating, maintaining, and supervising all safety precautions and programs in connection with the performance of the Contract. The Vendor shall take reasonable precautions for safety of, and shall provide reasonable protection to prevent damage, injury, or loss to

- **.1** employees on the Work and other persons who may be affected thereby;
- **.2** the Work, and materials and FF&E to be incorporated therein, whether in storage on or off the Project premises, under care, custody, or control of the Vendor or sub-vendors; and
- **.3** other property at the Project premises or adjacent thereto. Any such property, including areas used for temporary field offices, storage sheds and material storage and assembly, shall be restored to its original condition, unless otherwise specified, without cost to the Owner.
- **.4** All damages to the building systems, including but not limited to walls, wood trim, and doors, caused by and identified as being caused by the vendors, sub-vendors, or suppliers installers, and which will be prepared and issued as a 'Punch List' by the Architect, is to be repaired by the Owner's Construction Contractor currently on site, and all costs associated with corrective work required for the damages to these systems are the sole responsibility of the Vendor.

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The Vendor shall comply with, and give notices required by, applicable laws, statutes, ordinances, codes, rules and regulations, and lawful orders of public authorities bearing on safety of persons and property and their protection from damage, injury, or loss. The Vendor shall promptly remedy damage and loss to property caused in whole or in part by the Vendor, sub-vendors, or anyone directly or indirectly employed by any of them, or by anyone for whose acts they may be liable and for which the Vendor is responsible under Sections 12.1.2 and 12.1.3. The Vendor may make a claim for the cost to remedy the damage or loss to the extent such damage or loss is attributable to acts or omissions of the Owner or Architect, or of anyone for whose acts either of them may be liable, and not attributable to the fault or negligence of the Vendor. The foregoing obligations of the Vendor are in addition to the Vendor's obligations under Section 5.14.

§ 12.2 Hazardous Materials and Substances

§ 12.2.1 The Vendor is responsible for compliance with the requirements of the Contract Documents regarding hazardous materials or substances. If the Vendor encounters a hazardous material or substance not addressed in the Contract Documents, and if reasonable precautions will be inadequate to prevent foreseeable bodily injury or death to persons resulting from a material or substance, including but not limited to asbestos or polychlorinated biphenyl (PCB), encountered on the Project premises by the Vendor, the Vendor shall, upon recognizing the condition, immediately stop Work in the affected area and notify the Owner and Architect of the condition. When the material or substance has been rendered harmless, Work in the affected area shall resume upon written agreement of the Owner and Vendor. By written agreement between the Owner and Vendor, the Contract Time shall be extended appropriately, and the Contract Sum shall be increased in the amount of the Vendor's reasonable additional costs of shutdown, delay, and start-up.

§ 12.2.2 To the fullest extent permitted by law, the Owner shall indemnify and hold harmless the Vendor, sub-vendors, Architect, Architect's consultants, and agents and employees of any of them from and against claims, damages, losses, and expenses, including but not limited to attorneys' fees, arising out of or resulting from performance of the Work in the affected area, if in fact, the material or substance presents the risk of bodily injury or death as described in Section 12.2.1 and has not been rendered harmless, provided that such claim, damage, loss, or expense is attributable to bodily injury, sickness, disease or death, or to injury to or destruction of tangible property (other than the Work itself), except to the extent that such damage, loss, or expense is due to the fault or negligence of the party seeking indemnity.

§ 12.2.3 If, without negligence on the part of the Vendor, the Vendor is held liable by a government agency for the cost of remediation of a hazardous material or substance solely by reason of performing Work as required by the Contract Documents, the Owner shall indemnify the Vendor for all cost and expense thereby incurred.

ARTICLE 13 INSURANCE

§ 13.1 The Vendor shall purchase and maintain insurance of the types and limits of liability, containing the endorsements, and subject to the terms and conditions, as described in this Article 13 or elsewhere in the Contract Documents. The Vendor shall purchase and maintain the insurance required by this Agreement from an insurance company or insurance companies lawfully authorized to issue insurance in the jurisdiction where the Project is located. The Vendor shall maintain the required insurance from the date of commencement of the Work to the date of completion of the Work unless a different duration is stated below.

§ 13.1.1 The Vendor shall purchase from and maintain the following insurance coverages:

- **.1** Worker's compensation and employer's liability;
- **.2** General liability, on an occurrence basis, including coverage for:
  - Products/completed operations, and
  - Personal and advertising injury;
- **.3** Automobile liability on an "any auto" basis.

All required insurance coverages must be written by insurance companies acceptable to Owner. All insurance companies must have a minimum A.M. Best's financial strength rating of A- or better, or an equivalent rating from another respected rating agency, and an A.M. Best's size rating of VII or greater

§13.1.2 The insurance policies required by Section 13.1.1 shall provide limits no less than the following:

Worker's compensation	Statutorily required limits
Employer's liability	$1,000,000 each accident

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	$1,000,000 disease – each employee $1,000,000 disease – policy limit
General liability	$5,000,000 each occurrence $5,000,000 personal injury & advertising injury $5,000,000 Project general aggregate $5,000,000 Project product-completed operations aggregate
Automobile liability	$5,000,000 combined single limit each accident

The required limits can be met by any combination of primary and excess/umbrella liability policies.

§13.1.3 The general liability and any umbrella or excess liability policy that provides coverage excess of the general liability policy must name the Owner as an additional insured. Each such policy must be amended to state clearly that the Vendor's policy will be primary, and the Owner's policy will be excess as respects any claim brought against the Owner arising out of the Work.

§13.1.4 No changes that reduce or eliminate coverage provided in standard policy forms (e.g., independent contractors' coverage, broad form property damage, contractual liability coverage, etc.) are allowed without the written permission of the Owner.

§13.1.5 Coverage shall be maintained without interruption from the date of commencement of the Work until the date of final payment, except completed operations coverage shall be maintained until the expiration of the period for correction of the Work or for two years from date of final payment, whichever is later.

§13.1.6 Evidence of each of the required insurance policies is to be provided on ACORD form 25-S. Such certificates of insurance shall be filed with the Owner prior to commencement of the Work and thereafter upon renewal or replacement of each required policy of insurance. These certificates and the insurance policies required by this Section 11.1 shall contain a provision that coverages afforded under the policies will not be canceled until at least 30 days' prior written notice has been given to the Owner. The words "endeavor to" and "but failure to do so shall impose no obligation or liability of any kind upon the insurer, its agents or representatives" are to be deleted from the Cancellation section of the certificates. An additional certificate of insurance evidencing continuation of coverage for completed operations shall be submitted with the final Application for Payment as required by Section 9.10.2 and thereafter upon renewal or replacement of such coverage until the expiration of the time required by this Section 11.1. Information concerning reduction of coverage on account of revised limits or claims paid under the general aggregate, or both, shall be furnished by the Vendor with reasonable promptness

§ 13.2 The Owner shall purchase and maintain from the date vertical construction begins, or, in the case of work on existing structures, from the date when the Work commences, until the date of Final Completion property insurance in the amount of the initial Contract Sum less the cost of:

- Site work (excavating, grading and other groundwork),
- Foundations below the lowest basement floor, and
- Sewers, heating, electrical and other utility related construction below ground level and 50 feet or more from the boundaries of the building that is the subject of the Work; plus, the cost of:
- Subsequent contract modifications, and
- Materials supplied or installed by others that are not included in the Contract Sum.

All insurance companies must have a minimum A.M. Best's financial strength rating of A- or better, or an equivalent rating from another respected rating agency, and an A.M. Best's size rating of VII or greater.

§ 13.2.1 The Vendor shall at the Vendor's own expense provide insurance coverage for materials stored off the site after written approval of the Owner at the value established in the approval, and also for portions of the Work in transit until such materials are permanently attached to the Work or delivered on site.

§13.2.2 The property insurance shall:

.1 Include the interests of the Architect, Construction Manager, Contractors, Subcontractors and Sub-subcontractors;

.2 Include coverage for temporary buildings, falsework, and portions of the Work in transit or stored off the site;

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.3 Include coverage for debris removal in an amount no less than 25% of the amount of loss;
.4 Include coverage for the reasonable compensation for an Architect's services and expenses required as a result of an insured loss;
.5 At Owner's option, include coverage for the costs incurred as a result of enforcement of any building codes or other legal requirement; and,
.6 At Owner's option, include coverage for loss of use of the Work arising from delay in completion caused by an insured peril.

§ 13.2.3 Waivers of Subrogation. The Owner and Vendor waive all rights against (1) each other and any of their subcontractors, sub-subcontractors, sub-vendors, agents and employees, each of the other, and (2) the Construction Manager, Architect, Architect's consultants, separate contractors described in Article 6, if any, and any of their subcontractors, sub-subcontractors, sub-vendors, agents and employees, for damages caused by fire or other causes of loss to the extent covered by property insurance obtained pursuant to this Section 11.3 or other property insurance applicable to the Work, except such rights as they have to proceeds of such insurance held by the Owner as fiduciary. The Owner or Vendor, as appropriate, shall require of the Construction Manager, Construction Manager's consultants, Architect, Architect's consultants, Owner's separate contractors described in Article 6, if any, and the subcontractors, sub-subcontractors, agents and employees of any of them, by appropriate agreements, written where legally required for validity, similar waivers each in favor of other parties enumerated herein. The policies shall provide such waivers of subrogation by endorsement or otherwise. A waiver of subrogation shall be effective as to a person or entity even though that person or entity would otherwise have a duty of indemnification, contractual or otherwise, did not pay the insurance premium directly or indirectly, and whether or not the person or entity had an insurable interest in the property damaged.

§ 13.2.4 A loss insured under the Owner's property insurance shall be adjusted by the Owner as fiduciary and made payable to the Owner as fiduciary for the insureds, as their interests may appear. The Owner shall deposit in a separate account proceeds received from any property insurance required by this Section 13.2 following a covered loss. Owner shall distribute such proceeds in accordance with such agreement as the parties in interest may reach. The Vendor shall pay Sub-vendors their just shares of insurance proceeds received by the Vendor, and by appropriate agreements, written where legally required for validity, shall require Sub-vendors to make payments to their Sub-subvendors in similar manner. If there is a disagreement about the distribution of proceeds, the Owner, the Vendor and other parties of interest will utilize binding arbitration to resolve the dispute.

§ 13.3 Waiver of Subrogation
§ 13.3.1 The Owner and Vendor waive all rights against (1) each other and any of their sub-vendors, agents, and employees, each of the other; (2) the Architect and Architect's consultants; and (3) separate vendors or contractors, if any, and any of their sub-vendors, subcontractors, sub-subcontractors, agents, and employees, for damages caused by fire, or other causes of loss, to the extent those losses are covered by property insurance required by this Agreement or other property insurance applicable to the Project, except such rights as they have to proceeds of such insurance. The Owner or Vendor, as appropriate, shall require similar written waivers in favor of the individuals and entities identified above from the Architect, Architect's consultants, separate vendors and contractors, and sub-vendors, subcontractors, and sub-subcontractors. The policies of insurance purchased and maintained by each person or entity agreeing to waive claims pursuant to this Section 13.3.1 shall not prohibit this waiver of subrogation. This waiver of subrogation shall be effective as to a person or entity (1) even though that person or entity would otherwise have a duty of indemnification, contractual, or otherwise, (2) even though that person or entity did not pay the insurance premium directly or indirectly, or (3) whether or not the person or entity had an insurable interest in the damaged property.

§ 13.13.2 A loss insured under the Owner's property insurance shall be adjusted by the Owner as fiduciary and made payable to the Owner as fiduciary for the insureds, as their interests may appear, subject to requirements of any applicable mortgagee clause. The Owner shall pay the Architect and Vendor their just shares of insurance proceeds received by the Owner, and by appropriate agreements, written where legally required for validity, the Architect and Vendor shall make payments to their consultants and sub-vendors in similar manner.

ARTICLE 14 CLAIMS AND DISPUTES
§ 14.1 Binding Dispute Resolution
For any claim subject to, but not resolved by, mediation pursuant to Section 14.6, the method of binding dispute resolution shall be as follows:
(Check the appropriate box.)

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[« X »] Litigation in a court of competent jurisdiction

[« »] Other *(Specify)*

« »

If the Owner and Vendor do not select a method of binding dispute resolution, or do not subsequently agree in writing to a binding dispute resolution method other than litigation, claims will be resolved in a court of competent jurisdiction.

§14.1.1 In the event that mediation is not successful in resolving any or all disputes, the Owner and Vendor specifically reserve all of their legal and equitable remedies applicable to such dispute or disputes. Any legal or equitable action regarding the Agreement shall be commenced and tried in a state Court in the state and county where the Project that is the subject matter of the Agreement is located. The Owner and Vendor specifically consent to the personal jurisdiction and venue of such court or courts.

§ 14.2 Claims, disputes, and other matters in question arising out of or relating to this Contract, including those alleging an error or omission by the Architect but excluding those arising under Section 12.2, shall be referred initially to the Architect for decision. Such matters, except those waived as provided for in Section 14.8, shall, after initial decision by the Architect or 30 days after submission of the matter to the Architect, be subject to mediation as a condition precedent to binding dispute resolution.

§ 14.3 Notice of Claims
Claims by either the Owner or Vendor shall be initiated by notice to the other party in accordance with Section 1.11.2.

§ 14.4 Time Limits on Claims
The Owner and Vendor shall commence all claims and causes of action against the other and arising out of or related to the Contract in accordance with the requirements of the final dispute resolution method selected in this Agreement, whether in contract, tort, breach of warranty, or otherwise, within the period specified by applicable law, but in any case not more than 10 years after the date of completion of the Work. The Owner and Vendor waive all claims and causes of action not commenced in accordance with this Section 14.4.

§ 14.5 If a claim, dispute, or other matter in question relates to or is the subject of a mechanic's lien, the party asserting such matter may proceed in accordance with applicable law to comply with the lien procedures, including notice or filing deadlines.

§ 14.6 The parties shall endeavor to resolve their disputes by mediation which, unless the parties mutually agree otherwise, shall be administered by the American Arbitration Association in accordance with their Construction Industry Mediation Procedures in effect on the date of this Agreement. A request for mediation shall be made in writing, delivered to the other party to this Agreement, and filed with the person or entity administering the mediation. The request may be made concurrently with the binding dispute resolution proceedings but, in such event, mediation shall proceed in advance of binding dispute resolution proceedings, which shall be stayed pending mediation for a period of 60 days from the date of filing, unless stayed for a longer period by agreement of the parties or court order. If an arbitration is stayed pursuant to this Section, the parties may nonetheless proceed to the selection of the arbitrator(s) and agree upon a schedule for later proceedings.

§ 14.7 Continuing Contract Performance
Pending final resolution of a Claim, except as otherwise agreed in writing, the Vendor shall proceed diligently with performance of the Contract and the Owner shall continue to make payments in accordance with the Contract Documents.

§ 14.8 Waiver of Claims for Consequential Damages
The Vendor and Owner waive claims against each other for consequential damages arising out of or relating to this Contract. This mutual waiver includes

.1 damages incurred by the Owner for rental expenses, for losses of use, income, profit, financing, business and reputation, and for loss of management or employee productivity or of the services of such persons; and

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.2 damages incurred by the Vendor for principal office expenses including the compensation of personnel stationed there, for losses of financing, business, and reputation, and for loss of profit except anticipated profit arising directly from the Work.

This mutual waiver is applicable, without limitation, to all consequential damages. Nothing contained in this Section 14.8 shall be deemed to preclude an assessment of liquidated damages, when applicable, in accordance with the requirements of the Contract Documents.

§14.9 Mechanic's Liens

§14.9.1 If a Subcontractor, Sub-vendor or material supplier of the Vendor files a notice of intention to hold a mechanic's lien or notice of personal liability against the Project Property, the Vendor shall hold the Owner harmless from any claim based upon such notice. In doing so, the Vendor shall either pay the lienholder, cause such notice of lien to be released or provide a Vendor's bond with surety in form and amount acceptable to the Owner, guaranteeing the payment of such lien, or otherwise post security acceptable to the Owner in its sole discretion, in order to assure payment of such lien. The Vendor shall bear all costs necessary to hold the Owner harmless from any claim based upon such notice. In the event the Vendor fails to promptly pay or discharge such lien or notice, the Owner shall have the right to retain an additional amount from any payment then or thereafter due the Vendor sufficient to satisfy and defend such lien or notice and the Contract Sum shall be adjusted accordingly. If the portion unpaid to the Vendor is insufficient to satisfy and defend such lien or notice, the Vendor shall be liable for and immediately reimburse the Owner for such amounts.

§ 14.10 Non-Discrimination

The Vendor, its sub-vendors and agents shall not discriminate against any qualified employee or qualified applicant available for employment to be employed in the performance of the Agreement with respect to his employment, tenure or terms, conditions or privileges of employment because of his race, color, religion, national origin, disability, sex or ancestry. Any violation of this covenant may result in the imposition of penalties prescribed by law and may be regarded as a material breach of the Agreement. The Vendor shall bear all necessary costs and costs for penalties incurred as a part of his violation of this covenant.

ARTICLE 15 SPECIAL PROVISIONS

§ 15.1 Waiver

§ 15.1 Any failure by the Owner, Construction Manager or the Architect at any time, or from time to time, to enforce or require the strict observance and performance of any of the terms and conditions of the Agreement shall not constitute a waiver of such terms and conditions in any way, nor bar the Owner from thereafter insisting upon the strict observance and performance of such terms and conditions.

§15.1.1 Upon failure of the Vendor to complete the Work within the time required, or upon any other default by the Vendor in the performance of the Agreement, the Owner may pursue any remedies available to it under the Agreement, in other Contract Documents, or under the law. After a default by the Vendor has occurred, failure of the Owner to terminate the Agreement, or to pursue or give notice of its intention to pursue any available remedies, shall not constitute a waiver of any past, current or future default of the Vendor, or be deemed an election not to subsequently pursue any available remedies with respect to any past, current or future default. The use by the Owner of one or more remedies available to the Owner upon default of the Vendor shall not be deemed an election not to pursue any other available remedies.

§ 15.2 Owners Rules and Regulations

§15.2 All regulations and rules of the Owner which may be in effect at the site of the Work regarding employment, passes, badges and conduct on the premises shall be rigidly observed by the Vendor, his Sub-vendors and their personnel and employees.

§15.2.1 The campus of Owner/Project is smokeless and smoking tobacco free in all areas. Use of tobacco and tobacco substitutes is prohibited.

§15.2.2 Use of offensive language or gestures, music devices, or inappropriate clothing is grounds for immediate dismissal from site.

§ 15.3 Sexual Harassment

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§ 15.3.1 The Vendor shall not engage in sexual harassment as defined herein, or tolerate such activities by its employees, sub-vendors, or agents during the term of this Agreement. Harassment on the basis of sex is a violation of Section 703 of Title VII of the Civil Rights Act of 1964.

§ 15.3.2 Sexual harassment is defined as unwelcome sexual advances, requests for sexual favors, and other verbal or physical conduct of a sexual nature when:

.1 Submission to such conduct is made either explicitly or implicitly as a term or condition of an individual's employment, or

.2 Submission to or rejection of such conduct by an individual is used as the basis for employment decisions affecting such individual, or

.3 Such conduct has the effect of unreasonably interfering with an individual's work or creating an intimidating, hostile, or offensive working environment.

§ 15.3.3 The Vendor shall ensure dissemination of this sexual harassment policy to its employees, sub-vendors, and agents.

§ 15.3.4 Additionally, the Vendor shall ensure that its employees, sub-vendors, and agents understand that sexual harassment actions directed toward the Owner's staff, employees, clients, building tenants, or the general public constitutes sexual harassment as defined herein.

§ 15.4 Drug-Free Workplace

§ 15.4.1 The Vendor shall make a good faith effort to provide and maintain a drug-free workplace by diligently performing the following activities during the term of this Agreement:

.1 Publish and provide to all workers involved in the Project a statement notifying such persons that the unlawful manufacture, distribution, dispensing, possession, or use of a controlled substance is prohibited at the Project workplace and specifying the actions that will be taken against workers for violations of such prohibition.

.2 Establish a drug-free awareness program to inform workers about: (1) the dangers of drug abuse in the workplace; (2) the Vendor's policy of maintaining a drug-free workplace; (3) any available drug counseling, rehabilitation, and employee assistance programs; and (4) the penalties that may be imposed upon a worker for drug abuse violations occurring in the workplace.

.3 Notify all employees that, as a condition of continued employment, the employee will: (1) abide by the terms of the Vendor's drug-free workplace statement; and (2) notify the employer of any criminal drug statute conviction for a violation occurring in the workplace not later than five (5) calendar days after such conviction.

.4 Give written notice to the Owner, Architect, and Construction Manager within ten (10) calendar days after receiving actual notice that an employee of the Vendor, sub-vendors, or agents has been convicted of a criminal drug violation occurring at the Vendor's workplace.

.5 Within thirty (30) calendar days after receiving notice of a worker's criminal drug statute conviction for a violation occurring at the workplace, impose the following sanctions or remedial measures on such worker: (1) take appropriate personnel action against the worker, up to and including termination; or (2) require such employee to satisfactorily participate in and complete a drug abuse assistance or rehabilitation program approved for such purposes by a federal, state, or local health, law enforcement, or other appropriate agency.

§ 15.4.2 Failure of the Vendor to comply with the terms of Subparagraph 13.15.1 in good faith shall constitute a material breach of this Agreement, and shall entitle the Owner to impose sanctions against the Vendor, including but not limited to, suspension of application payments and/or termination of this Agreement.

§ 15.5 The prevailing party shall be entitled to reimbursement by the other party for its reasonable legal costs, expenses and attorney's fees, and Architect's and Consultant's additional services incurred in successfully enforcing against the other party any covenant, term or condition of the Agreement.

ARTICLE 16 ENUMERATION OF CONTRACT DOCUMENTS

§ 16.1 The Contract Documents are defined in Article 1 and, except for Modifications issued after execution of this Agreement, are enumerated in the sections below.

§ 16.2 The Agreement is this executed AIA Document A151™–2019, Standard Form of Agreement Between Owner and Vendor for Furniture, Furnishings, and Equipment.

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§ 16.3 AIA Document E203™–2013, Building Information Modeling and Digital Data Exhibit, dated as indicated below:
(Insert the date of the E203–2013 incorporated into this Agreement.)

« »

§ 16.4 The Specifications:
(Either list the Specifications here or refer to an exhibit attached to this Agreement.)

« »

Section	Title	Date	Pages

§ 16.5 The Drawings:
(Either list the Drawings here or refer to an exhibit attached to this Agreement.)

« »

Number	Title	Date

§ 16.6 The Addenda, if any:

Number	Date	Pages

Portions of Addenda relating to quotations or proposal requirements are not part of the Contract Documents unless the quotation or proposal requirements are enumerated in this Article 16.

§ 16.7 Additional documents, if any, forming part of the Contract Documents:

.1 Other Exhibits:
(Check all boxes that apply.)

[« »] The Sustainability Plan:

Title	Date	Pages

[« »] Supplementary and other Conditions of the Contract:

Document	Title	Date	Pages

.2 Other documents, if any, listed below:
(List here any additional documents that are intended to form part of the Contract Documents.)

« »

This Agreement entered into as of the day and year first written above.

OWNER *(Signature)*	**VENDOR** *(Signature)*

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SECTION 011000 - SUMMARY

PART 1 - GENERAL

1.1 RELATED DOCUMENTS

A. Drawings and general provisions of the Contract, including General and Supplementary Conditions and other Division 01 Specification sections, apply to this section.

B. This Section includes the following:

1. Work covered by the Contract Documents.
2. Type of the Contract.
3. Work phases.
4. Work under other contracts.
5. Products ordered in advance and assigned to Vendor.
6. Owner-furnished products.
7. Use of premises.
8. Owner's occupancy requirements.
9. Work restrictions.
10. Specification formats and conventions.

1.2 WORK COVERED BY CONTRACT DOCUMENTS

A. Project Identification: Heartland BioWorks HQ.

1. Project Location: 1200 Indiana Avenue, Indianapolis, IN 46202.

B. Owner: Applied Research Institute.

1. Owner’s Technical Representative: Kate Luken-Warpool, Kate.Warpool@jsheld.com.

C. Architect: RATIO Design.
1. Architect’s Representative: Dana McNutt, dmcnutt@ratiodesign.com.

D. Architect’s Consultants:

1. Electrical Engineer: Applied Engineering.
2. AV Tech: Design 27.

E.

1.3 WORK COVERED BY CONTRACT DOCUMENTS

A. The Work of Project is defined by the Contract Documents and includes, but is not limited to, the following:

1. This Work generally consists of providing furniture, furnishings, and equipment (FF&E) per the Package as outlined in the Contract Documents.

2. The Work includes providing, shipping, unloading, identifying, verifying quantities, determining condition of, and installing FF&E.
3. The Work includes removing debris from Project site daily. Vendor may not use on-site dumpsters for waste disposal and must provide its own dumpsters or means for removing the debris.
4. Work includes due care and repair of the Owners Property in conjunction with the General Contractor of the Construction Project, as required per the General Conditions of the Contract.
5. This new construction project is for the Heartland BioWorks Headquarters, an approximately 20,000 square foot facility located at Waterway Boulevard and Indiana Avenue, a prominent corner and entry into the 16 Tech Innovation District. Heartland BioWorks, including the headquarters project, is funded by the U.S. Economic Development Administration as part of its Regional Tech Hubs Program aimed at strengthening U.S. economic and national security with investments in regions across the country with assets and resources with the potential to become globally competitive in the technologies and industries of the future.

   The project will house resources needed to provide meaningful, relevant classroom and hands-on benchtop and pilot scale educational experiences to prepare trainees to enter the biomanufacturing workforce as well as upskilling opportunities for advancing careers. The project will also serve as the BioWorks Consortium headquarters, providing an accessible, dedicated location for industry, academia, government and other relevant entities to meet, discuss, and drive activity in support and growth of the region's biomanufacturing ecosystem.

   The two-story facility will be located on the northeastern part of the 1200 Indiana Avenue parcel.

B. TYPE OF CONTRACT

1. Project will be procured and installed, contract between Dealer and Owner. Project will be one contract Package.

1.4 WORK PHASES

A. The Work shall be conducted in a single-phase installation. All Work shall be substantially complete and ready for occupancy, no later than June 30, 2027, after the Notice to Proceed as indicated in the Contract between Owner and Vendor. Final Completion, including all punchlist items, shall be no later than June 30, 2027.

B. Single-Phase Furniture Installation:

1. Construction Partial Substantial Completion: June 30, 2027.

   FURNITURE

a. Installation Begins: June 14, 2027
b. Installation Completion: July 09, 2027

1.5 WORK UNDER OTHER CONTRACTS

A. General: Cooperate fully with separate vendors and contractors so work on those contracts may be carried out smoothly, without interfering with or delaying work under this Contract. Coordinate the Work of this Contract with work performed under separate contracts.

1.6 USE OF PREMISES

A. General: Each Vendor shall have partial use of premises for installation operations, including use of Project site, during closing stages of the construction period. Each Vendor's use of premises is limited only by Owner's right to perform work or to retain other contractors on portions of Project.

B. Use of Site: Limit use of premises to areas within the Contract limits indicated. Do not disturb portions of Project site beyond areas in which the Work is indicated.

1. Limits: Confine constructions operations to the building proper, do not disturb new or existing site conditions.
2. Owner Occupancy: Owner may occupy portions of the Project site during furniture installation.
3. Driveways and Entrances: Keep driveways, loading areas, and entrances serving premises clear and available to Owner, Owner's employees, and emergency vehicles at all times. Do not use these areas for parking or storage of materials.
   a. Schedule deliveries to minimize use of driveways and entrances. Coordinate with General Contractor for procedures for delivery, elevator use and staging/storage space on-site.
   b. Schedule deliveries to minimize space and time requirements for storage of materials and equipment on-site.
4. Construction Site Access:
   a. Dock Access: There is no dock to the building. There is a service drive with an overhead door into a shipping and receiving area. A lift-gate delivery will be required.
   b. Elevator Access: Refer to the diagram at the end of this Section for elevator dimensions.
   c. Staging: The only available staging areas will be the areas that are actively being installed.

1.7 WORK RESTRICTIONS

A. On-Site Work Hours: Work may be generally performed inside the new building during normal business working hours of 7:00 a.m. to 4:00 p.m. (local time at Project site,) Monday through Friday, unless otherwise indicated.

1. Evening Hours: As required for completion of installation of FF & E according to the timeline in the bidding documents.

2. Weekend Hours: As required for completion of installation of FF & E according to the timeline in the bidding documents.

B. Work Restrictions:

1. **Installation personnel may be required to participate in Safety Orientation.**

2. Installation personnel shall be fully clothed, and shirts shall not be removed at any time.
3. Radios or other electronic devices which create music and/or loud noise are not allowed at any time.
4. Installation personnel shall only enter and exit the Project site via the designated entrances.
5. Installation personnel shall only park in the areas designated for construction parking. Violators shall be towed at vehicle owner's expense.
6. Installation personnel shall not leave construction work areas and enter areas occupied or being used by the Owner or public without permission from the Owner.
7. Smoking is not permitted in any portion of the building.
8. Any installation personnel violating safety (OSHA) rules shall be immediately removed from the Project site.
9. Any installation personnel creating a disturbance or litter other than that produced by the Work shall be immediately removed from the Project site.
10. These work restrictions shall become a part of all subcontracts as a contractual requirement.

1.8 SPECIFICATION FORMATS AND CONVENTIONS

A. Specification Format: The Specifications are organized into Divisions and Sections using the 33-division format and CSI/CSC's "MasterFormat" numbering system.

1. Division 1: Sections in Division 1 govern the execution of the Work of all Sections in the Specifications.

B. Specification Content: The Specifications use certain conventions for the style of language and the intended meaning of certain terms, words, and phrases when used in particular situations. These conventions are as follows:

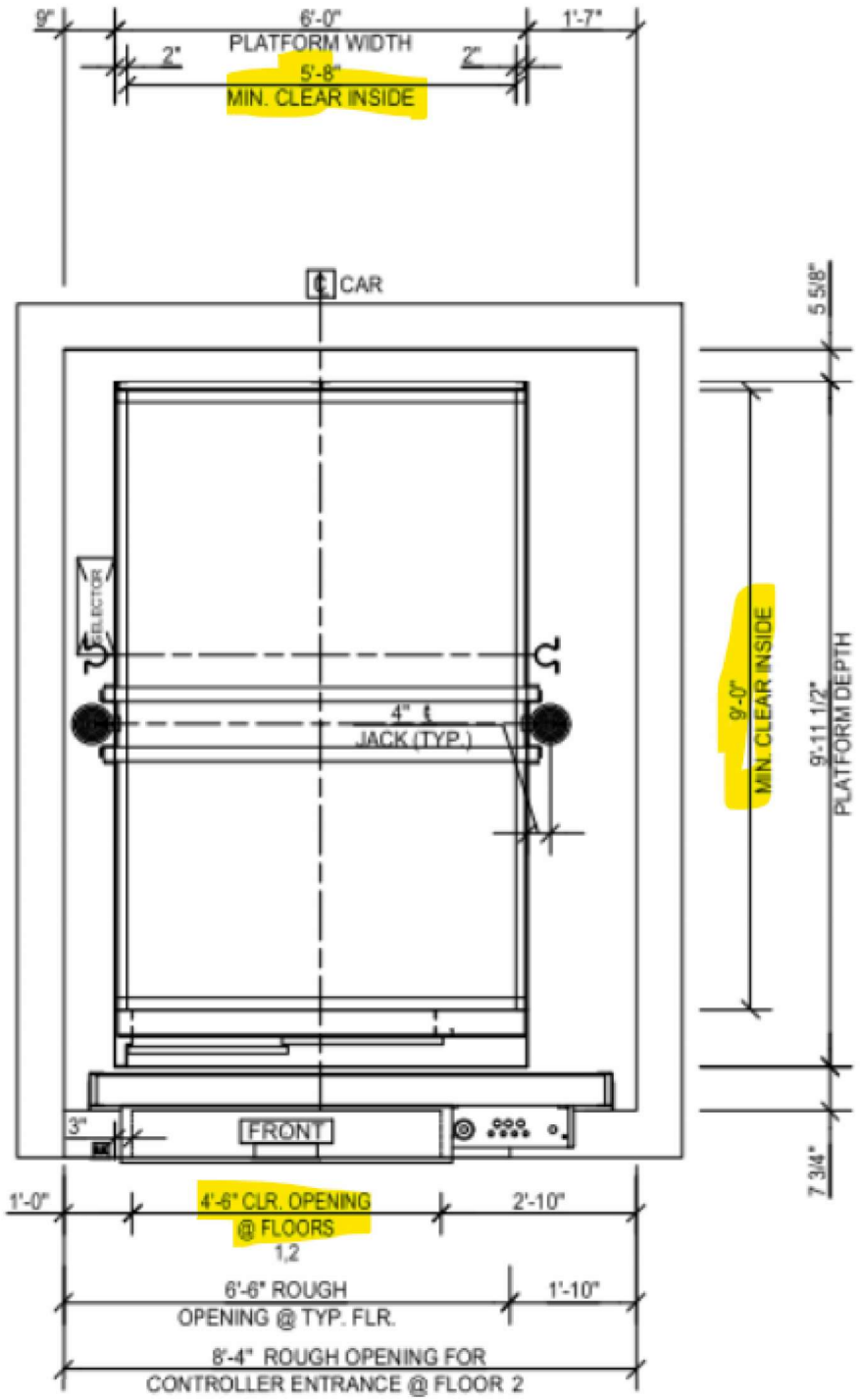
1. Abbreviated Language: Language used in the Specifications and other Contract Documents is abbreviated. Words and meanings shall be interpreted as appropriate. Words implied, but not stated, shall be inferred as the sense requires. Singular words shall be interpreted as plural, and plural words shall be interpreted as singular where applicable as the context of the Contract Documents indicates.
2. Imperative mood and streamlined language are generally used in the Specifications. Requirements expressed in the imperative mood are to be performed by Contractor. Occasionally, the indicative or subjunctive mood may be used in the Section Text for clarity to describe responsibilities that must be fulfilled indirectly by Contractor or by others when so noted.

a. The words "shall," "shall be," or "shall comply with," depending on the context, are implied where a colon (:) is used within a sentence or phrase.

PART 2 - PRODUCTS (Not Used)

PART 3 - EXECUTION (Not Used)

END OF SECTION 011001



HOISTWAY PLAN

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PART 1 - GENERAL

1.1 SUMMARY

A. This Section includes administrative and procedural requirements for unit prices.

1.2 DEFINITIONS

A. Unit price is an amount proposed by Vendor, stated on the Proposal Form, as a price per unit of measurement for materials added to or deducted from the Contract Sum by appropriate modification, if estimated quantities of Work required by the Contract Documents are increased or decreased.

1.3 PROCEDURES

A. Unit prices include all necessary material, plus cost for delivery, installation, insurance, applicable taxes, overhead, and profit.

PART 2 - PRODUCTS

2.1 Refer to the Unit Price Schedules to be included with the Proposal Form. An electronic copy in Microsoft Excel format will also be required in the submission (original Microsoft Excel file will be provided to vendor).

PART 3 - EXECUTION

3.1 SCHEDULES

A. Refer to the attached electronic Schedule for the Furniture Package:

1. HBW_Furniture Unit Price Schedules.

END OF SECTION 012201

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PART 1 - GENERAL

1.1 SUMMARY

A. This Section specifies administrative and procedural requirements for handling and processing Contract modifications.

B. See Division 1 Section "Unit Prices (FF&E)" for administrative requirements for using unit prices.

1.2 MINOR CHANGES IN THE WORK

A. Architect will issue supplemental instructions authorizing Minor Changes in the Work, not involving adjustment to the Contract Sum or the Contract Time, on AIA Document G710, "Architect's Supplemental Instructions" or similar form.

1.3 PROPOSAL REQUESTS

A. Owner-Initiated Proposal Requests: Architect will issue a detailed description of proposed changes in the Work that may require adjustment to the Contract Sum or the Contract Time. If necessary, the description will include supplemental or revised Drawings and Specifications.

1. Proposal Requests issued by Architect are for information only. Do not consider them instructions either to stop work in progress or to execute the proposed change.
2. Within time specified in Proposal Request seven (7) calendar days after receipt of Proposal Request, submit a quotation estimating cost adjustments to the Contract Sum and the Contract Time necessary to execute the change.

    a. Include a list of quantities of products required or eliminated and unit costs, with total amount of purchases and credits to be made. If requested, furnish survey data to substantiate quantities.
    b. Indicate applicable taxes, delivery charges, equipment rental, and amounts of trade discounts.
    c. Include restocking charges.
    d. Include a complete breakdown of costs of labor and supervision directly attributable to the change.
    e. Include a statement indicating the effect the proposed change in the Work will have on the Contract Time.

B. Vendor-Initiated Proposals: If latent or unforeseen conditions require modifications to the Contract, Vendor may propose changes by submitting a request for a change to Architect.

1. Include a statement outlining reasons for the change and the effect of the change on the Work. Provide a complete description of the proposed change. Indicate the effect of the proposed change on the Contract Sum and the Contract Time.

2. Include a list of quantities of products required or eliminated and unit costs, with total amount of purchases and credits to be made. If requested, furnish survey data to substantiate quantities.
3. Indicate applicable taxes, delivery charges, equipment rental, and amounts of trade discounts.
4. Include restocking charges.
5. Include a complete breakdown of costs of labor and supervision directly attributable to the change.
6. Comply with requirements in Division 1 Section "Product Requirements (FF&E)" if the proposed change requires substitution of one product or system for product or system specified.

C. Proposal Request Form: Use AIA Document G709 for Proposal Requests or similar form.

1.4 CHANGE ORDER PROCEDURES

A. On Owner's approval of a Proposal Request, Architect will issue a Change Order for signatures of Owner and Vendor on AIA Document G701 or similar form.

PART 2 - PRODUCTS (Not Used)

PART 3 - EXECUTION (Not Used)

END OF SECTION 012601

(BLANK)

PART 1 - GENERAL

1.1 SUMMARY

A. This Section specifies administrative and procedural requirements necessary to prepare and process Applications for Payment.

1.2 APPLICATIONS FOR PAYMENT

A. Each Application for Payment shall be as certified by Architect and paid for by Owner.

B. Payment Application Times: The date for each progress payment is indicated in the Agreement between Owner and Vendor. Payments will not be made in increments. Owner will expect payment request upon completion of furniture installation in its entirety.

C. Application for Payment at Substantial Completion: After issuing the Certificate of Substantial Completion, submit an Application for Payment showing 100 percent completion for portion of the Work claimed as substantially complete.

1. Include documentation supporting claim that the Work is substantially complete and a statement showing an accounting of changes to the Contract Sum.

D. Final Payment Application: Submit final Application for Payment with releases and supporting documentation not previously submitted and accepted, including, but not limited, to the following:

1. Evidence of completion of Project closeout requirements.
2. Insurance certificates for products and completed operations where required and proof that taxes, fees, and similar obligations were paid.
3. Updated final statement, accounting for final changes to the Contract Sum.
4. AIA Document G706, Contractor's Affidavit of Payment of Debts and Claims.
5. AIA Document G706A, Contractor's Affidavit of Release of Liens.
6. AIA Document G707, Consent of Surety to Final Payment.
7. Evidence that claims have been settled.
8. Final verified completion of all punch list work is complete and paid to the General Contractor currently on site.
9. Transmittal of required project construction records to the Owner.

PART 2 - PRODUCTS (Not Used)

PART 3 - EXECUTION (Not Used)

END OF SECTION 012901

(BLANK)

PART 1 - GENERAL

1.1 SUMMARY

A. This Section includes administrative provisions for coordinating procurement & installation operations on Project including, but not limited to, the following:

1. General Project coordination procedures.
2. Project meetings.

1.2 COORDINATION

A. Coordination: Coordinate installation operations included in various Sections of the Specifications to ensure efficient and orderly installation of each part of the Work. Coordinate installation operations, included in different Sections, which depend on each other for proper installation, connection, and function.

1. Schedule installation operations in sequence per the required timeframes established by the Architect and Owner, so as to obtain the best results where installation of one part of the Work depends on installation of other components, before or after its own installation. All offices are to be the installation priority and shall be complete prior to installations of loose furniture in other areas.
2. Coordinate installation of different Units with other Vendors to ensure maximum accessibility for required maintenance, service, and repair.
3. Make adequate provisions to accommodate items scheduled for later installation.
4. Where availability of space is limited, coordinate installation of different components to ensure maximum performance and accessibility for required maintenance, service, and repair of all components, including mechanical and electrical.

B. Prepare memoranda for distribution to each party involved, outlining special procedures required for coordination. Include such items as required notices, reports, and list of attendees at meetings.

1. Prepare similar memoranda for Owner and separate vendors if coordination of their Work is required.

C. Administrative Procedures: Coordinate scheduling and timing of required administrative procedures with other construction activities and activities of other vendors to avoid conflicts and to ensure orderly progress of the Work. Such administrative activities include, but are not limited to, the following:

1. Preparation of Vendor's Production/Installation Schedule.
2. Delivery and processing of submittals.
3. Progress meetings.
4. Pre-installation conferences.
5. Project closeout activities.

1.3 PROJECT MEETINGS

A. General: Schedule and conduct meetings and conferences at Project site unless otherwise indicated (minimum of two meetings to update the client on project progress).

1. Attendees: Architect will inform participants and others involved, and individuals whose presence is required, of date and time of each meeting. Notify Owner and Architect of scheduled meeting dates and times.
2. Agenda: Prepare the meeting agenda and distribute the agenda to all invited attendees.
3. Minutes: Record significant discussions and agreements achieved and distribute the meeting minutes to everyone concerned, including Owner and Architect, within seven (7) calendar days of the meeting.

B. Pre-installation Conferences: Conduct a pre-installation conference at Project site before each installation activity that requires coordination with other Vendor's/Suppliers/Installers for other Packages as required (minimum of one meeting).

1. Attendees: Installer and representatives of manufacturers and fabricators involved in or affected by the installation and its coordination or integration with other materials and installations that have preceded or will follow, shall attend the meeting. Advise Architect of scheduled meeting dates.
2. Agenda: Review progress of other construction activities and preparations for the particular activity under consideration, including requirements for the following:

    a. Contract Documents.
    b. Options.
    c. Purchases.
    d. Deliveries.
    e. Submittals.
    f. Possible conflicts.
    g. Compatibility problems.
    h. Time schedules.
    i. Manufacturer's written recommendations.
    j. Warranty requirements.
    k. Compatibility of materials.
    l. Acceptability of substrates.
    m. Space and access limitations.
    n. Regulations of authorities having jurisdiction.
    o. Installation procedures
    p. Coordination of the Work.
    q. Required performance results.
    r. Protection of adjacent work.
    s. Protection of construction and personnel.

3. Record significant conference discussions, agreements, and disagreements, including required corrective measures and actions.
4. Reporting: Distribute minutes of the meeting to each party present and to parties who should have been present. Minutes shall be digitally typed.

5. Do not proceed with installation if the conference cannot be successfully concluded. Initiate whatever actions are necessary to resolve impediments to performance of the Work and reconvene the conference at earliest feasible date.

C. Progress Meetings: Vendor **will conduct** progress meetings. Progress meetings shall begin once a month Jan-May 2027. Progress meetings will increase to weekly at installation start, June 2027. Coordinate dates of meetings with preparation of payment requests.

1. Attendees: In addition to representatives of Owner and Architect, each vendor, subvendor, supplier, and other entity concerned with current progress or involved in planning, coordination, or performance of future activities shall be represented at these meetings. All participants at the conference shall be familiar with Project and authorized to conclude matters relating to the Work.
2. Agenda: Review and correct or approve minutes of previous progress meeting, review other items of significance that could affect progress, and include topics for discussion as appropriate to status of Project.

    a. Vendor's Procurement/Installation Schedule: Review progress since the previous meeting. Determine whether each activity is on time, ahead of schedule, or behind schedule, in relation to overall schedule and completion. Determine how installation behind schedule will be expedited; secure commitments from parties involved to do so. Discuss whether schedule revisions are required to ensure that current and subsequent activities will be completed within the Contract Time.
    b. Present and future needs of each entity present, including the following:

        1) Status of submittals.
        2) Deliveries.
        3) Off-site fabrication.
        4) Access.
        5) Site utilization.
        6) Work hours.
        7) Hazards and risks.
        8) Progress cleaning.
        9) Quality and work standards.
        10) Status of correction of deficient items.
        11) Field observations.
        12) Status of proposal requests.
        13) Pending claims and disputes.
        14) Documentation of information for payment requests.

3. Reporting: Distribute minutes of the meeting to each party present and to parties who should have been present.

    a. Schedule Updating: Revise Vendor's Construction Schedule after each progress meeting where revisions to the schedule have been made or recognized and issue revised schedule concurrently with the report of each Progress Meeting.

PART 2 - PRODUCTS (Not Used)

PART 3 - EXECUTION (Not Used)

END OF SECTION 013101

(BLANK)

PART 1 - GENERAL

1.1 SUMMARY

A. This Section includes administrative and procedural requirements for documenting the progress of construction during performance of the Work, including the following:

1. Vendor's Procurement and Installation Schedule.
2. Submittals Schedule.
3. Field condition reports.

B. See Division 1 Section "Payment Procedures (FF&E)".

1.2 SUBMITTALS

A. Vendor's Procurement and Installation Schedule: Submit electronic PDF file of initial schedule, large enough to show entire schedule for entire construction period. Provide updated schedule upon order entry, order acknowledgements, pre-construction completion and pre-installation commencement.

B. Field Condition Reports: Submit two (2) copies at time of discovery of differing conditions.

1.3 COORDINATION

A. Coordinate preparation and processing of schedules and reports with performance of the procurement and installation activities and with scheduling and reporting of separate sub-vendors/suppliers.

B. Coordinate Vendor's Procurement and Installation Schedule with the list of subcontracts, Submittals Schedule, progress reports, payment requests, and other required schedules and reports.

PART 2 - PRODUCTS

2.1 SUBMITTALS SCHEDULE

A. Preparation: Submit a schedule of submittals within seven (7) calendar days of Notice of Award, arranged in chronological order by dates required by production and installation schedule. Include time required for review, resubmittal, ordering, manufacturing, fabrication, and delivery when establishing dates.

2.2 VENDOR'S PROCUREMENT AND INSTALLATION SCHEDULE, GENERAL

A. Time Frame: Extend schedule from date established for the Notice of Award to date of Substantial and Final Completion.

B. Activities: Treat each story or separate area as a separate numbered activity for each principal element of the Work. Comply with the following:

1. Activity Duration: Define activities so no activity is longer than twenty (20) calendar days, unless specifically allowed by Architect.
2. Procurement Activities: Include procurement process activities for long lead items and major items, as separate activities in schedule. Procurement cycle activities include, but are not limited to, submittals, approvals, purchasing, fabrication, and delivery.
3. Submittal Review Time: Include review and resubmittal times indicated in Division 1 Section "Submittal Procedures (FF&E)" in schedule.
4. Installation Time: Include not less than ten (10) calendar days window for installation.
5. Substantial Completion: Indicate completion in advance of date established for Substantial Completion and allow time for Architect's administrative procedures necessary for certification of Substantial Completion.

C. Constraints: Include any anticipated constraints and work restrictions indicated in the Contract Documents and as follows in schedule and show how the sequence of the Work is affected.

D. Milestones: Include milestones indicated in the Contract Documents in schedule, including, but not limited to, Award of Contract the Notice to Proceed, start of submittals, start of fabrication, installation, Substantial Completion, and Final Completion.

2.3 REPORTS

A. Field Condition Reports: Immediately on discovery of a difference between field conditions and the Contract Documents, prepare a detailed report. Submit with a request for information on CSI Form 13.2A or similar form. Include a detailed description of the differing conditions, together with recommendations for changing the Contract Documents.

PART 3 - EXECUTION

3.1 VENDOR'S PROCUREMENT AND INSTALLATION SCHEDULE

A. Vendor's Procurement and Installation Schedule Updating: At monthly intervals, update schedule to reflect actual progress and activities. Issue schedule (one week)before each regularly scheduled progress meeting.

1. Revise schedule immediately after each meeting or other activity where revisions have been recognized or made. Issue updated schedule concurrently with the report of each such meeting.
2. Include a report with updated schedule that indicates every change, including, but not limited to, changes in logic, durations, actual starts and finishes, and activity durations.

B. Distribution: Distribute copies of approved schedule to Architect, Owner, separate vendors, testing and inspecting agencies, and other parties identified by Vendor with a need-to-know schedule responsibility.

1. When revisions are made, distribute updated schedules to the same parties and post in the same locations. Delete parties from distribution when they have completed their assigned portion of the Work and are no longer involved in performance of the procurement or installation activities.

END OF SECTION 013201

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PART 1 - GENERAL

1.1 SUMMARY

A. This Section includes administrative and procedural requirements for submitting Shop Drawings, Product Data, Samples, and other submittals.

B. See Division 1 Section "Procurement/Installation Progress Documentation (FF&E)" for submitting schedules and reports, including Vendor's Production and Installation Schedule.

C. See Division 1 Section "Quality Requirements (FF&E)" for submitting required quality assurance information.

D. See Division 1 Section "Closeout Procedures (FF&E)" for submitting warranties.

1.2 DEFINITIONS

A. Action Submittals: Written and graphic information that requires Architect's responsive action.

B. Informational Submittals: Written information that does not require Architect's responsive action. Submittals may be rejected for not complying with requirements.

1.3 SUBMITTAL PROCEDURES

A. Coordination: Coordinate preparation and processing of submittals with performance of procurement and installation activities.

1. Coordinate each submittal with fabrication, purchasing, testing, delivery, other submittals, and related activities that require sequential activity.
2. Coordinate transmittal of different types of submittals for related parts of the Work so processing will not be delayed because of need to review submittals concurrently for coordination.

    a. Architect reserves the right to withhold action on a submittal requiring coordination with other submittals until related submittals are received.

B. Submittals Schedule: Comply with requirements in Division 1 Section "Construction Progress Documentation (FF&E)" for list of submittals and time requirements for scheduled performance of related procurement and installation activities.

C. Processing Time: To avoid the need to delay installation as a result of the time required to process submittals, allow enough time for submittal review, including time for resubmittals, as follows. Time for review shall commence on Architect's receipt of submittal. No extension of the Contract Time will be authorized because of failure to transmit submittals enough in advance of the Work to permit processing, including resubmittals.

1. Initial Review: Allow ten (10) working days for initial review of each submittal. Allow additional time if coordination with subsequent submittals is required. Architect will

advise Vendor when a submittal being processed must be delayed for coordination.

2. Resubmittal Review: Allow ten (10) working days for review of each resubmittal.

D. Identification: Place a permanent label or title block on each submittal for identification.

1. Indicate name of firm or entity that prepared each submittal on label or title block.
2. Provide a space approximately 4 by 5 inches on label or beside title block to record Vendor's review and approval markings and action taken by Architect.
3. Include the following information on label for processing and recording action taken:

    a. Project name.
    b. Date.
    c. Name and address of Architect.
    d. Name and address of Vendor.
    e. Name and address of subvendor.
    f. Name and address of supplier.
    g. Name of manufacturer.
    h. Submittal number or other unique identifier, including revision identifier.

        1) Submittal number shall use Specification Section and reference the Bid Package # and the individual item number followed by a decimal point or dash and then a sequential number (e.g., 06100.01 or 06100-01). Resubmittals shall include an alphabetic suffix after another decimal point or dash (e.g., 06100.01.A or 06100-01-R1).

    i. Number and title of appropriate Specification Section.
    j. Drawing number and detail references, as appropriate.
    k. Location(s) where product is to be installed, as appropriate.
    l. Other necessary identification.

E. Deviations: Highlight, encircle, or otherwise specifically identify deviations from the Contract Documents on submittals.

F. Additional Copies: Unless additional copies are required for final submittal, and unless Architect observes noncompliance with provisions in the Contract Documents, initial submittal may serve as final submittal.

G. Transmittal: Package each submittal individually and appropriately for transmittal and handling. Transmit each submittal using a transmittal form.

H. Resubmittals: Make resubmittals in same form and number of copies as initial submittal.

1. Note date and content of previous submittal.
2. Note date and content of revision in label or title block and clearly indicate extent of revision.
3. Resubmit submittals until they are marked "Reviewed, No Exceptions Taken" or "Reviewed, Make Corrections Noted."

I. Distribution: Furnish copies of final submittals to manufacturers, sub-vendors, suppliers, fabricators, installers, authorities having jurisdiction, and others as necessary for performance of procurement and installation activities. Show distribution on transmittal forms.

J. Use for Production and Installation: Use only final submittals with mark indicating "Reviewed, No Exceptions Taken" or “Reviewed, Make Corrections Noted” taken by Architect.

1.4 VENDOR’S USE OF ARCHITECT'S CAD FILES

A. General: At Vendor’s written request, copies of Architect's CAD files may be provided to Vendor for Vendor’s use in connection with Project, subject to the following conditions:

1. Vendor shall execute “Waiver of Claims for Use of Electronic Data” supplied by Architect. A sample copy of this form is included at the end of this Section.

B. CAD Software Program: The Architect’s CAD files are available in AutoCAD 2015.

PART 2 - PRODUCTS

2.1 ACTION SUBMITTALS

A. General: Prepare and submit Action Submittals required by individual Specification Sections.

B. Product Data: Collect information into a single submittal for each element of procurement and installation and type of product or equipment.

1. If information must be specially prepared for submittal because standard printed data are not suitable for use, submit as Shop Drawings, not as Product Data.
2. Mark each copy of each submittal to show which products and options are applicable.
3. Include the following information, as applicable:

a. Manufacturer's written recommendations.
b. Manufacturer's product specifications.
c. Manufacturer's installation instructions.
d. Manufacturer's catalog cuts.
e. Compliance with specified referenced standards, if applicable.
f. Testing by recognized testing agency, if applicable.

4. Number of Copies: Submit one (1) electronic copy of Product Data, unless otherwise indicated. Mark up and retain one returned copy as a Project Record Document.

C. Shop Drawings: Prepare Project-specific information, drawn accurately to scale. Do not base Shop Drawings on reproductions of the Contract Documents or standard printed data, unless submittal of Architect's CAD Drawings is otherwise permitted.

1. Preparation: Fully illustrate requirements in the Contract Documents. Include the following information, as applicable:

    a. Dimensions.
    b. Identification of products.
    c. Fabrication and installation drawings.
    d. Roughing-in and setting diagrams.
    e. Shopwork manufacturing instructions.
    f. Templates and patterns.
    g. Schedules.
    h. Notation of coordination requirements.
    i. Notation of dimensions established by field measurement.
    j. Relationship to adjoining construction clearly indicated.

2. Sheet Size: Except for templates, patterns, and similar full-size drawings, submit Shop Drawings on sheets at least 8-1/2 by 11 inches but no larger than 30 by 42 inches.

D. Samples: Submit Samples for review of kind, color, pattern, and texture for a check of these characteristics with other elements and for a comparison of these characteristics between submittal and actual component as delivered and installed.

1. Transmit Samples that contain multiple, related components such as accessories together in one submittal package.
2. Identification: Attach label on unexposed side of Samples that includes the following:

    a. Generic description of Sample.
    b. Product name and name of manufacturer.
    c. Sample source.
    d. Number and title of appropriate Specification Section. Refer bid package and item number.
    e. Availability and delivery time.

3. Disposition: Maintain sets of approved Samples at Project site, available for quality-control comparisons throughout the course of procurement and installation activity. Sample sets may be used to determine final acceptance of construction associated with each set.
4. Samples for Verification: Submit full-size units or Samples of size indicated, prepared from same material to be used for the Work, cured and finished in manner specified, and physically identical with material or product proposed for use, and that show full range of color and texture variations expected. Samples include, but are not limited to, the following: partial sections of manufactured or fabricated components; small cuts or containers of materials; complete units of repetitively used materials; swatches showing color, texture, and pattern; color range sets; and components used for independent testing and inspection.

    a. Number of Samples: Submit three (3) sets of Samples. Architect will retain one (1) Sample sets; remainder will be returned. Mark up and retain one returned Sample set as a Project Record Sample.

E. Submittals Schedule: Comply with requirements specified in Division 1 Section "Procurement and Installation Progress Documentation (FF&E)."

F. Application for Payment: Comply with requirements specified in Division 1 Section "Payment Procedures (FF&E)."

G. Sub-Vendor List: Prepare an electronic typewritten summary identifying individuals or firms proposed for each portion of the Work, including those who are to furnish products or equipment fabricated to a special design. Use CSI Form 1.5A or similar form.

1. Number of Copies: Submit one (1) electronic copy of sub-vendor list, unless otherwise indicated.

2.2 INFORMATIONAL SUBMITTALS

A. General: Prepare and submit Informational Submittals required by other Specification Sections within the Bid Package.

1. Number of Copies: Submit two (2) copies of each submittal, unless otherwise indicated. Architect will not return copies.
2. Certificates and Certifications: Provide a notarized statement that includes signature of entity responsible for preparing certification. Certificates and certifications shall be signed by an officer or other individual authorized to sign documents on behalf of that entity.
3. Test and Inspection Reports: Comply with requirements specified in Division 1 Section "Quality Requirements (FF&E)."

B. Vendor's Procurement and Installation Schedule: Comply with requirements specified in Division 1 Section "Procurement and Installation Progress Documentation (FF&E)."

C. Qualification Data: Prepare written information that demonstrates capabilities and experience of firm or person. Include lists of three completed projects with project names and addresses, names and addresses of architects and owners, and other information specified.

D. Installer Certificates: Prepare written statements on manufacturer's letterhead certifying that Installer complies with requirements in the Contract Documents and, where required, is authorized by manufacturer for this specific Project.

E. Manufacturer Certificates: Prepare written statements on manufacturer's letterhead certifying that manufacturer complies with requirements in the Contract Documents. Include evidence of manufacturing experience where required.

F. Material Test Reports: Prepare reports written by a qualified testing agency, on testing agency's standard form, indicating and interpreting test results of material for compliance with requirements in the Contract Documents.

G. Product Test Reports: Prepare written reports indicating current product produced by manufacturer complies with requirements in the Contract Documents. Base reports on evaluation of tests performed by manufacturer and witnessed by a qualified testing agency, or on comprehensive tests performed by a qualified testing agency.

H. Maintenance Data: Prepare written and graphic instructions and procedures for operation and normal maintenance of products and equipment. Comply with requirements specified in Division 1 Section "Operation and Maintenance Data (FF&E)."

I. Manufacturer's Instructions: Prepare written or published information that documents manufacturer's recommendations, guidelines, and procedures for installing or operating a product or equipment. Include name of product and name, address, and telephone number of manufacturers.

J. Manufacturer's Field Reports: Prepare written information documenting factory-authorized service representative's tests and inspections. Include the following, as applicable:

1. Statement on condition of substrates and their acceptability for installation of product.
2. Summary of installation procedures being followed, whether they comply with requirements and, if not, what corrective action was taken.
3. Results of operational and other tests and a statement of whether observed performance complies with requirements.

K. Insurance Certificates and Bonds: Prepare written information indicating current status of insurance or bonding coverage. Include name of entity covered by insurance or bond, limits of coverage, amounts of deductibles, if any, and term of the coverage.

L. Purchase Order Tracking Report: Provide written report to include the following:

1. Item Code: Match the Architect's Specification.
2. Description: As noted in the Architect's Specification.
3. Purchase Order Number: Item's Purchase Order number. More than one item can have the same Purchase Order number.
4. Manufacturer: Manufacturer, supplier, or subcontractor.
5. Location: Room number or other identification derived from Specifications or Drawings.
6. Quantity: Number of items.
7. C.O.M. Order Date: Date of order of upholstery fabric or material not supplied by furniture manufacturer, purchased separately from the piece of furniture, and supplied to manufacturer for application.
8. C.O.M. Order Acknowledgment Date: Date C.O.M. manufacturer reports receipt of order.
9. C.O.M. Approval Date: Date the Architect approves submitted C.O.M. sample.
10. C.O.M. Acknowledged Ship Date: Date of scheduled shipping from C.O.M. manufacturer.
11. C.O.M. Actual Ship Date: Date C.O.M. was shipped.
12. Item Order Date: Date order was placed.
13. Item Order Acknowledgment Date: Date manufacturer reports receipt of order.
14. Item Acknowledged Ship Date: Date of scheduled shipping from manufacturer.
15. Item Actual Ship Date: Date item was shipped.
16. Item Installation Date: Projected completion of delivery and installation.

M. Purchase Order Acknowledgment: Submit manufacturer's, supplier's, or subcontractor's Purchase Order Acknowledgment for each item within 14 days of receipt by the Vendor. Include information required to complete the Purchase Order Tracking Report.

PART 3 - EXECUTION

3.1 VENDOR'S REVIEW

A. Review each submittal and check for coordination with other Work of the Contract and for compliance with the Contract Documents. Note corrections and field dimensions. Mark with approval stamp before submitting to Architect.

3.2 ARCHITECT'S ACTION

A. General: Architect will not review submittals that do not bear Vendor's approval stamp and will return them without action.

B. Action Submittals: Architect will review each submittal, make marks to indicate corrections or modifications required, and return it. Architect will stamp each submittal with an action stamp and will mark stamp appropriately to indicate action taken, as follows:

1. Final Unrestricted Release: Where submittals are marked "Reviewed, No Exceptions Taken," the Work covered by the submittal may proceed provided it complies with requirements of the Contract Documents. Final acceptance will depend on that compliance.
2. Final-but-Restricted Release: When submittals are marked "Reviewed, Make Corrections Noted," the Work covered by the submittal may proceed provided it complies with both the Architect's notations and corrections on the submittal and requirements of the Contract Documents. Vendor shall respond to any question in writing or on resubmittal. Final acceptance will depend on that compliance.
3. Returned for Revision and Resubmittal: When submittal is marked "Revise and Resubmit," do not proceed with the Work covered by the submittal, including purchasing, fabrication, delivery, or other activity. Revise submittal according to the Architect's notations. Resubmit without delay. Repeat if necessary to obtain a different action mark.

    a. Do not permit submittals marked "Revise and Resubmit" to be used at the Project site or elsewhere where construction is in progress.

4. Returned for Resubmittal: When submittal is marked "Not Accepted," do not proceed with the Work covered by the submittal, including purchasing, fabrication, delivery, or other activity. Prepare a new submittal according to the Architect's notations. Resubmit without delay. Repeat if necessary to obtain a different action mark.

    a. Do not permit submittals marked "Not Accepted" to be used at the Project site or elsewhere where construction is in progress.

5. Other Action: Where a submittal is primarily for information or record purposes or for special processing or other contractor activity, the submittal will be returned, marked “Action Not Required”.

C. Informational Submittals: Architect will review each submittal and will not return it or will return it if it does not comply with requirements. Architect will forward each submittal to appropriate party.

D. Partial submittals are not acceptable, will be considered non-responsive, and will be returned without review.

3.3 PURCHASE ORDER TRACKING REPORT

A. Updating: At 10-day intervals, update Tracking Report to reflect actual progress of Purchase Orders. Issue report one week before each regularly scheduled progress meeting.

END OF SECTION 013301

WAIVER OF CLAIMS FOR

USE OF ELECTRONIC DATA

Project: Heartland BioWorks HQ – Furniture

RATIO Project No.: 24317.000

RATIO and their consultants make project-related electronic data available to you without payment upon the condition that you agree RATIO and their consultants have developed the information for their own use relative to the above-referenced project. The processing of this information to obtain dimensional information is strictly prohibited. RATIO makes no representation, warranties or undertakings of any type concerning the accuracy or completeness of this electronic information or its usefulness in relation to your use of this information. Furthermore, RATIO and their consultants assume no obligation whatsoever to inform you of any additions, deletions, revisions, or corrections of any kind that may be made to these electronic files after you receive them.

The electronic files are design documents; modification to the built construction resulting from addenda, change orders, supplemental instructions or manual changes, etc., to the Documents and may not be represented in the electronic media. By your use of these electronic files, you are not relieved of your duty, if any, to fully comply with the Contract Documents, including without limitation the need to check, confirm and coordinate all dimensions and details, take field measurements, verify field conditions and coordinate your work with that of other contractors, if any, and to fully and properly supervise your subcontractors.

The data will be used only for the specific project listed above. The contractor will remove from all drawings any reference to RATIO or any other members of the design team. None of the data will be used for any other project or purpose, at this or any other site. The recipient may use this data as needed, at their own risk. The recipient will not distribute the data to any other firm or individual, except the recipient's consultants or subcontractors.

You agree to defend, indemnify and hold harmless, RATIO and their consultants from any damage, liability, or costs whatsoever, including attorney's fees, that may be presented to you or by any third party allegedly resulting from use of the electronic data being supplied to you by RATIO, including any claimed inaccuracies or incompleteness of that data, regardless of whether such claims involve the alleged negligence of RATIO, in the preparation of that data.

Nothing herein shall be interpreted or deemed to be a transfer of any of RATIO's copyrights. Except for the specific uses approved herein, no license, right or other uses are granted or implied by this Agreement. You may not assign, delegate, sublicense, pledge, or otherwise transfer any license or right granted herein to another party, except as specifically provided herein without the prior written approval of RATIO.

Special instructions related to building information models (BIM):
Any use of, or reliance on, all or a portion of a building information model without agreement to protocols governing the use of, and reliance on, the information contained in the model shall be at the using or relying on party's sole risk and without liability to the other party and its contractors or consultants, the authors of, or contributors to, the building information model, and each of their agents and employees. Design Intent Building Information Models, used by the Architect and consultants to produce Construction Documents, reach a maximum of LOD 300 and may not reflect as-constructed conditions during the construction phase of the project.

By signature below, the recipient certifies that he/she is an authorized representative of the requesting party and is authorized to enter into this agreement. Release of project information by RATIO is contingent upon receipt of this signed waiver.

Acknowledged and Accepted (Date):_____

By: _____

Title: _____

Company: _____

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PART 1 - GENERAL

1.1 SUMMARY

A. This Section includes administrative and procedural requirements for quality assurance and quality control.

B. Testing and inspecting services are required to verify compliance with requirements specified or indicated. These services do not relieve Vendor of responsibility for compliance with the Contract Document requirements.

1. Requirements for Vendor to provide quality-assurance and quality-control services required by Architect, Owner, or authorities having jurisdiction are not limited by provisions of this Section.

1.2 DEFINITIONS

A. Quality-Assurance Services: Activities, actions, and procedures performed before and during execution of the Work to guard against defects and deficiencies and substantiate that proposed materials/units will comply with requirements.

B. Quality-Control Services: Tests, inspections, procedures, and related actions during and after execution of the Work to evaluate that actual product incorporated into the Work and completed installation comply with requirements. Services do not include contract enforcement activities performed by Architect.

C. Product Testing: Tests and inspections that are performed by an NRTL, an NVLAP, or a testing agency qualified to conduct product testing and acceptable to authorities having jurisdiction, to establish product performance and compliance with industry standards.

D. Source Quality-Control Testing: Tests and inspections that are performed at the source, i.e., plant, mill, factory, or shop.

E. Field Quality-Control Testing: Tests and inspections that are performed on-site for installation of the Work and for completed Work.

F. Testing Agency: An entity engaged to perform specific tests, inspections, or both. Testing laboratory shall mean the same as testing agency.

G. Installer/Applicator/Erector: Vendor or another entity engaged by Vendor as an employee, Sub-Vendor, or Sub-Sub-vendor, to perform a particular operation, including installation, erection, application, and similar operations.

H. Experienced: When used with an entity, "experienced" means having successfully completed a minimum of five (5) previous projects similar in size and scope to this Project; being familiar with special requirements indicated; having been performing the designated work experience for at least five (5) years; and having complied with requirements of authorities having jurisdiction.

1.3 SUBMITTALS

A. Qualification Data: For testing agencies specified in "Quality Assurance" Article to demonstrate their capabilities and experience. If requested, include proof of qualifications in the form of a recent report on the inspection of the testing agency by a recognized authority.

B. Installer/Applicator/Erector Experience Data: Prepare and submit certified written documentation indicating compliance with the Quality Assurance requirements.

C. Permits, Licenses, and Certificates: For Owner's records, submit copies of permits, licenses, certifications, inspection reports, releases, jurisdictional settlements, notices, receipts for fee payments, judgments, correspondence, records, and similar documents, established for compliance with standards and regulations bearing on performance of the Work.

1.4 QUALITY ASSURANCE

A. General: Qualifications paragraphs in this Article establish the minimum qualification levels required; individual Specification Sections specify additional requirements.

B. Installer Qualifications: A firm or individual experienced in installing, erecting, or assembling work similar in material, design, and extent to that indicated for this Project, whose work has resulted in completion of work with a record of successful in-service performance, with a minimum of five (5) years. Project Manager assigned required to have minimum of five (5) years of experience on similar sized projects, and be assigned to work on-site and serve as primary contact for Architect and Owner for duration of installation work.

C. Manufacturer Qualifications: A firm experienced in manufacturing products or systems similar to those indicated for this Project and with a record of successful in-service performance, as well as sufficient production capacity to produce required units.

D. Fabricator Qualifications: A firm experienced in producing products similar to those indicated for this Project and with a record of successful in-service performance, as well as sufficient production capacity to produce required units.

E. Testing Agency Qualifications: An NRTL, an NVLAP, or an independent agency with the experience and capability to conduct testing and inspecting indicated, as documented according to ASTM E 548; and with additional qualifications specified in individual Sections; and where required by authorities having jurisdiction, that is acceptable to authorities.

1. NRTL: A nationally recognized testing laboratory according to 29 CFR 1910.7.
2. NVLAP: A testing agency accredited according to NIST's National Voluntary Laboratory Accreditation Program.

F. Factory-Authorized Service Representative Qualifications: An authorized representative of manufacturer who is trained and approved by manufacturer to inspect installation of

manufacturer's products that are similar in material, design, and extent to those indicated for this Project.

1.5 QUALITY CONTROL

A. Manufacturer's Field Services: Where indicated, engage a factory-authorized service representative to inspect field-assembled components and equipment installation, including service connections. Report results in writing as specified in Division 1 Section "Submittal Procedures (FF&E)."

PART 2 - PRODUCTS (Not Used)

PART 3 - EXECUTION

3.1 REPAIR AND PROTECTION

A. General: On completion of testing, inspecting, sample taking, and similar services, repair damaged furniture, furnishings, equipment, and work of other contracts. Restore substrates and finishes.

1. Provide materials and comply with installation requirements specified in other Specification Sections. Restore patched areas and extend restoration into adjoining areas with durable seams that are as invisible as possible.

B. Protect furniture, furnishings, equipment, and construction exposed by or for quality-control service activities.

C. Repair and protection are Vendor’s responsibility, regardless of the assignment of responsibility for quality-control services.

END OF SECTION 014001

(BLANK)

PART 1 - GENERAL

1.1 DEFINITIONS

A. General: Basic Contract definitions are included in the Conditions of the Contract.

B. "Approved": When used to convey Architect's action on Vendor's submittals, applications, and requests, "approved" is limited to Architect's duties and responsibilities as stated in the Conditions of the Contract.

C. "Directed": A command or instruction by Architect. Other terms including "requested," "authorized," "selected," "approved," "required," and "permitted" have the same meaning as "directed."

D. "Indicated": Requirements expressed by graphic representations or in written form on Drawings, in Specifications, and in other Contract Documents. Other terms including "shown," "noted," "scheduled," and "specified" have the same meaning as "indicated."

E. "Regulations": Laws, ordinances, statutes, and lawful orders issued by authorities having jurisdiction, and rules, conventions, and agreements within the construction industry that control performance of the Work.

F. "Furnish": Supply and deliver to Project site, ready for unloading, unpacking, assembly, installation, and similar operations.

G. "Install": Operations at Project site including unloading, temporarily storing, unpacking, assembling, erecting, placing, anchoring, applying, working to dimension, finishing, curing, protecting, cleaning, and similar operations.

H. "Provide": Furnish and install, complete and ready for the intended use.

I. "Project Site": Space available for performing construction activities. The extent of Project site is shown on Drawings and may or may not be identical with the description of the land on which Project is to be built.

J. "C.O.M.": Material not supplied by goods manufacturer but purchased separately from the goods and supplied to goods manufacturer for application.

1.2 INDUSTRY STANDARDS

A. Applicability of Standards: Unless the Contract Documents include more stringent requirements, applicable construction industry standards have the same force and effect as if bound or copied directly into the Contract Documents to the extent referenced. Such standards are made a part of the Contract Documents by reference.

B. Publication Dates: Comply with standards in effect as of date of the Contract Documents, unless otherwise indicated.

C. Copies of Standards: Each entity engaged in construction on Project should be familiar with industry standards applicable to its construction activity. Copies of applicable standards are not bound with the Contract Documents.

1. Where copies of standards are needed to perform a required construction activity, obtain copies directly from publication source.

D. Abbreviations and Acronyms for Standards and Regulations: Where abbreviations and acronyms are used in Specifications or other Contract Documents, they shall mean the recognized name of the standards and regulations in the following list.

ADAAG	Americans with Disabilities Act (ADA) Architectural Barriers Act (ABA)
BIFMA	Business and Institutional Furniture Manufacturer's Association
CFR	Code of Federal Regulations
CRD	Handbook for Concrete and Cement
DOD	Department of Defense Military Specifications and Standards
DSCC	Defense Supply Center Columbus (See FS)
FED-STD	Federal Standard (See FS)
FS	Federal Specification
FTMS	Federal Test Method Standard (See FS)
ICC-ES	ICC Evaluation Service, Inc.
MIL	(See MILSPEC)
MIL-STD	(See MILSPEC)
MILSPEC	Military Specification and Standards
NES	National Evaluation Service (See ICC-ES)
UFAS	Uniform Federal Accessibility Standards

1.3 ABBREVIATIONS AND ACRONYMS

A. Industry Organizations: Where abbreviations and acronyms are used in Specifications or other Contract Documents, they shall mean the recognized name of the entities indicated in Gale Research's "Encyclopedia of Associations" or in Columbia Books' "National Trade & Professional Associations of the U.S."

B. Code Agencies: Where abbreviations and acronyms are used in Specifications or other Contract Documents, they shall mean the recognized name of the entities in the following list.

BOCA	BOCA International, Inc. (Now ICC)
CABO	Council of American Building Officials (Now ICC)
IAPMO	International Association of Plumbing and Mechanical Officials
ICBO	International Conference of Building Officials (Now ICC)
ICBO ES	ICBO Evaluation Service, Inc. (Now ICC-ES)
ICC	International Code Council (Formerly: CABO - Council of American Building Officials)
ICC-ES	ICC Evaluation Service, Inc.
NES	National Evaluation Service (Now ICC-ES)
SBCCI	Southern Building Code Congress International, Inc. (Now ICC)

PART 2 - PRODUCTS (Not Used)

PART 3 - EXECUTION (Not Used)

END OF SECTION 014201

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PART 1 - GENERAL

1.1 SUMMARY

A. This Section includes requirements for temporary utilities, support facilities, and security and protection facilities.

1. Vendor may use existing utilities for temporary facilities during performance of the Work, as deemed acceptable by the Owner.

B. See Division 1 Section "Execution (FF&E)" for progress cleaning requirements.

1.2 USE CHARGES

A. General: Cost or use charges for temporary facilities shall be included in the Contract Sum.

B. Water Service: Water from Owner's existing water system is available for use without metering and without payment of use charges. Provide connections and extensions of services as required for construction operations.

C. Electric Power Service: Electric power from Owner's existing system is available for use without metering and without payment of use charges. Provide connections and extensions of services as required for construction operations.

1.3 QUALITY ASSURANCE

A. Electric Service: Comply with NFPA 70, NECA, NEMA, and UL standards and regulations for temporary electric service.

1.4 PROJECT CONDITIONS

A. Temporary Use of Permanent Facilities: Vendor shall assume responsibility for operation, maintenance, and protection of each permanent service during its use as a construction facility before Owner's acceptance, regardless of previously assigned responsibilities.

PART 2 - PRODUCTS (not used)

PART 3 - EXECUTION

3.1 INSTALLATION, GENERAL

A. Locate facilities where they will serve Project adequately and result in minimum interference with performance of the Work. Relocate and modify facilities as required by progress of the Work.

B. Provide each facility ready for use when needed to avoid delay. Do not remove until facilities are no longer needed or are replaced by authorized use of completed permanent facilities.

3.2 TEMPORARY UTILITY INSTALLATION

A. Water Service: Use of Owner's existing water service facilities will be permitted, as long as facilities are cleaned and maintained in a condition acceptable to Owner. At Substantial Completion, restore these facilities to condition existing before initial use.

B. Sanitary Facilities:

1. Toilets: Use of Owner's toilet facilities will not be permitted. Restroom use shall be coordinated with General Contractor.

C. Electric Power Service: Use of Owner's existing electric power service will be permitted, as long as equipment is maintained in a condition acceptable to Owner.

D. Telephone Service: Provide superintendent with cellular telephone.

3.3 SUPPORT FACILITIES INSTALLATION

A. Parking: Use designated areas of Owner's existing parking areas for construction personnel.

B. Waste Disposal Facilities: Provide waste-collection containers in sizes adequate to handle waste from construction operations. Comply with requirements of authorities having jurisdiction. Comply with Division 1 Section "Execution (FF&E)" for progress cleaning requirements.

1. Use of General Contractor’s or Owner’s dumpsters is not acceptable.

E. Existing Elevator Use: Use of Owner's elevator(s) will be permitted, as long as elevators are cleaned and maintained in a condition acceptable to Owner. At Substantial Completion, restore elevators to condition existing before initial use.

1. Provide protective coverings, barriers, devices, signs, or other procedures to protect elevator car and entrance doors and frame. If, despite such protection, elevators become damaged, engage elevator Installer to restore damaged work so no evidence remains of correction work. Return items that cannot be refinished in field to the shop, make required repairs and refinish entire unit, or provide new units as required.

F. Stair Usage: Use of Owner's existing stairs will be permitted, as long as stairs are cleaned and maintained in a condition acceptable to Owner. At Substantial Completion, restore stairs to condition existing before initial use.

1. Provide protective coverings, barriers, devices, signs, or other procedures to protect stairs and to maintain means of egress. If, despite such protection, stairs become damaged, restore damaged areas so no evidence remains of correction work.

3.4 SECURITY AND PROTECTION FACILITIES INSTALLATION

A. Environmental Protection: Provide protection, operate temporary facilities, and conduct construction in ways and by methods that comply with environmental regulations and that minimize possible air, waterway, and subsoil contamination or pollution or other undesirable effects.

B. Security Enclosure and Lockup: Provide lockable entrances to prevent unauthorized entrance, vandalism, theft, and similar violations of security.

3.5 OPERATION, TERMINATION, AND REMOVAL

A. Supervision: Enforce strict discipline in use of temporary facilities.

B. Maintenance: Maintain facilities in good operating condition until removal.

C. Termination and Removal: Remove each temporary facility when need for its service has ended, when it has been replaced by authorized use of a permanent facility, or no later than Substantial Completion. Complete or, if necessary, restore permanent construction that may have been delayed because of interference with temporary facility. Repair damaged Work, clean exposed surfaces, and replace construction that cannot be satisfactorily repaired.

1. Materials and facilities that constitute temporary facilities are property of Contractor. Owner reserves right to take possession of Project identification signs.
2. At Substantial Completion, clean and renovate permanent facilities used during construction period. Comply with final cleaning requirements specified in Division 1 Section "Closeout Procedures (FF&E)."

END OF SECTION 015001

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PART 1 - GENERAL

1.1 SUMMARY

A. This Section includes administrative and procedural requirements for selection of products for use in the Project; product delivery, storage, and handling; manufacturers' standard warranties on products; special warranties; product substitutions; and comparable products.

B. See Division 1 Section "Closeout Procedures (FF&E)" for submitting warranties for Contract closeout.

C. Refer to Product Schedule the Package Specification for specific requirements for warranties on products and installations specified to be warranted.

1.2 DEFINITIONS

A. Products: Items purchased for incorporating into the Work, whether purchased for the Project or taken from previously purchased stock. The term "product" includes the terms "material," "equipment," "system," and terms of similar intent.

1. Named Products: Items identified by manufacturer's product name, including make or model number or other designation shown or listed in manufacturer's published product literature, which is current as of date of the Contract Documents.
2. New Products: Items that have not previously been incorporated into another project or facility. Products salvaged or recycled from other projects are not considered new products.
3. Comparable Product: Product that is demonstrated and approved through submittal process, or where indicated as a product substitution, to have the indicated qualities related to type, function, dimension, in-service performance, physical properties, appearance, warranty, and other characteristics that equal or exceed those of specified product.

B. Substitutions: Changes in products, materials, equipment, and methods of construction from those required by the Contract Documents and proposed by Vendor.

C. Basis-of-Design Product Specification: Where a specific manufacturer's product is named and accompanied by the words "basis of design," including make or model number or other designation, to establish the significant qualities related to type, function, dimension, in-service performance, warranty, physical properties, appearance, and other characteristics for purposes of evaluating comparable products of other named manufacturers, including manufacturer warranty coverage.

1.3 SUBSTITUTIONS

A. The materials, products and equipment described in the Bidding Documents establish a standard of required function, dimension, appearance, and quality to be met by any proposed substitution.

B. No substitutions will be considered prior to receipt of Bids unless written request for approval has been received by the Architect at least ten business days prior to the date for receipt of Bids. Such requests shall include the name of the material or product for which it is to be substituted and a complete description of the proposed substitution including drawings, performance and test data, and other information necessary for an evaluation. A statement setting forth changes in other materials, equipment, or other portions of the Work, including changes in the work of other contracts that incorporation of the proposed substitution would require, shall be included. The burden of proof of the merit of the proposed substitution is upon the proposer. The Architect's decision of approval or disapproval of a proposed substitution shall be final.

C. The phrase "or an approved equal" within the Contract Documents means a material or product for which a request for approval has been submitted as required by Paragraph 1.3.B. above and for which the Architect's/Engineer's approval has been granted prior to receipt of bids.

D. If the Architect approves a proposed substitution prior to receipt of Bids, such approval will be set forth in an Addendum. Bidders shall not rely upon approvals made in any other manner.

E. No substitutions will be considered after the Contract award unless specifically provided for in the Contract Documents. See section 1.4 for substitution submittal requirements.

1.4 SUBMITTALS

A. Substitution Requests: Submit in a separate section, details of each request for consideration. Identify product or fabrication or installation method to be replaced. Include the Bid Package # & Item# number and title and Drawing numbers and titles.

1. Documentation: Show compliance with requirements for substitutions and the following, as applicable:

a. Statement indicating why specified material or product cannot be provided.
b. Coordination information, including a list of changes or modifications needed to other parts of the Work and to construction performed by Owner and separate vendors that will be necessary to accommodate proposed substitution.
c. Detailed comparison of significant qualities of proposed substitution with those of the Work specified. Significant qualities may include attributes such as performance, weight, size, durability, visual effect, and specific features and requirements indicated, as well as warranty comparison.
d. Product Data, including drawings and descriptions of products and fabrication and installation procedures.
e. Samples, where applicable or requested.
f. Statement indicating effect on Purchase Order Tracking Report.
g. Product Lead Times
h. List of similar installations for completed projects with project names and addresses and names and addresses of architects and owners.

i. Material test reports from a qualified testing agency indicating and interpreting test results for compliance with requirements indicated.
j. Research/evaluation reports evidencing compliance with building code in effect for Project, from a model code organization acceptable to authorities having jurisdiction.
k. Detailed comparison of Vendor's Production and Installation Schedule using proposed substitution with products specified for the Work, including effect on the overall Contract Time. If specified product or method of construction cannot be provided within the Contract Time, include letter from manufacturer, on manufacturer's letterhead, stating lack of availability or delays in delivery.
l. Cost information, including a proposal of change, if any, in the Contract Sum.
m. Vendor's certification that proposed substitution complies with requirements in the Contract Documents and is appropriate for applications indicated.
n. Vendor's waiver of rights to additional payment or time that may subsequently become necessary because of failure of proposed substitution to produce indicated results.

2. Architect's Action: If necessary, Architect will request additional information or documentation for evaluation within seven (7) calendar days of receipt of a request for substitution. Architect will notify Vendor of acceptance or rejection of proposed substitution within fifteen (15) working days of receipt of request, or five (5) working days of receipt of additional information or documentation, whichever is later.

a. Form of Acceptance: Change Order or Architect's Supplemental Instructions.
b. Use product specified if Architect cannot make a decision on use of a proposed substitution within time allocated.

B. Comparable Product Requests: Submit electronic copies of each request for consideration. Identify product or fabrication or installation method to be replaced. Include Bid Package number and Item number, along and title and Drawing numbers and titles.

1. Architect's Action: If necessary, Architect will request additional information or documentation for evaluation within ten (10) calendar days of receipt of a comparable product request. Architect will notify Vendor of approval or rejection of proposed comparable product request within fifteen (15) working days of receipt of request, or five (5) working days of receipt of additional information or documentation, whichever is later.

a. Form of Approval: As specified in Division 1 Section "Submittal Procedures (FF&E)."
b. Use product specified if Architect cannot make a decision on use of a comparable product request within time allocated.

C. Basis-of-Design Product Specification Submittal: Comply with requirements in Division 1 Section "Submittal Procedures (FF&E)." Show compliance with requirements.

1.5 QUALITY ASSURANCE

A. Compatibility of Options: If Vendor is given option of selecting between two or more products for use on Project, product selected shall be compatible with products previously selected, even if previously selected products were also options.

1.6 PRODUCT DELIVERY, STORAGE, AND HANDLING

A. Deliver, store, and handle products using means and methods that will prevent damage, deterioration, and loss, including theft. Comply with manufacturer's written instructions.

B. Delivery and Handling:

1. Schedule delivery to minimize long-term storage at warehouses, there is no storage available at the Project Site.
2. Coordinate delivery with installation time to ensure minimum holding time for items that are flammable, hazardous, easily damaged, or sensitive to deterioration, theft, and other losses.
3. Deliver products to Project site in an undamaged condition in manufacturer's original sealed container or other packaging system, complete with labels and instructions for handling, storing, unpacking, protecting, and installing.
4. Inspect products on delivery to ensure compliance with the Contract Documents and to ensure that products are undamaged and properly protected.

C. Storage:

1. Store products to allow for inspection and measurement of quantity or counting of units.
2. Store products under cover in a weather-tight enclosure above ground, with ventilation adequate to prevent condensation.
3. Comply with product manufacturer's written instructions for temperature, humidity, ventilation, and weather-protection requirements for storage.
4. Protect stored products from damage and liquids from freezing.
5. Clear all delivered items from loading area and store properly at the end of each day.

1.7 PRODUCT WARRANTIES

A. Warranties specified in other Sections shall be in addition to, and run concurrent with, other warranties required by the Contract Documents. Manufacturer's disclaimers and limitations on product warranties do not relieve Vendor of obligations under requirements of the Contract Documents. **Written warranties need only be provided upon bid award, unless a substitution is proposed.**

1. Manufacturer's Warranty: Preprinted written warranty published by individual manufacturer for a particular product and specifically endorsed by manufacturer to Owner.
2. Owner’s Warranty Requirements: All products as a part of this project shall have a minimum five (5) year warranty. Vendor is to provide in writing any exceptions to minimum requirement.

3. Special Warranty: Written warranty required by or incorporated into the Contract Documents, either to extend time limit provided by manufacturer's warranty or to provide more rights for Owner.

B. Special Warranties: Prepare a written document that contains appropriate terms and identification, ready for execution. Submit a draft for approval before final execution.

1. Manufacturer's Standard Form: Modified to include Project-specific information and properly executed.
2. Specified Form: When specified forms are included with the Specifications, prepare a written document using appropriate form properly executed.

C. Submittal Time: Comply with requirements in Division 1 Section "Closeout Procedures (FF&E)."

1.8 NAMEPLATES

A. Except for required labels and operating data, do not attach or imprint manufacturers or producer’s nameplates or trademarks on exposed surfaces of products that will be exposed to view in occupied spaces or on the exterior.

PART 2 - PRODUCTS

2.1 PRODUCT SELECTION PROCEDURES

A. General Product Requirements: Provide products that comply with the Contract Documents, that are undamaged and, unless otherwise indicated, that are new at time of installation.

1. Provide products complete with accessories, trim, finish, fasteners, and other items needed for a complete installation and indicated use and effect.
2. Where products are accompanied by the term "as selected," Architect will make selection.
3. Where products are accompanied by the term "match sample," sample to be matched is Architect's.
4. Descriptive, performance, and reference standard requirements in the Specifications establish "salient characteristics" of products.

B. Product Selection Procedures:

1. Product: Where Specifications name a single product and manufacturer, provide the named product that complies with requirements.

a. Substitutions may be considered, unless otherwise indicated. Notification to the Architect for approval of a suggested alternate is required, in writing, within (10) business days of bid release.

2. Products: Where Specifications include a list of names of both products and manufacturers, provide pricing for all products listed that vendor is able to provide.

a. No substitutions will be permitted, unless previously approved during bidding phase.

3. Product Options: Where Specifications indicate that sizes, profiles, and dimensional requirements on Drawings are based on a specific product or system, provide the specified product or system. Comply with provisions in Part 2 "Product Substitutions" Article for consideration of an unnamed product or system.
4. Basis-of-Design Product: Where Specifications name a product and include a list of manufacturers, provide the specified product and comparable products by the other named manufacturers (if open to provide pricing). Drawings and Specifications indicate sizes, profiles, dimensions, and other characteristics that are based on the product named. Comply with provisions in Part 2 "Comparable Products" Article for consideration of an unnamed product by the other named manufacturers.

2.2 PRODUCT SUBSTITUTIONS

A. Timing: Refer to AIA A701-2018 Instructions to Bidders and 001116 Invitation to Bid for substitution timeline procedures.

B. Conditions: Architect will consider Vendor's request for substitution when the following conditions are satisfied. If the following conditions are not satisfied, Architect will return requests without action, except to record noncompliance with these requirements:

1. Requested substitution offers Owner a substantial advantage in cost, time, energy conservation, or other considerations, after deducting additional responsibilities Owner must assume. Owner's additional responsibilities may include compensation to Architect for redesign and evaluation services, increased cost of other construction by Owner, and similar considerations.
2. Requested substitution does not require extensive revisions to the Contract Documents.
3. Requested substitution is consistent with the Contract Documents and will produce indicated results.
4. Substitution request is fully documented and properly submitted.
5. Requested substitution will not adversely affect Vendor's Construction Schedule.
6. Requested substitution has received necessary approvals of authorities having jurisdiction.
7. Requested substitution is compatible with other portions of the Work.
8. Requested substitution has been coordinated with other portions of the Work.
9. Requested substitution provides specified warranty.

2.3 COMPARABLE PRODUCTS

A. Conditions: Architect will consider Vendor's request for comparable product when the following conditions are satisfied. If the following conditions are not satisfied, Architect will return requests without action, except to record noncompliance with these requirements:

1. Evidence that the proposed product does not require extensive revisions to the Contract Documents that it is consistent with the Contract Documents and will produce the indicated results, and that it is compatible with other portions of the Work.
2. Detailed comparison of significant qualities of proposed product with those named in the Specifications. Significant qualities include attributes such as performance, weight, size, durability, visual effect, warranty, and specific features and requirements indicated.
3. Evidence that proposed product provides specified warranty.
4. List of similar installations for completed projects with project names and addresses and names and addresses of architects and owners, if requested.
5. Samples, if requested.

PART 3 - EXECUTION (Not Used)

END OF SECTION 016001

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PART 1 - GENERAL

1.1 SUMMARY

A. This Section includes general procedural requirements governing execution of the Work including, but not limited to, the following:

1. Procurement and installation layout.
2. General installation of products.
3. Progress cleaning.
4. Starting and adjusting.
5. Protection of installed construction.
6. Correction of the Work.

B. See Division 1 Section "Closeout Procedures (FF&E)" for final cleaning.

PART 2 - PRODUCTS (Not Used)

PART 3 - EXECUTION

3.1 EXAMINATION

A. Existing Conditions: The existence and location of utilities, and other construction indicated as existing are not guaranteed. Before beginning work, investigate and verify the existence and location of mechanical and electrical systems and other construction affecting the Work.

1. Before installation, verify the location and points of connection of utility services.

B. Acceptance of Conditions: Examine substrates, areas, and conditions, with Installer or Applicator present where indicated, for compliance with requirements for installation tolerances and other conditions affecting performance. Record observations.

1. Verify compatibility with and suitability of substrates, including compatibility with existing finishes or primers.
2. Examine roughing-in for mechanical and electrical systems to verify actual locations of connections before equipment and fixture installation.
3. Examine walls, floors, and roofs for suitable conditions where products and systems are to be installed.
4. Proceed with installation only after unsatisfactory conditions have been corrected. Proceeding with the Work indicates acceptance of surfaces and conditions.

3.2 PREPARATION

A. **Field Measurements:** Take field measurements and make change as required to fit the Work properly. Recheck measurements before installing each product. Where portions of the Work are indicated to fit to other construction, verify dimensions of other construction by field measurements **before fabrication**. Coordinate fabrication schedule with construction progress to avoid delaying the Work.

1. Vendor/Contractor shall be responsible for field verification of all electrical/data receptacle placement to ensure proper coordination with furniture installation. Locations must be accurately documented.
2. Contractor shall be responsible for the remediation of any incorrect ordered product.

B. Space Requirements: Verify space requirements and dimensions of items shown diagrammatically on Drawings.

C. Review of Contract Documents and Field Conditions: Immediately on discovery of the need for clarification of the Contract Documents, submit a request for information to Architect. Include a detailed description of problem encountered, together with recommendations for changing the Contract Documents and a marked-up plan or photos where appropriate. Submit requests on "Request for Information" form supplied by Architect.

3.3 DELIVERY

A. The Vendor shall make delivery of all furniture, furnishings, and equipment in accordance with the Vendor's progress schedule or at a time agreed upon by the Owner and Architect.

B. The Vendor shall become fully informed of the conditions relating to delivery, installation, and labor under which the Vendor's Work will be performed. The Vendor shall employ the labor and means and methods of carrying out the Vendor's Work as the conditions require.

C. Delivery and installation of all furniture, furnishings and equipment shall be made to the location of the Project, as specified in the Contract Documents. Installation of furniture, furnishings and equipment shall include testing as required by the Contract Documents.

D. The Vendor shall consult with the Owner to identify a route to be used within the Project premises from the point of initial delivery at the Project premises to the place of final placement or installation. After its selection, the route shall be made available to the Vendor for delivery of furniture, furnishings and equipment as provided in Section 3.3.A. and Section 3.3.B.

E. The Vendor shall, within a reasonable time prior to delivery, provide the Owner with schedules for access and arrange for the use of elevators and unloading facilities.
1. Refer to Section 011001 Summary for elevator cab dimensions.

F. Deliver and handle goods according to manufacturer's recommendations, using means and methods to prevent damage, deterioration, and loss.

G. Schedule delivery to minimize storage at the project site. Coordinate delivery for items that are easily damaged or sensitive to deterioration or theft with installation time to ensure minimum holding time.

H. The use of pallet jacks is prohibited within the building.

3.4 INSTALLATION

A. ALL installers are to be given coded and clearly labeled installation plans by the Furniture Contractor/Vendor responsible for installer.

B. General: Locate the Work and components of the Work accurately, in correct alignment and elevation, as indicated.

C. Comply with manufacturer's written instructions and recommendations for installing products in applications indicated. Should a conflict exist between specifications and instructions, consult the Architect.

D. Coordinate site delivery, loading dock, and elevator usage with General Contractor/Owner's Representative.

E. Install products at the time and under conditions that will ensure the best possible results. Maintain conditions required for product performance until Substantial Completion.

F. Conduct operations so no part of the Work is subjected to damaging operations or loading in excess of that expected during normal conditions of occupancy.

G. Tools and Equipment: Do not use tools or equipment that produce harmful noise levels or exhaust.
   1. The use of pallet jacks is prohibited within the building.

H. Anchors and Fasteners: Provide anchors and fasteners as required to anchor each component securely in place, accurately located and aligned with other portions of the Work.

   1. Mounting Heights: Where mounting heights are not indicated, mount components at heights directed by Architect.

I. Joints: Make joints of uniform width. Where joint locations in exposed work are not indicated, arrange joints for the best visual effect. Fit exposed connections together to form hairline joints.

J. Hazardous Materials: Use products, cleaners, and installation materials that are not considered hazardous.

K. Accessories: (marker boards, tack boards, coat hooks, etc.)
   1. Do not install furniture accessories until all furnishings have been installed.
   2. Protect and secure accessories as recommended by manufacturer.
   3. Ensure all table and floor lamps are ordered with appropriate length of electrical cord to allow access to nearest outlet. Field verify locations to ensure proper installation.
   4. Verify mounting heights with architect prior to installation.

L. When the Vendor considers installation of all or a designated portion of the furniture, furnishings or equipment required by the Contract Documents to be complete, the Vendor shall advise the Owner and Architect in writing.

3.5 PROGRESS CLEANING

A. General: Clean Project work areas daily, including common areas. Coordinate progress cleaning for joint-use areas where more than one installer has worked. Enforce requirements strictly. Dispose of materials lawfully.

1. Comply with requirements in NFPA 241 for removal of combustible waste materials and debris.
2. Containerize hazardous and unsanitary waste materials separately from other waste. Mark containers appropriately and dispose of legally, according to regulations.

B. Site: Maintain Project site loading and delivery areas free of waste materials and debris.

C. Work Areas: Clean areas where work is in progress to the level of cleanliness necessary for proper execution of the Work.

1. Remove liquid spills promptly.
2. Where dust would impair proper execution of the Work, broom-clean or vacuum the entire work area, as appropriate.
3. All packing debris shall be removed by the vendor at the end of each business day.

D. Installed Work: Keep installed work clean. Clean installed surfaces according to written instructions of manufacturer or fabricator of product installed, using only cleaning materials specifically recommended. If specific cleaning materials are not recommended, use cleaning materials that are not hazardous to health or property and that will not damage exposed surfaces.

E. Exposed Surfaces in Finished Areas: Clean exposed surfaces and protect as necessary to ensure freedom from damage and deterioration at time of Substantial Completion.

F. Waste Disposal: Burying or burning waste materials on-site will not be permitted. Washing waste materials down sewers or into waterways will not be permitted.

G. During handling and installation, clean and protect work in progress and adjoining materials already in place. Apply protective covering where required to ensure protection from damage or deterioration at Substantial Completion.

H. Limiting Exposures: Supervise operations to assure that no part of the work, completed or in progress, is subject to harmful, dangerous, damaging, or otherwise deleterious exposure during the installation period.

3.6 STARTING AND ADJUSTING

A. Adjust operating components for proper operation without binding. Adjust equipment for proper operation.
1. Installation team shall be responsible for final balancing and adjustment of monitor arms after monitors are installed.

B. Test each piece of equipment to verify proper operation. Test and adjust controls and safeties. Replace damaged and malfunctioning controls and equipment.

C. Manufacturer's Field Service: If a factory-authorized service representative is required to inspect field-assembled components and equipment installation, comply with qualification requirements in Division 1 Section "Quality Requirements (FF&E)."

3.7 PROTECTION OF INSTALLED INSTALLATION

A. Examine the project site before first delivery, including loading dock areas, elevators, and station area to ensure conditions are satisfactory for proper performance of the Work. Existing damage to building of debris that hinders performance shall immediately be called to the attention of the Architect.

B. Vendor/Contractor shall be responsible for any and all damages to construction structure that that are caused by installers and that may occur during installation phases.

C. Provide final protection and maintain conditions that ensure installed Work is without damage or deterioration at time of Substantial Completion.

D. Comply with manufacturer's written instructions for temperature and relative humidity.

3.8 CORRECTION OF THE WORK

A. Repair or remove and replace defective construction. Restore damaged substrates and finishes of products as required.

1. Repairing includes replacing defective parts, refinishing damaged surfaces, touching up with matching materials, and properly adjusting operating equipment.

B. Restore permanent facilities used during construction to their specified condition. Restore damaged substrates and finishes as provided per the Contract Documents – utilize the General Contractor for all required repairs to existing construction directly related and identified as a result of this Contract.

C. Remove and replace damaged surfaces that are exposed to view if surfaces cannot be repaired without visible evidence of repair.

D. Repair components that do not operate properly. Remove and replace operating components that cannot be repaired.

E. Remove and replace chipped, scratched, and broken glass or reflective surfaces.

END OF SECTION 017301

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PART 1 - GENERAL

1.1 SUMMARY

A. This Section includes administrative and procedural requirements for contract closeout, including, but not limited to, the following:

1. Inspection procedures.
2. Warranties.
3. Final cleaning.

B. See Division 1 Section "Payment Procedures (FF&E)" for requirements for Applications for Payment for Substantial and Final Completion.

C. See Division 1 Section "Project Record Documents (FF&E)" for submitting Record Drawings, Record Specifications, and Record Product Data.

D. See Division 1 Section "Operation and Maintenance Data (FF&E)" for operation and maintenance manual requirements.

1.2 SUBSTANTIAL COMPLETION

A. Preliminary Procedures: Before requesting inspection for determining date of Substantial Completion, complete the following. List items below that are incomplete in request.

1. Prepare a list of items to be completed and corrected (punch list), the value of items on the list, and reasons why the Work is not complete. Punch list shall be in typewritten format.
2. Advise Owner of pending insurance changeover requirements.
3. Submit specific warranties, workmanship bonds, maintenance service agreements, final certifications, and similar documents.
4. Obtain and submit releases permitting Owner unrestricted use of the Work and access to services.
5. Prepare and submit Project Record Documents, operation and maintenance manuals, damage or settlement surveys, and similar final record information.
6. Deliver tools, spare parts, extra materials, and similar items to location designated by Owner. Label with manufacturer's name and model number where applicable.
7. Submit changeover information related to Owner's occupancy, use, operation, and maintenance.
8. Complete final cleaning requirements.
9. Touch up and otherwise repair and restore marred exposed finishes to eliminate visual defects, including touchup painting.
10. Work with General Contractor and Owner’s Representative to complete all punch list items as relate to the existing building systems that require repair.

B. Inspection: Submit a written request for inspection for Substantial Completion. On receipt of request, Architect will either proceed with inspection or notify Vendor of unfulfilled requirements. Architect will prepare the Certificate of Substantial Completion after inspection or will notify Vendor of items, either on Vendor’s list or additional items

identified by Architect, that must be completed or corrected before certificate will be issued.

1. Reinspection: Request reinspection when the Work identified in previous inspections as incomplete is completed or corrected.
2. Results of completed inspection will form the basis of requirements for Final Completion.

1.3 FINAL COMPLETION

A. Preliminary Procedures: Before requesting final inspection for determining date of Final Completion, complete the following:

1. Submit a final Application for Payment according to Division 1 Section "Payment Procedures (FF&E)."
2. Submit certified copy of Architect's Substantial Completion inspection list of items to be completed or corrected (punch list), endorsed and dated by Architect. The certified copy of the list shall state that each item has been completed or otherwise resolved for acceptance.
3. Submit evidence of final, continuing insurance coverage complying with insurance requirements.

B. Inspection: Submit a written request for final inspection for acceptance. On receipt of request, Architect will either proceed with inspection or notify Vendor of unfulfilled requirements. Architect will prepare a final Certificate for Payment after inspection or will notify Vendor of work that must be completed or corrected before certificate will be issued.

1.4 LIST OF INCOMPLETE ITEMS (PUNCH LIST)

A. Preparation: Submit one (1) electronic copy of list in typewritten format. Include name and identification of each space and area affected by operations for incomplete items and items needing correction including, if necessary, areas disturbed by Vendor that are outside the limits of construction. Punch list should be updated and published to Architect/Owner periodically during installation.

1. Organize list of spaces in sequential order, following completion schedule.
2. Include date for completion of each incomplete item.
3. List must be typed text and provided in digital format; no handwritten documents will be accepted.

1.5 WARRANTIES

A. Submittal Time: Submit written warranties on request of Architect for designated portions of the Work where commencement of warranties other than date of Substantial Completion is indicated.

B. Organize warranty documents into an orderly sequence based on the table of contents of the Project Manual. Provide a digital binder of warranties in searchable electronic PDF format. Warranties to be provided to Owner upon bid award and are not required as a part of the bid proposal.

1. Mark tab to identify the product or installation. Provide a typed description of the product or installation, including the name of the product and the name, address, and telephone number of Dealer/Installer.
2. Identify in the name of each file: "WARRANTIES," Project name, and name of Vendor.

C. Provide additional copies of each warranty to include in operation and maintenance manuals.

PART 2 - PRODUCTS

2.1 MATERIALS

A. Cleaning Agents: Use cleaning materials and agents recommended by manufacturer or fabricator of the surface to be cleaned. Do not use cleaning agents that are potentially hazardous to health or property or that might damage finished surfaces.

PART 3 - EXECUTION

3.1 FINAL CLEANING

A. General: Provide final cleaning. Conduct cleaning and waste-removal operations to comply with local laws and ordinances and Federal and local environmental and antipollution regulations.

B. Cleaning: Employ experienced workers or professional cleaners for final cleaning. Clean each surface or unit to condition expected in an average commercial building cleaning and maintenance program. Comply with manufacturer's written instructions.

1. Complete the following cleaning operations before requesting inspection for certification of Substantial Completion for entire Project or for a portion of Project:

    a. Remove tools, construction equipment, machinery, and surplus material from Project site.
    b. Clean transparent materials, including mirrors and glass. Remove glazing compounds and other noticeable, vision-obscuring materials. Replace chipped or broken glass and other damaged transparent materials. Polish mirrors and glass, taking care not to scratch surfaces.
    c. Remove labels that are not permanent.
    d. Vacuum upholstered and other soft surfaces.
    e. Touch up and otherwise repair and restore marred, exposed finishes and surfaces. Replace finishes and surfaces that cannot be satisfactorily repaired or restored or that already show evidence of repair or restoration.
    f. Replace parts subject to unusual operating conditions.
    g. Remove temporary protection, including protective covering, protective film, etc.
    h. Remove marks, stains, fingerprints, and other soil or dirt from painted, decorated, and natural finished surfaces.
    i. Clean fixtures, cabinetwork, furniture, furnishings, and equipment to remove stains, paint, dirt, dust, and leave in undamaged, new condition.

j. Clean stainless steel, aluminum, bronze, brass, chrome, and other metallic finishes in accordance with recommendations of the manufacturer.

C. Comply with safety standards for cleaning. Do not burn waste materials. Do not bury debris or excess materials on Owner's property. Do not discharge volatile, harmful, or dangerous materials into drainage systems. Remove waste materials from Project site and dispose of lawfully.

3.2 ACCEPTANCE OF WORK

A. Prior to the tender of delivery by the Vendor, the Owner may conduct a preliminary inspection of the furniture, furnishings, and equipment upon delivery for the purpose of verifying the delivery of such furniture, furnishings, or equipment, including quantities. Such preliminary inspections shall not constitute acceptance of, taking charge over or control of such furniture, furnishings, or equipment. Any defects, damage, deficiencies, or nonconformity discovered by the Owner shall be reported to the Vendor.

B. Upon completion of installation pursuant to Section 017301, the Owner, with the assistance of the Architect, shall conduct an acceptance inspection. If the Owner determines that the furniture, furnishings, and equipment comply with the requirements of the Contract Documents, the Owner shall notify the Vendor that the furniture, furnishings and equipment have been accepted. If the Owner determines that all or any portion of the furniture, furnishings or equipment do not conform to the requirements of the Contract Documents, the Owner shall reject such nonconforming portion by notifying the Vendor in writing of such rejection.

C. If the Owner rejects all or any portion of the delivery, the Owner shall notify the Vendor within a reasonable time, which shall not be more than 30 days after the date of the inspection performed pursuant to Section 3.2.B. The notice shall include the specific basis for the Owner’s rejection.

D. If the Owner rejects all or any portion of the delivery, the Owner shall hold the rejected portion for a reasonable time to permit the Vendor to remove it from the Project premises.

E. Upon rejection by the Owner, the Vendor shall have 30 days to provide acceptable evidence of arrangements to remedy the basis for rejection. If the Vendor remedies the basis for rejection, the Vendor shall notify the Owner in writing. The Owner shall have an additional period of time to conduct an acceptance inspection of the previously rejected furniture, furnishings or equipment. If the Owner agrees to accept the furniture, furnishings or equipment, the Owner shall so notify the Vendor in writing. If the Owner rejects the tender of such furniture, furnishings or equipment, the Owner shall notify the Vendor within a reasonable time, which shall not be more than 30 days. Such notice shall include the specific basis for rejection. Upon rejection, the Vendor shall remove the rejected furniture, furnishings, or equipment from the Project premises.

F. If furniture, furnishings, or equipment that have been previously accepted are found not to comply with the requirements of the Contract Documents, the Owner shall be entitled to revoke acceptance so long as the Vendor does not suffer actual prejudice by virtue of the Owner’s prior acceptance of such furniture, furnishings, or equipment. Such revocation of acceptance shall be made by giving prompt notice to the Vendor. In such event, the Vendor shall proceed in accordance with Section 3.2.E.

G. The provisions of this Article 3.2 do not preclude recovery of damages as provided by law.

END OF SECTION 017701

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PART 1 - GENERAL

1.1 SUMMARY

A. This Section includes administrative and procedural requirements for preparing operation and maintenance manuals, including the following:

1. Operation manuals for equipment including: power systems for training and conference tables, and instructions for height adjustable desks.
2. Maintenance manuals for the care and maintenance of furniture, furnishings, equipment, products, materials, and finishes.

1.2 SUBMITTALS

A. Manual: Submit one (1) DIGITAL copy of each manual in final form at least fifteen (15) working days before final inspection.

PART 2 - PRODUCTS

2.1 MANUALS, GENERAL

A. Organization: Unless otherwise indicated, organize each manual into a separate section for each system and subsystem, and a separate section for each piece of equipment not part of a system. Each manual shall contain a title page, table of contents, and manual contents.

B. Title Page: Include title page before each section. Include the following information:

1. Subject matter included in manual.
2. Name and address of Project.
3. Name and address of Owner.
4. Date of submittal.
5. Name, address, and telephone number of Vendor.
6. Name and address of Architect.
7. Cross-reference to related systems in other operation and maintenance manuals.

C. Table of Contents: List each product included in manual, identified by product name, indexed to the content of the volume.

D. Manual Contents: Organize into sets of manageable size. Arrange contents alphabetically by item code then manufacturer.

1. Binders: Are not required for this project. Submit manual in searchable PDF format that is indexed and bookmarked.
2. Drawings: Submit all vendor drawings in digital form, PDF and AutoCAD files.

2.2 OPERATION MANUALS

A. Content: In addition to requirements in this Section, include operation data required in individual Specification Sections and equipment descriptions, operating standards,

operating procedures. Specific instructions are required for operation of all height adjustable tables or desks.

B. Descriptions: Include the following:

1. Product name and model number.
2. Manufacturer's name.
3. Photo of furniture item.
4. Quantity of each item provided.
5. Product Description.
6. Name of supplying dealership.
7. Warranty start and end date – for each furniture item and fabric (as applies).
8. Warranty information and terms – for each furniture item and fabric (as applies).
9. Contact information for event of warranty claim – furniture item and fabric.
10. Contact information for event outside warranty period for repair.

C. Operating Procedures: Operating and programming instructions for powered furniture.

2.3 PRODUCT MAINTENANCE MANUAL

A. Content: Organize manual into a separate section for each product, material, and finish. Include source information, product information, maintenance procedures, repair materials and sources, and warranties and bonds, as described below.

B. Source Information: List each product included in manual, identified by product name and arranged to match manual's table of contents. For each product, list name, address, and telephone number of Installer or supplier and maintenance service agent, and cross-reference Specification Section number and title in Project Manual.

C. Product Information: Include the following, as applicable:

1. Product name and model number.
2. Manufacturer's name.
3. Color, pattern, and texture.
4. Material and chemical composition.
5. Reordering information for specially manufactured products.

D. Maintenance Procedures: For each product and textile, include manufacturer's written recommendations and inspection procedures, types of cleaning agents, methods of cleaning, schedule for cleaning and maintenance, and repair instructions.

E. Repair Materials and Sources: Include lists of materials and local sources of materials and related services.

F. Warranties: Include copies of warranties and lists of circumstances and conditions that would affect validity of warranties or bonds. Clearly outline warranty claim procedures and warranty contact information.

2.4 FURNITURE MAINTENANCE MANUAL

A. Content: For each piece of equipment not part of a system, include source information, manufacturers' maintenance documentation, maintenance procedures, maintenance and service schedules, spare parts list and source information, maintenance service contracts, and warranty and bond information.

B. Manufacturers' Maintenance Documentation: Manufacturers' maintenance documentation including maintenance instructions, drawings and diagrams for maintenance, nomenclature of parts and components, and recommended spare parts for each component part or product with .

C. Maintenance Procedures: Include test and inspection instructions, troubleshooting guide, disassembly instructions, and adjusting instructions that detail essential maintenance procedures.

D. Maintenance and Service Schedules: Include service requirements, and schedules for preventive and routine maintenance and service with standard time allotment.

E. Spare Parts List and Source Information: Include lists of replacement and repair parts, with parts identified and cross-referenced to manufacturers' maintenance documentation and local sources of maintenance materials and related services.

F. Warranties: Include copies of warranties and lists of circumstances and conditions that would affect validity of warranties or bonds.

PART 3 - EXECUTION

3.1 MANUAL PREPARATION

A. Manufacturers' Data: Where manuals contain manufacturers' standard printed data, include only sheets pertinent to product or component installed. Mark each sheet to identify each product or component incorporated into the Work. If data include more than one item in a tabular format, identify each item using appropriate references from the Contract Documents. Identify data applicable to the Work and delete references to information not applicable.

B. Drawings: Prepare drawings supplementing manufacturers' printed data to illustrate the relationship of component parts of equipment and systems and to illustrate control sequence and flow diagrams. Coordinate these drawings with information contained in Record Drawings to ensure correct illustration of completed installation.

1. Do not use original Project Record Documents as part of operation and maintenance manuals.

C. Comply with Division 1 Section "Closeout Procedures (FF&E)" for schedule for submitting operation and maintenance documentation.

END OF SECTION 017824

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PART 1 - GENERAL

1.1 RELATED DOCUMENTS

A. Drawings and general provisions of the Contract, including General and Supplementary Conditions and Division 1 Specification Sections, apply to this Section.

1.2 SUMMARY

A. This Section includes furniture requirements for the building.

1.3 SUBMITTALS

A. Product Data: For each type of product indicated.

B. Shop Drawings: Show fabrication and installation details and layout of furniture specific to this Package – Document Drawings included in the Project Set include all information on all Furniture Packages.

1. Provide Product data on each piece of furniture in the schedule.
2. For furniture supporting equipment, show required equipment service clearances, locations of power and data outlets, and conditions requiring furniture accessories.
3. Provide document drawings from manufacturer for all custom items, modular groupings for storage, tables, or lounge seating.
4. For products integrating power access, clearly indicate dimensions, wiring diagrams, and wire management accessories for approval prior to order placement.

C. Samples: Where indicated in the Scheduled Products, for a particular item of furniture, provide Samples from same materials to be used for the Work, as requested.

1. Work Surfaces and Tabletops: Not less than 3 inches square.
2. Exposed Finishes: Manufacturer's standard-size unit, not less than 3 inches square.
3. Fabrics: Prior to shipment, provide cutting from current stock not less than 6" X 6" of all COM fabric for approval.

D. Schedule: Use same designations indicated on Drawings in preparing schedule for furniture.

E. Quality Assurance: Provide written confirmation of Supplier and Installer authorizations to supply and install the specified furniture. In addition, provide written confirmation of experience and length of time in operation of the Installer.

F. Care & Maintenance Data: For all the furniture being provided, include in maintenance manuals specified in Division 1.

1.4 QUALITY ASSURANCE

A. Vendor, Sub-Vendor, or Supplier shall provide an experienced installer who is authorized by the manufacturer to install the equipment and furniture under this Request for Bid.

Provide written confirmation of authorization and numbers of years of experience that comply with the Projects Quality Assurance minimum guidelines.

B. Provide furniture as specified in the schedule which are complete assemblies, either factory assembled and brought to site, or assembled at the site to complete the item. Assembly includes all portions of furniture, including all hardware, accessories, mounting bases, fasteners, etc.

1.5 PROJECT CONDITIONS

A. Field Measurements: Where furniture is fixed in place or requires building power, verify existing dimensions by field measurements before fabrication and indicate measurements on fabrication and/or Shop Drawings. If there are any field dimensions that cause a conflict, notify the Architect immediately.

1.6 DELIVERY, STORAGE, AND HANDLING

A. Protect all items during transit, delivery, storage, and handling so as to prevent damage, soiling, and deterioration. Each piece or item shall be properly packed and protected to prevent damage in transit and handling.

B. Provide temporary storage for items if manufactured and shipped prior to the delivery date, and include all storage fees in Base Bid Proposal.

C. Deliver products to site and locate in finished areas of the building under environmental control as directed – which should be the exact location (as indicated on Floor Plans) where the furniture is to be located unless by some unforeseen conditions prevent this from occurring. All items delivered to the project site shall be covered and/or protected from particulates and airborne contaminants due to final stages of construction. Such items as may be lost or damaged shall immediately be replaced or repaired to a new condition to complete satisfaction of and at no additional cost to the Owner.

D. Inspection: Prior to installation of products in this Section, verify with the Contractor that the construction activities are complete in the areas to receive the product and that installation may proceed. If based on Installer's opinion that the space is not ready for installation of the Product after the Contractor has stated it is acceptable, the Installer is to notify the Architect and the Contractor immediately for review of conditions, prior to installation of the product.

1.7 EXTRA MATERIALS

A. Furnish all extra materials as required, such as identification tags that are packaged with protective covering for storage and identified with units or pieces of units, tied to the Document nomenclature that describes the contents or all of the pieces, and identifies the location to be installed in the Building.

1.8 WARRANTIES

A. Warranties: Submit written agreement in manufacturer's standard form signed by the manufacturer and installing Vendor, Sub-Vendor, Supplier, or Installer. Warranty shall agree to repair or replace any product or portion of item found to have a manufacturing

defect. Such work to be performed to the satisfaction of and at no additional cost to the Owner. Written agreements only required upon confirmation of bid award.

PART 2 - PRODUCTS

2.1 FURNITURE

A. General Notes:

1. Dealership is responsible for reserving COM fabrics to ensure availability at time of order. Dealership is responsible for verifying correct amount of COM yardage to accommodate fabric repeats. Dealership to coordinate with fabric manufacturer's representative. This must be confirmed at time of bid so as to inform Architect of need for reselection with bid document.

B. Systems Furniture General Requirements:
1. Product Submissions: Basis-of-Design indicates level of quality expectation for products used on project. Any deviations from listed manufacturer and product lines must be called out and submitted for approval. Substitute manufacturers will be considered within the bidding process as outlined in Section 016001 Product Requirements.
   a. Benching System (must meet full recommended BIFMA range)
      1) Basis-of-Design: Nevi Link with Extended Height
         a) Acceptable Substitutions: Steelcase Migration SE Benching, Allsteel Further Benching with Extended Height
   b. Enclosed Offices
      1) Basis-of-Design: Herman Miller Canvas Casegoods
      2) Acceptable Substitutions: Steelcase Currency, Allsteel Approach
   c. Metal Desking
      1) Basis-of-Design: Herman Miller Canvas Metal
2. Supplemental Submission
   a. Bidders must provide 3D renderings of each workstation typical with plan views, dimensions, materials, and clearly labeled details.
   b. Any deviations from specifications should be clearly identified. Not disclosing information clearly will result in rejection of submission.
3. Product Lines:
   a. All systems products submitted must be from a single manufacturer to ensure full, complete, and single source manufacturer warranty coverage for all items submitted.
   b. All product lines that make up a line-item submission by storage grouping, enclosed office, or workstation grouping must be clearly listed in the vendor submission.
   c. Include written specifications with 3D imagery in submission to ensure that sizes and details can be verified as accurate.
   d. No feature substitutions will be accepted unless approved during the bidding process and published in addendum documents.
4. System Product Requirements
   a. Warranty:

1) Minimum 10-year original manufacturer's warranty to cover all parts and labor. No exceptions for seating pneumatic/cylinders, casters, glides, table motors and mechanisms.
2) Minimum 12-year warranty on all laminate casegood products.

b. Workstation Panels (3" Panels):
1) All skins to be fully tackable and acoustical on both sides, with interior structural reinforcement.
2) Provide premium steel or aluminum metal trim top caps, and base plates.

c. Power:
1) Power to extend through spine panels or benching trough with architecturally rated power. Power configuration to be coordinated with project electrical engineer prior to order placement.
2) Provide minimum of 2 open duplex receptacles and 1 data access port in spine wall or benching trough at each user desk, fully accessible and unblocked, including by storage.
3) In condition in which end of base power infeed would occupy a user's receptacle, base infeed shall be relocated to panel adjacent at the 90-degree angle.

d. Glass (if indicated):
1) All glass to be recessed and frameless, with polished edges.
2) All glass to be laminated safety glass, minimum 3/8" thickness.
3) In panel-to-panel applications, there shall be no gap between segments of glass. Glass shall appear continuous down the entirety of the panel run.

e. Worksurfaces:
1) Reinforcement channel required under worksurfaces longer than 60" wide to prevent bowing. Exception for height adjustable desk bases with steel understructure spanning from leg-to-leg.
2) All horizontal laminate surfaces to be high-pressure laminate with matching PVC or TP edge, exceptions as called out on individual spec sheets.
3) All seams and joints to be clearly labeled on submission.

f. Height-adjustable desk:
1) Desk must extend to full BIFMA recommended range of 22.6" to 48.7".
2) Lift capacity of 250 lbs.
3) Include collision detection feature.
4) Include 10' cord or longer.
5) Provide T-Leg base in all private offices and in open office workstations.
6) Dimensions provided are the full opening. To avoid pinch points, provide a 1" gap on all sides of height adjustable tabletops.

g. Power (both private office and open workstation conditions, every height-adjustable desk shall receive the following):
1) Include white clamp-mount convenience outlet with minimum 2-plug power electrical receptacle/1-USB A + C, one per desk.
2) Include minimum 6-Plug UL rated metal power strip with surge suppression, with 10' cord, mounted to underside of worksurface.
3) Horizontal Wire Management: Provide concealed wire tray or hinged metal trough, minimum size 36" long x 6"depth, with easy I.T. access

and method to secure cords. Manufacturer must confirm height is appropriate for housing of power strip in open or closed position. Felt is not acceptable. Design intent to accommodate all connections from monitors and clamp-on convenience outlet in wire tray, and to allow only the power strip cord to extend from end of tray to back side of height adjustable table leg, where it will be housed in vertical cable riser. Bidders must provide image of this configuration for Architectural evaluation. Increase tray size if it will not adequately house with ample room for both cords and power strip. Access to trough by removal of mechanical screw not acceptable.

4) Vertical Management - Provide zippered felt or plastic cable riser as indicate on product specification sheets to carry data/power cords to power source at wall or open office spine wall raceway. Use magnetic leg-mounted cable riser in open office applications with panels. Use zippered felt sleeve for freestanding applications with connections directly to wall. Sleeve shall be mounted to the underside of the worksurface.

h. Base Power-In:
   1) Include 1 infeed for each workstation typical, unless more are indicated on specification.
   2) Infeed location cannot occupy user receptacle or be located behind workstation storage.
   3) Infeed type to be coordinated with project electrical engineer.

i. Storage

Storage notes apply to all categories of storage, including, but not limited to; file cabinets, bookcases, coat towers, combination towers, 2-door cabinets, wardrobes, etc.:

   1) All lateral file drawers to include front-to-back filing rails.
   2) All box/file or box/box/file pedestals to include a pencil tray and 2-dividers.
   3) All storage to be proud front with bar style pull.
   4) All storage bases to align in the same plane with plinth base.
   5) All file drawers to be interlocking, open to full depth extension, made of steel construction with fully enclosed back, and utilize heavy duty steel ball-bearing drawer slides.
   6) Storage will be a combination of metal and laminate casegoods, as indicated on individual spec pages.
   7) Coat towers in Open Office Workstations
      a) To be of steel construction with proud front doors (no visible seams)
      b) Provide ADA compliant bar pulls.
      c) Locks: shall be Next Lock by Digilock Mechanical Dial Lock for shared use. Include upgraded ADA compliant lever. Include (2) Manager keys, (2) code retrieval tools, and (2) Removal Keys to be turned over to facilities upon occupancy.
      d) Include (1) shelf in lower position and (1) coat rod and (1) coat hook.
   8) Coat Towers/Wardrobes in Enclosed Offices
      a) To be of HP laminate construction with a fully finished back.
      b) Provide ADA compliant bar pulls.

c) Locks: shall be standard lock and key cores.
d) Include (1) adjustable shelf in lower position, and (1) coat rod and (1) coat hook.
e) Any file storage shall open to full depth extension and shall accommodate both legal/letter filing.

9) All storage to be locking, and keyed alike by office, and keyed individually by workstation.
10) All storage to be provided with appropriate counterweights for stability.
11) Locks: Two master keys shall be provided to owner at installation.

j. Hardware: Provide brackets and hardware as needed for stability and a finished look. No exposed fasteners.

k. Private Offices (Modesty panel, grommets and clamp-mount or through-bolt monitor mount)

1) Modesty panels (where shown) shall be same material as worksurface and positioned recessed from front edge to allow for guest seat, minimum 4" set-back. Install maintaining 1" gap between top and modesty for cords over desk on guest side directly into wire management.
2) Field installed grommets will be required at private offices for wire management.
3) Clearance under surface and at edge must be maintained for clamp-mount monitor arms.
4) Tackboards:
a) All tackboards to be frameless and seamless, unless noted otherwise.
b) All tackboards to be full height and width shown, and to align with top of storage at workstations.
c) Any deviations must be clearly labeled.
d) Tack fabric to be priced as C.O.M. at $45/yd.
e) All tack substrates to be mechanically fastened. Velcro strips mounted to drywall are not an acceptable method of mounting.

l. Finishes

1) Panel and Screen Textile: to be priced as C.O.M. at $45/yd.
2) Laminate: to be high pressure laminate, unless noted otherwise. Laminate to be selected from manufacturer's full line of laminate options, solid, patterned, and wood-look.
3) Metal/Trim: to be selected from full line of manufacturer's standard finishes, including metallic paint.
4) Veneer: to be polyurethane sealed and cured with UV light. To be natural white oak, rift cut, with low gloss finish.
5) Selections: all pulls, finishes, textiles, laminates to be available across all products submitted. Pulls on casegoods should match pulls on open office workstations.
6) Task Seating Textile: to be priced as C.O.M. at $60/yd.

PART 3 - EXECUTION

3.1 EXAMINATION

A. Examine conditions, with Installer present, for compliance with requirements for installation tolerances and other conditions affecting performance of office furniture. Proceed with installation only after unsatisfactory conditions have been corrected.

3.2 INSTALLATION

A. Install office furniture level and plumb. Align with adjacent casework.

B. Install according to Manufacturers standard instructions in locations designated on the Documents.

C. Install all necessary hardware and accessories in place for a complete installation.

D. Clean and inspect all furniture to ensure that the installation is complete and that the furniture is free from defects and ready for Owner use. Repair all defects or replace damaged components to the satisfaction of the Architect and Owner.

E. Upon completion of the installation, leave the area(s) in a neat and clean condition to the satisfaction of the Architect and Contractor. Dealer/Installer is to remove all trash and all trash containers.

F. Protect all products from damage until accepted by the Owner.

G. Installation will occur during daytime hours and with permission of the Owner. Additional installation times off-daytime hours or weekends may be arranged with the Contractor and the Owner if required to meet the schedule for installation, at no additional cost to the Owner – Vendor/Installer is to provide proposed installation timeframes accordingly indicating any needs beyond daytime hours.

H. Vendor/Dealer/Installer are all responsible for any and all damages to the existing building walls, floors, doors, door frames, wood trims, etc., due directly to the delivery and installation of the products. Vendor/Dealer/Installer are required to provide appropriate protection to all building systems that could be possibly damaged during the installation process, and or repair any associated damages through and by the General Contractor on site, at the Vendor/Dealer/Installers cost.

3.3 PRODUCT SCHEDULE

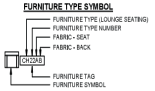
A. Furniture Specification Sheets – refer to all contract documents for bid response.

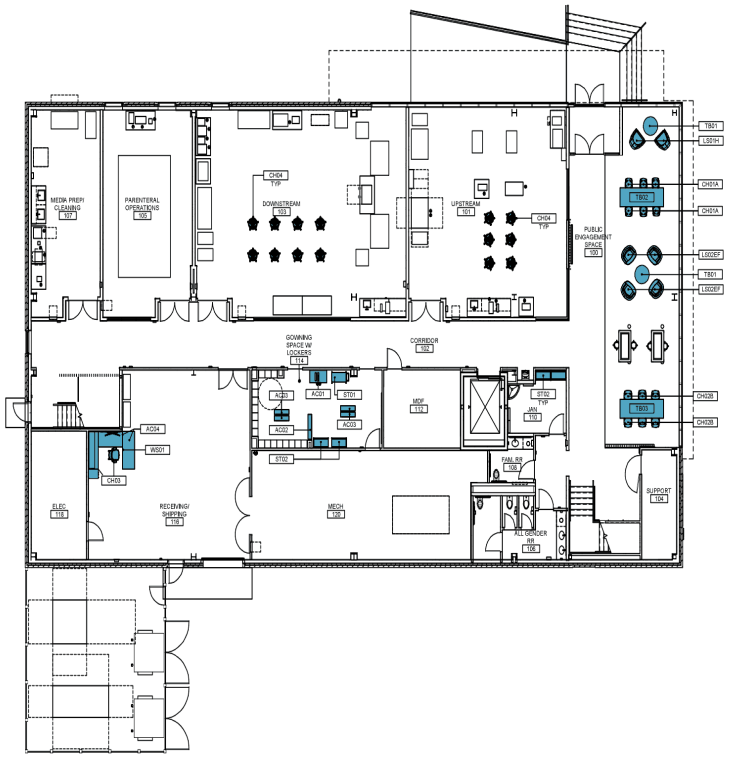
END OF SECTION 125100

FURNITURE SCHEDULE-LEVEL 01

TYPE	FABRIC - SEAT	FABRIC - BACK	DESCRIPTION	QTY.
FIRST LEVEL				
AC01			ACCESSORY - ADA BENCH	1
AC02			ACCESSORY - BENCH- 48" L	1
AC03			ACCESSORY - BENCH- 36" L	4
AC04			ACCESSORY - SINGLE MONITOR ARM	2
CH01	A		CHAIR - COUNTER STOOL	6
CH02	B		CHAIR- LOBBY	6
CH03			CHAIR -PRIVATE OFFICE TASK	1
CH04			CHAIR- LAB STOOLS	14
LS01	H		LOUNGE CHAIR- LOBBY	2
LS02	E	F	LOUNGE CHAIR- LOBBY	4
ST01			STORAGE - MOBILE CART	1
ST02			STORAGE - WIRE FRAME SHELVING 36"W	4
TB01			TABLE- OCCASIONAL TABLE	2
TB02			TABLE- LOBBY 36" HEIGHT	1
TB03			TABLE- LOBBY 30" HEIGHT	1
WS01			PRIVATE OFFICE - SHIPPING & RECEIVING	1

FURNITURE TYPE SYMBOL





AC A-700 **ALL FURN- 01**

1/8" = 1'-0"

NOT FOR CONSTRUCTION

HEARTLAND BIOWORKS HQ

1200 Indiana Avenue
Indianapolis, IN 46202

Owner
Heartland BioWorks
1250 Indiana Avenue
Indianapolis, IN 46202

Applied Research Institute
1250 Indiana Ave.
Indianapolis, IN 46202

Architect
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Indianapolis, Indiana 46204
317-633-4040

Structural Engineer
JPS Consulting Engineers
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Fishers, IN 46038
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Mechanical / Electrical / Plumbing Engineer
Applied Engineering Services
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Indianapolis, IN 46250
317-610-4141

Technology Engineer
Design 27
1650 East 49th Street
Indianapolis, IN 46205
317-536-6000

SEAL | DATE 11/02/26

SHEET ISSUE

#	FURNITURE BID DOCUMENTS	11/02/26

RATIO

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PROJECT NO. 24317.000

SHEET TITLE
FURNITURE PLAN-LEVEL 01

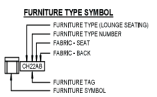
SHEET NUMBER
A-700

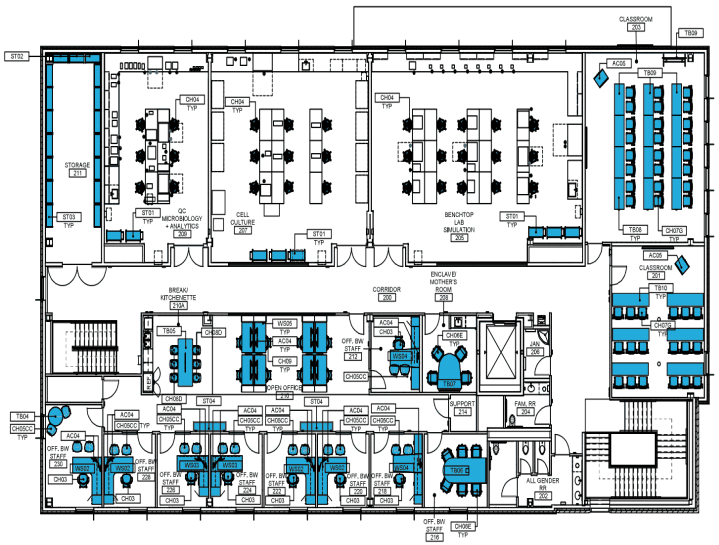
11/2/2026 1:21:30 PM

FURNITURE SCHEDULE-LEVEL 02

TYPE	FABRIC - SEAT	FABRIC - BACK	DESCRIPTION	QTY.
SECOND LEVEL				
AC04			ACCESSORY - SINGLE MONITOR ARM	30
AC05			ACCESSORY- LECTERN	2
CH03			CHAIR -PRIVATE OFFICE TASK	6
CH04			CHAIR- LAB STOOLS	30
CH05	C	C	CHAIR- GUEST	18
CH06	E		CHAIR-CONFERENCE	10
CH07	G		CHAIR- CLASSROOM	42
CH08	D		CHAIR - COUNTER STOOL	6
CH09			CHAIR -OPEN OFFICE TASK	8
ST01			STORAGE - MOBILE CART	8
ST02			STORAGE - WIRE FRAME SHELVING 36"W	3
ST03			STORAGE - WIRE FRAME SHELVING 42"W	14
ST04			STORAGE - CREDENZA	2
TB04			TABLE - 36" ROUND WORK HEIGHT	1
TB05			TABLE - BREAKROOM	1
TB06			TABLE - CONFERENCE, LARGE	1
TB07			TABLE- CONFERENCE, SMALL	1
TB08			TABLE - TRAINING 2 PERSON (ADDER)	9
TB09			TABLE - TRAINING 2 PERSON (STARTER)	4
TB10			TABLE - TRAINING 3 PERSON (ADDER)	6
WS02			WORKSTATION- PRIVATE OFFICE W/O COLUMN	4
WS03			WORKSTATION- PRIVATE OFFICE W/COLUMN	2
WS04			WORKSTATION-FLEX OFFICE	2
WS05			WORKSTATION- OPEN OFFICE	2

Furniture Tag Legend





A2 / A701 **ALL FURN- 02**

1/8" = 1'-0"

NOT FOR CONSTRUCTION

HEARTLAND BIOWORKS HQ

1200 Indiana Avenue
Indianapolis, IN 46202

Owner
Heartland BioWorks
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Applied Research Institute
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Structural Engineer
JPS Consulting Engineers
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Technology Engineer
Design 27
1850 East 49th Street
Indianapolis, IN 46205
317-536-6000

SEAL | DATE 11/02/26

SHEET ISSUE

#	FURNITURE BID DOCUMENTS	11/02/26

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PROJECT NO. 24317.000

SHEET TITLE
FURNITURE PLAN-LEVEL 02

SHEET NUMBER
A-701

11/2/2026 1:21:43 PM

RATIO

HEARTLAND BIOWORKS HQ
ISSUED FOR BID
1200 Indiana Avenue, Indianapolis, IN 46202

ITEM CODE: AC01

ISSUE DATE: 11/02/2026
REVISION DATE:

SPECIFICATIONS

MANUFACTURER	ROBINSON STEEL COMPANY
ITEM CODE	AC01
ITEM NAME	ACCESSORY - ADA BENCH

DESCRIPTION

BACKLESS ADA LOCKER ROOM BENCH;
42"L X 24"D
SEAT TO BE MOUNTED ON WALL AT 18"AFF;
STAINLESS STEEL

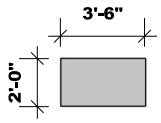
FABRIC CODE 1- SEAT	
FABRIC CODE 2 - BACK	

SPECIAL INSTRUCTIONS

TOTAL QUANTITY	

DEALERSHIP RESPONSIBLE FOR VERIFYING PLAN QUANTITIES

PLAN REPRESENTATION



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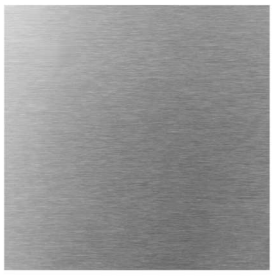


FABRIC 1

FABRIC 2

PROJECT NO: 24317.000

Furniture Specifications
FURN-AC01
PACKAGE: OPEN LINE

RATIO

HEARTLAND BIOWORKS HQ
ISSUED FOR BID
1200 Indiana Avenue, Indianapolis, IN 46202

ITEM CODE: AC02

ISSUE DATE: **11/02/2026**
REVISION DATE:

SPECIFICATIONS

MANUFACTURER	ROBINSON STEEL COMPANY
ITEM CODE	AC02
ITEM NAME	ACCESSORY - BENCH- 48" L

DESCRIPTION

FREE STANDING BENCH ON PEDESTALS;
9.5"W X 48"L X 17.75"H
STAINLESS STEEL FINISH

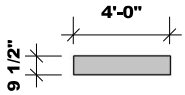
FABRIC CODE 1- SEAT	
FABRIC CODE 2 - BACK	

SPECIAL INSTRUCTIONS

TOTAL QUANTITY	

DEALERSHIP RESPONSIBLE FOR VERIFYING PLAN QUANTITIES

PLAN REPRESENTATION



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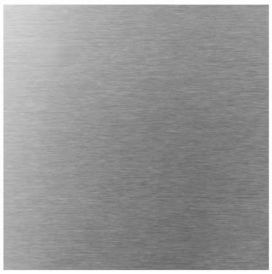


FABRIC 1

FINISH 2

FABRIC 2

PROJECT NO: 24317.000

Furniture Specifications
FURN-AC02
PACKAGE: OPEN LINE

RATIO

HEARTLAND BIOWORKS HQ
ISSUED FOR BID
1200 Indiana Avenue, Indianapolis, IN 46202

ITEM CODE: AC03

ISSUE DATE: 11/02/2026
REVISION DATE:

SPECIFICATIONS

MANUFACTURER	ROBINSON STEEL COMPANY
ITEM CODE	AC03
ITEM NAME	ACCESSORY - BENCH- 36" L

DESCRIPTION

FREESTANDING BENCH ON PEDESTALS;
9.5"W X 36"L X 17.75"H
STAINLESS STEEL FINISH

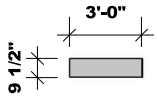
FABRIC CODE 1- SEAT	
FABRIC CODE 2 - BACK	

SPECIAL INSTRUCTIONS

TOTAL QUANTITY	

DEALERSHIP RESPONSIBLE FOR VERIFYING PLAN QUANTITIES

PLAN REPRESENTATION



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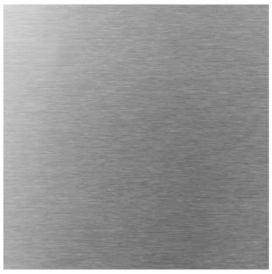


FABRIC 1

FINISH 2

FABRIC 2

RATIO

HEARTLAND BIOWORKS HQ
ISSUED FOR BID
1200 Indiana Avenue, Indianapolis, IN 46202

ITEM CODE: AC04

ISSUE DATE: **11/02/2026**
REVISION DATE:

SPECIFICATIONS

MANUFACTURER	HUMANSCALE
ITEM CODE	AC04
ITEM NAME	ACCESSORY - SINGLE MONITOR ARM

DESCRIPTION

M2.1 SERIES MONITOR ARM
SINGLE MONITOR ARM
INCLUDE TWO-PIECE CLAMP MOUNT BASE
SILVER FRAME WITH GRAY TRIM
ARM STYLE: ANGLED/DYNAMIC LINK
INCLUDE ROTATION STOP FEATURE
INCLUDE STANDARD UNIVERSAL VESA MOUNTING
BRACKETS IN BLACK WITH QUICK-RELEASE FEATURE
MOTIONS/POSITIONS: UP/DOWN/SWIVEL/TILT BACKWARDS AND FORWARDS/PORTRAIT/LANDSCAPE
CABLE MANAGEMENT TO BE INTEGRATED IN ARM
INCLUDE STANDARD MONITOR TILT
FLAT SCREEN WEIGHT LIMIT MINIMUM 15.5LBS
PROVIDE BUILT-IN COUNTERBALANCE WEIGHT FEATURE
MINIMUM WARRANTY 15 YEARS

FABRIC CODE 1- SEAT	
FABRIC CODE 2 - BACK	

SPECIAL INSTRUCTIONS

TOTAL QUANTITY	

DEALERSHIP RESPONSIBLE FOR VERIFYING PLAN QUANTITIES

PLAN REPRESENTATION

REFERENCE IMAGE ONLY -
MAY NOT MATCH EXACT SPECIFICATION

FINISH 1

FABRIC 1

FINISH 2

FABRIC 2

RATIO

HEARTLAND BIOWORKS HQ
ISSUED FOR BID
1200 Indiana Avenue, Indianapolis, IN 46202

ITEM CODE: AC05

ISSUE DATE: **11/02/2026**
REVISION DATE:

SPECIFICATIONS

MANUFACTURER	ENWORK
ITEM CODE	AC05
ITEM NAME	ACCESSORY- LECTERN

DESCRIPTION

LIGOURI LAMINATE LECTERN SERIES
28" W X 24" D X 46" H
LECTERN WITH LOCKING STORAGE AND PULL OUT SHELF
COL: HP LAMINATE FORMICA 8844 AGED ASH
INCLUDE LIGOURI PULL
BASE FINISH: BLACK
LOCKING CASTERS FOR CARPET
POWER: INCLUDE (1) BYRNE AXIL-Z IN-SURFACE 4-PORT UNIT - 2-POWER/1-USB A+C/1-OPEN PORT (FOR OWNER AV) IN BLACK FINISH WITH 120" CORD
POWER UNIT TO BE MOUNTED INSIDE OPEN SHELF
INCLUDE FINISHED GROMMET IN BASE OF UNIT TO ACCESS PASS-THROUGH TO FLOOR BOX

FABRIC CODE 1- SEAT	
FABRIC CODE 2 - BACK	

SPECIAL INSTRUCTIONS

TOTAL QUANTITY	

DEALERSHIP RESPONSIBLE FOR VERIFYING PLAN QUANTITIES

PLAN REPRESENTATION

REFERENCE IMAGE ONLY -
MAY NOT MATCH EXACT SPECIFICATION

FINISH 1

FABRIC 1

FINISH 2

FABRIC 2

RATIO

HEARTLAND BIOWORKS HQ
ISSUED FOR BID
1200 Indiana Avenue, Indianapolis, IN 46202

ITEM CODE: CH01A

ISSUE DATE: 11/02/2026
REVISION DATE:

SPECIFICATIONS

MANUFACTURER	STYLEX
ITEM CODE	CH01A
ITEM NAME	CHAIR - COUNTER STOOL

DESCRIPTION

VERVE SERIES
19.6" W X 22.7"D X 41.3"H, SH: 26.4"
FOUR LEG COUNTER STOOL ARMLESS,
NON-STACKING CHAIR, FOUR LEG STEEL
FULLY UPHOLSTERED
GLIDES: FOR HARD SURFACE
FRAME COLOR: MIDNIGHT BLUE (MB)

FABRIC CODE 1- SEAT	A
FABRIC CODE 2 - BACK	

SPECIAL INSTRUCTIONS

TOTAL QUANTITY	

DEALERSHIP RESPONSIBLE FOR VERIFYING PLAN QUANTITIES

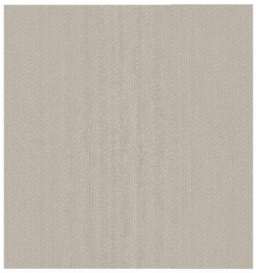
PLAN REPRESENTATION

REFERENCE IMAGE ONLY -
MAY NOT MATCH EXACT SPECIFICATION

FINISH 1

FINISH 2

FABRIC 1



FABRIC 2

PROJECT NO: 24317.000

Furniture Specifications
FURN-CH01A
PACKAGE: OPEN LINE

RATIO

HEARTLAND BIOWORKS HQ
ISSUED FOR BID
1200 Indiana Avenue, Indianapolis, IN 46202

ITEM CODE: CH02B

ISSUE DATE: 11/02/2026
REVISION DATE:

SPECIFICATIONS

MANUFACTURER	ANDREU WORLD
ITEM CODE	CH02B
ITEM NAME	CHAIR- LOBBY

DESCRIPTION

HULA CHAIR
19.49" W X 23.23" D X 29.92" H, SH: 17.91
CHAIR WITH UPHOLSTERED SEAT AND BACKREST AND 4-LEGS
METAL FRAME COLOR: BLACK

FABRIC CODE 1- SEAT	B
FABRIC CODE 2 - BACK	

SPECIAL INSTRUCTIONS

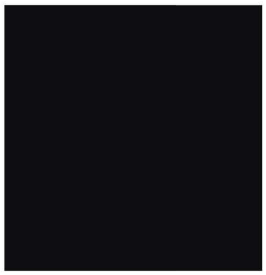
TOTAL QUANTITY	

DEALERSHIP RESPONSIBLE FOR VERIFYING PLAN QUANTITIES

PLAN REPRESENTATION

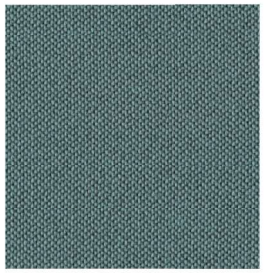
REFERENCE IMAGE ONLY -
MAY NOT MATCH EXACT SPECIFICATION

FINISH 1



FINISH 2

FABRIC 1



FABRIC 2

PROJECT NO: 24317.000

Furniture Specifications
FURN-CH02B
PACKAGE: OPEN LINE

RATIO

HEARTLAND BIOWORKS HQ
ISSUED FOR BID
1200 Indiana Avenue, Indianapolis, IN 46202

ITEM CODE: CH03

ISSUE DATE: **11/02/2026**
REVISION DATE:

SPECIFICATIONS

MANUFACTURER	BASIS OF DESIGN: ALLSTEEL
ITEM CODE	CH03
ITEM NAME	CHAIR -PRIVATE OFFICE TASK

DESCRIPTION

LEVRA TASK CHAIR
31" W X 26.5" D X 43-47.75" H, SH: 16.75-21.625"
FRAME FINISH TO BE SELECTED FROM MANUFACTURER'S FULL RANGE OF METAL POWDERCOAT FINISHES
INCLUDE ASJUSTABLE SEAT HEIGHT & DEPTH, ARMS HEIGHT AND DEPTH, AND OPTIONAL LUMBAR SUPPORT
INCLUDE FORWARD TILT, TILT TENSION, AND BACK STOP
CASTERS FOR CARPET
FULLY UPHOLSTERED, FABRIC TO BE PRICED AS COM WITH ALLOWANCE OF $45 PER YARD

FABRIC CODE 1- SEAT	
FABRIC CODE 2 - BACK	

SPECIAL INSTRUCTIONS

APPROVED SUBSTITUTIONS: SHALL BE PROVIDED WITH EQUAL OR BETTER FEATURES TO WHAT IS LISTED IN BASIS-OF-DESIGN SPEC, PRE-APPROVED SUSTITUTES INCLUDE HERMAN MILLER EMBODY AND STEELCASE GESTURE

TOTAL QUANTITY	

DEALERSHIP RESPONSIBLE FOR VERIFYING PLAN QUANTITIES

PLAN REPRESENTATION

REFERENCE IMAGE ONLY -
MAY NOT MATCH EXACT SPECIFICATION

FINISH 1

FINISH 2

FABRIC 1

FABRIC 2

RATIO

HEARTLAND BIOWORKS HQ
ISSUED FOR BID
1200 Indiana Avenue, Indianapolis, IN 46202

ITEM CODE: CH04

ISSUE DATE: **11/02/2026**
REVISION DATE:

SPECIFICATIONS

MANUFACTURER	BIOFIT
ITEM CODE	CH04
ITEM NAME	CHAIR- LAB STOOLS

DESCRIPTION

UNIQUE U LAB STOOLS
25.6" W X 25.6" D; SH: 21-31"
ARMLESS STOOL W/ HIGH SEAT HEIGHT AND ADJUSTABLE FOOTRING; RESISTANCE CASTERS
BASE: STANDARD ALUMINUM W/ BLACK METAL PARTS
CONTROLS: TASK
CENTER SUPPORT: BLACK POWDER COAT

FABRIC CODE 1- SEAT	
FABRIC CODE 2 - BACK	

SPECIAL INSTRUCTIONS

TOTAL QUANTITY	

DEALERSHIP RESPONSIBLE FOR VERIFYING PLAN QUANTITIES

PLAN REPRESENTATION

REFERENCE IMAGE ONLY -
MAY NOT MATCH EXACT SPECIFICATION

FINISH 1 FINISH 2

FABRIC 1 FABRIC 2

PROJECT NO: 24317.000

Furniture Specifications
FURN-CH04
PACKAGE: OPEN LINE

RATIO

HEARTLAND BIOWORKS HQ
ISSUED FOR BID
1200 Indiana Avenue, Indianapolis, IN 46202

ITEM CODE: CH05C

ISSUE DATE: **11/02/2026**
REVISION DATE:

SPECIFICATIONS

MANUFACTURER	ALLERMUIR
ITEM CODE	CH05C
ITEM NAME	CHAIR- GUEST

DESCRIPTION

FAMIGLIA GUEST CHAIR
25.25" W X 23.5" D X 31.75" H, SH: 18"
LOW BACK FULLY UPHOLSTERED CHAIR ON WOOD LEGS
LEG FININSH:
GLIDES FOR CARPET FLOORING

FABRIC CODE 1- SEAT	C
FABRIC CODE 2 - BACK	

SPECIAL INSTRUCTIONS

TOTAL QUANTITY	

DEALERSHIP RESPONSIBLE FOR VERIFYING PLAN QUANTITIES

PLAN REPRESENTATION

REFERENCE IMAGE ONLY -
MAY NOT MATCH EXACT SPECIFICATION

FINISH 1

FINISH 2

FABRIC 1

FABRIC 2

PROJECT NO: 24317.000

Furniture Specifications
FURN-CH05C
PACKAGE: OPEN LINE

RATIO

HEARTLAND BIOWORKS HQ
ISSUED FOR BID
1200 Indiana Avenue, Indianapolis, IN 46202

ITEM CODE: CH06E

ISSUE DATE: 11/02/2026
REVISION DATE:

SPECIFICATIONS

MANUFACTURER	ANDREU WORLD
ITEM CODE	CH06E
ITEM NAME	CHAIR-CONFERENCE

DESCRIPTION

CAPRI COMFORT CHAIR
26.5" W X 27.76" D X 41.25" H, SH: 18.11
INTERMEDIATE/MEDIUM BACKREST HEIGHT
BASE FINISH: ALUMINUM, BLACK
CASTERS FOR SOFT FLOORS

FABRIC CODE 1- SEAT	E
FABRIC CODE 2 - BACK	

SPECIAL INSTRUCTIONS

TOTAL QUANTITY	

DEALERSHIP RESPONSIBLE FOR VERIFYING PLAN QUANTITIES

PLAN REPRESENTATION

REFERENCE IMAGE ONLY -
MAY NOT MATCH EXACT SPECIFICATION

FINISH 1

FINISH 2

FABRIC 1

FABRIC 2

PROJECT NO: 24317.000

Furniture Specifications
FURN-CH06E
PACKAGE: OPEN LINE

RATIO

HEARTLAND BIOWORKS HQ
ISSUED FOR BID
1200 Indiana Avenue, Indianapolis, IN 46202

ITEM CODE: CH07G

ISSUE DATE: **11/02/2026**
REVISION DATE:

SPECIFICATIONS

MANUFACTURER	OFS BRANDS
ITEM CODE	CH07G
ITEM NAME	CHAIR- CLASSROOM

DESCRIPTION

FLEXXY NESTING CHAIR
25.5" W X 22" D X 32.5" H, SH: 19"
STACK/NEST CHAIR WITH ARMS AND
UPHOLSTERED SEAT;
BLACK MESH SEAT BACK;
GREY MOLDED PLASTIC SEAT BOTTOM AND
GREY MOLDED PLASTIC ARM;
INCLUDE CASTERS FOR CARPET;

FABRIC CODE 1- SEAT	G
FABRIC CODE 2 - BACK	

SPECIAL INSTRUCTIONS

TOTAL QUANTITY	

DEALERSHIP RESPONSIBLE FOR VERIFYING PLAN QUANTITIES

PLAN REPRESENTATION

REFERENCE IMAGE ONLY -
MAY NOT MATCH EXACT SPECIFICATION

FINISH 1

FINISH 2

FABRIC 1

FABRIC 2

PROJECT NO: 24317.000

Furniture Specifications
FURN-CH07G
PACKAGE: OPEN LINE

RATIO

HEARTLAND BIOWORKS HQ
ISSUED FOR BID
1200 Indiana Avenue, Indianapolis, IN 46202

ITEM CODE: CH08D

ISSUE DATE: 11/02/2026
REVISION DATE:

SPECIFICATIONS

MANUFACTURER	STYLEX
ITEM CODE	CH08D
ITEM NAME	CHAIR - COUNTER STOOL

DESCRIPTION

VERVE SERIES
19.6" W X 22.7"D X 41.3"H, SH: 26.4"
FOUR LEG COUNTER STOOL ARMLESS
NON-STACKING CHAIR, FOUR LEG STEEL, ARMLESS
FULLY UPHOLSTERED
GLIDES: FOR HARD SURFACE
FRAME COLOR: MIDNIGHT BLUE (MB)

FABRIC CODE 1- SEAT	D
FABRIC CODE 2 - BACK	

SPECIAL INSTRUCTIONS

TOTAL QUANTITY	

DEALERSHIP RESPONSIBLE FOR VERIFYING PLAN QUANTITIES

PLAN REPRESENTATION

REFERENCE IMAGE ONLY -
MAY NOT MATCH EXACT SPECIFICATION

FINISH 1

FINISH 2

FABRIC 1

FABRIC 2

PROJECT NO: 24317.000

Furniture Specifications
FURN-CH08D
PACKAGE: OPEN LINE

RATIO

HEARTLAND BIOWORKS HQ
ISSUED FOR BID
1200 Indiana Avenue, Indianapolis, IN 46202

ITEM CODE: CH09

ISSUE DATE: **11/02/2026**
REVISION DATE:

SPECIFICATIONS

MANUFACTURER	BASIS OF DESIGN- STEELCASE
ITEM CODE	CH09
ITEM NAME	CHAIR -OPEN OFFICE TASK

DESCRIPTION

SERIES 2 TASK CHAIR
27" W X 19.25-22" D X 38-42.5" H, SH: 16.5-21.5"
FRAME FINISH TO BE SELECTED FROM MANUFACTURER'S FULL RANGE OF METAL POWDERCOAT FINISHES
INCLUDE ADJUSTABLE SEAT HEIGHT & DEPTH, ARMS HEIGHT AND DEPTH, AND OPTIONAL LUMBAR SUPPORT
INCLUDE FORWARD TILT, TILT TENSION, AND BACK STOP
CASTERS FOR CARPET
UPHOLSTERED SEAT, FABRIC TO BE PRICED AS COM WITH ALLOWANCE OF $45 PER YARD
3D MICROKNIT BACK

FABRIC CODE 1- SEAT	
FABRIC CODE 2 - BACK	

SPECIAL INSTRUCTIONS

APPROVED SUBSTITUTIONS: SHALL BE PROVIDED WITH EQUAL OR BETTER FEATURES TO WHAT IS LISTED IN BASIS-OF-DESIGN SPEC, PRE-APPROVED SUSTITUTES INCLUDE: HERMAN MILLER VERUS IN STANDARD HEIGHT WITH SUSPENSION BACK, AND ALLSTEEL O6 WITH 4D ARMS.

TOTAL QUANTITY	

DEALERSHIP RESPONSIBLE FOR VERIFYING PLAN QUANTITIES

PLAN REPRESENTATION

REFERENCE IMAGE ONLY -
MAY NOT MATCH EXACT SPECIFICATION

FINISH 1 FINISH 2

FABRIC 1 FABRIC 2

PROJECT NO: 24317.000

Furniture Specifications
FURN-CH09
PACKAGE: OPEN LINE

RATIO

HEARTLAND BIOWORKS HQ
ISSUED FOR BID
1200 Indiana Avenue, Indianapolis, IN 46202

ITEM CODE: LS01H

ISSUE DATE: **11/02/2026**
REVISION DATE:

SPECIFICATIONS

MANUFACTURER	BERNHARDT DESIGN
ITEM CODE	LS01H
ITEM NAME	LOUNGE CHAIR- LOBBY

DESCRIPTION

RKC LOUNGE SERIES
34.5"W X 33.75" D X 40" H, SH: 17.25"
POWDER COAT BASE: BRONZE

FABRIC CODE 1- SEAT	H
FABRIC CODE 2 - BACK	

SPECIAL INSTRUCTIONS

TOTAL QUANTITY	

DEALERSHIP RESPONSIBLE FOR VERIFYING PLAN QUANTITIES

PLAN REPRESENTATION

REFERENCE IMAGE ONLY -
MAY NOT MATCH EXACT SPECIFICATION

FINISH 1

FINISH 2

FABRIC 1

FABRIC 2

PROJECT NO: 24317.000

Furniture Specifications
FURN-LS01H
PACKAGE: OPEN LINE

RATIO

HEARTLAND BIOWORKS HQ
ISSUED FOR BID
1200 Indiana Avenue, Indianapolis, IN 46202

ITEM CODE: LS02EF

ISSUE DATE: **11/02/2026**
REVISION DATE:

SPECIFICATIONS

MANUFACTURER	BERNHARDT DESIGN
ITEM CODE	LS02EF
ITEM NAME	LOUNGE CHAIR- LOBBY

DESCRIPTION

ELIO LOUNGE SERIES
35.25" W X 31" D X 29.5" H, SH: 16.75"
SELF- RETURN SWIVEL
PILLOW: F

FABRIC CODE 1- SEAT	E
FABRIC CODE 2 - BACK	F

SPECIAL INSTRUCTIONS

TOTAL QUANTITY	

DEALERSHIP RESPONSIBLE FOR VERIFYING PLAN QUANTITIES

PLAN REPRESENTATION

REFERENCE IMAGE ONLY -
MAY NOT MATCH EXACT SPECIFICATION

FINISH 1

FINISH 2

FABRIC 1

FABRIC 2

PROJECT NO: 24317.000

Furniture Specifications
FURN-LS02EF
PACKAGE: OPEN LINE

RATIO

HEARTLAND BIOWORKS HQ
ISSUED FOR BID
1200 Indiana Avenue, Indianapolis, IN 46202

ITEM CODE: ST01

ISSUE DATE: **11/02/2026**
REVISION DATE:

SPECIFICATIONS

MANUFACTURER	ULINE
ITEM CODE	ST01
ITEM NAME	STORAGE - MOBILE CART

DESCRIPTION

WELDED STEEL CART- 3 SHELF
18" W X 38" L X 35" H

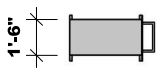
FABRIC CODE 1- SEAT	
FABRIC CODE 2 - BACK	

SPECIAL INSTRUCTIONS

TOTAL QUANTITY	

DEALERSHIP RESPONSIBLE FOR VERIFYING PLAN QUANTITIES

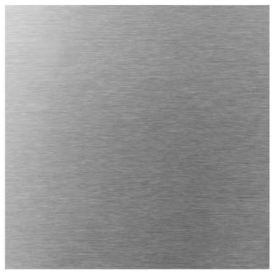
PLAN REPRESENTATION



REFERENCE IMAGE ONLY -
MAY NOT MATCH EXACT SPECIFICATION

FINISH 1

FINISH 2



FABRIC 1

FABRIC 2

PROJECT NO: 24317.000

Furniture Specifications
FURN-ST01
PACKAGE: OPEN LINE

RATIO

HEARTLAND BIOWORKS HQ
ISSUED FOR BID
1200 Indiana Avenue, Indianapolis, IN 46202

ITEM CODE: ST02

ISSUE DATE: 11/02/2026
REVISION DATE:

SPECIFICATIONS

MANUFACTURER	EAGLE GROUP
ITEM CODE	ST02
ITEM NAME	STORAGE - WIRE FRAME SHELVING 36"W

DESCRIPTION

QUAD ADJUST WIRE SHELEVING
36" W X 18" D X 74" H
QUAD TRUSS WIRE SHELVING WITH ADJUSTABLE FRAME
INCLUDE (5) ADJUSTABLE SHELVES PER UNIT
INCLUDE LEVELING FEET
INCLUDE ALL POSTS SHELVING AND SUPPORTS FOR A (5) SHELF UNIT
SUPPORTING AN EVENLY DISTRIBUTED STATIC LOAD OF 800LBS

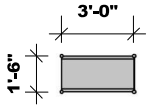
FABRIC CODE 1- SEAT	
FABRIC CODE 2 - BACK	

SPECIAL INSTRUCTIONS

TOTAL QUANTITY	

DEALERSHIP RESPONSIBLE FOR VERIFYING PLAN QUANTITIES

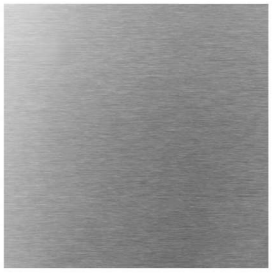
PLAN REPRESENTATION



REFERENCE IMAGE ONLY -
MAY NOT MATCH EXACT SPECIFICATION

FINISH 1

FINISH 2



FABRIC 1

FABRIC 2

PROJECT NO: 24317.000

Furniture Specifications
FURN-ST02
PACKAGE: OPEN LINE

RATIO

HEARTLAND BIOWORKS HQ
ISSUED FOR BID
1200 Indiana Avenue, Indianapolis, IN 46202

ITEM CODE: ST03

ISSUE DATE: **11/02/2026**
REVISION DATE:

SPECIFICATIONS

MANUFACTURER	ULINE
ITEM CODE	ST03
ITEM NAME	STORAGE - WIRE FRAME SHELVING 42"W

DESCRIPTION

STORAGE - WIRE FRAME SHELVING 42"W
42" W X 18" D X 74" H
QUAD TRUSS WIRE SHELVING WITH ADJUSTABLE FRAME
INCLUDE (5) ADJUSTABLE SHELVES PER UNIT
INCLUDE LEVELING FEET
FINISH: CHROME
INCLUDE ALL POSTS, SHELVING AND SUPPORTS FOR A (5) SHELF UNIT
SUPPORTING AN EVENLY DISTRIBUTED STATIC LOAD OF 800LBS

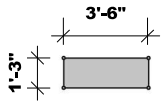
FABRIC CODE 1- SEAT	
FABRIC CODE 2 - BACK	

SPECIAL INSTRUCTIONS

TOTAL QUANTITY	

DEALERSHIP RESPONSIBLE FOR VERIFYING PLAN QUANTITIES

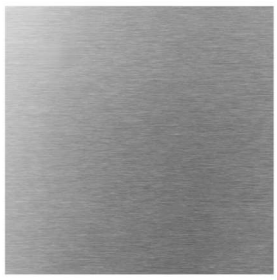
PLAN REPRESENTATION



REFERENCE IMAGE ONLY -
MAY NOT MATCH EXACT SPECIFICATION

FINISH 1

FINISH 2



FABRIC 1

FABRIC 2

PROJECT NO: 24317.000

RATIO

HEARTLAND BIOWORKS HQ
ISSUED FOR BID
1200 Indiana Avenue, Indianapolis, IN 46202

ITEM CODE: ST04

ISSUE DATE: **11/02/2026**
REVISION DATE:

SPECIFICATIONS

MANUFACTURER	ALLEMUIR
ITEM CODE	ST04
ITEM NAME	STORAGE - CREDENZA

DESCRIPTION

AXIS CREDENZA
81" W X 18" D X 39" H
4 DOOR CREDENZA
PUSH TO OPEN DOORS
FINISH: PREMIUM WOODGRAIN NATURAL CASELLA OAK
FRAME FINISH: BLACK

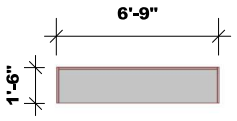
FABRIC CODE 1- SEAT	
FABRIC CODE 2 - BACK	

SPECIAL INSTRUCTIONS

TOTAL QUANTITY	

DEALERSHIP RESPONSIBLE FOR VERIFYING PLAN QUANTITIES

PLAN REPRESENTATION

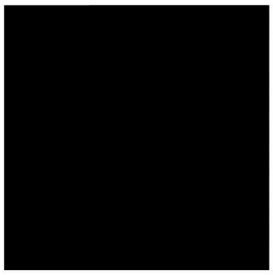


REFERENCE IMAGE ONLY -
MAY NOT MATCH EXACT SPECIFICATION

FINISH 1

FABRIC 1

FINISH 2



FABRIC 2

PROJECT NO: 24317.000

Furniture Specifications
FURN-ST04
PACKAGE: OPEN LINE

RATIO

HEARTLAND BIOWORKS HQ
ISSUED FOR BID
1200 Indiana Avenue, Indianapolis, IN 46202

ITEM CODE: TB01

ISSUE DATE: **11/02/2026**
REVISION DATE:

SPECIFICATIONS

MANUFACTURER	ANDREU WORLD
ITEM CODE	TB01
ITEM NAME	TABLE- OCCASIONAL TABLE

DESCRIPTION

REVERSE OCCASIONAL TABLE
35.5" DIAMETER X 13.75" H
ROUND TOP
LAMINATE TOP FINISH: OAK, ROBLE L205
BASE FINISH: 6002 SAND

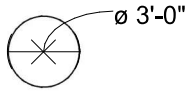
FABRIC CODE 1- SEAT	
FABRIC CODE 2 - BACK	

SPECIAL INSTRUCTIONS

TOTAL QUANTITY	

DEALERSHIP RESPONSIBLE FOR VERIFYING PLAN QUANTITIES

PLAN REPRESENTATION



REFERENCE IMAGE ONLY -
MAY NOT MATCH EXACT SPECIFICATION

FINISH 1

FABRIC 1

FINISH 2

FABRIC 2

PROJECT NO: 24317.000

Furniture Specifications
FURN-TB01
PACKAGE: OPEN LINE

RATIO

HEARTLAND BIOWORKS HQ
ISSUED FOR BID
1200 Indiana Avenue, Indianapolis, IN 46202

ITEM CODE: TB02

ISSUE DATE: 11/02/2026
REVISION DATE:

SPECIFICATIONS

MANUFACTURER	HALCON
ITEM CODE	TB02
ITEM NAME	TABLE- LOBBY 36" HEIGHT

DESCRIPTION

HUGO TABLE
36" W X 108" L X 36" H
FIXED TABLE
POWER: INCLUDE (4) QTY BLACK UNDERMOUNT STRATOS POWER UNITS WITH 2 OUTLETS AND 2 USB-A CONNECTIONS
FINISH: WILSONART NATURAL RECON

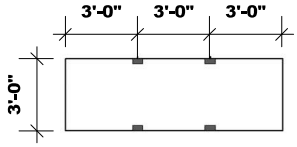
FABRIC CODE 1- SEAT	
FABRIC CODE 2 - BACK	

SPECIAL INSTRUCTIONS

TOTAL QUANTITY	

DEALERSHIP RESPONSIBLE FOR VERIFYING PLAN QUANTITIES

PLAN REPRESENTATION



REFERENCE IMAGE ONLY -
MAY NOT MATCH EXACT SPECIFICATION

FINISH 1

FABRIC 1

FINISH 2

FABRIC 2

PROJECT NO: 24317.000

Furniture Specifications
FURN-TB02
PACKAGE: OPEN LINE

RATIO

HEARTLAND BIOWORKS HQ
ISSUED FOR BID
1200 Indiana Avenue, Indianapolis, IN 46202

ITEM CODE: TB03

ISSUE DATE: **11/02/2026**
REVISION DATE:

SPECIFICATIONS

MANUFACTURER	HALCON
ITEM CODE	TB03
ITEM NAME	TABLE- LOBBY 30" HEIGHT

DESCRIPTION

HUGO TABLE
36" W X 108" L X 30" H
MOBILE TABLE
POWER: INCLUDE (4) QTY BLACK
UNDERMOUNT STRATOS POWER UNITS WITH 2
OUTLETS AND 2 USB-A CONNECTIONS
FINISH: WILSONART NATURAL RECON

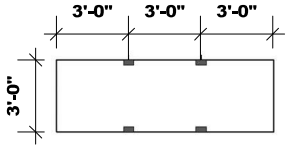
FABRIC CODE 1- SEAT	
FABRIC CODE 2 - BACK	

SPECIAL INSTRUCTIONS

TOTAL QUANTITY	

DEALERSHIP RESPONSIBLE FOR VERIFYING PLAN QUANTITIES

PLAN REPRESENTATION



REFERENCE IMAGE ONLY -
MAY NOT MATCH EXACT SPECIFICATION

FINISH 1

FINISH 2

FABRIC 1

FABRIC 2

PROJECT NO: 24317.000

Furniture Specifications
FURN-TB03
PACKAGE: OPEN LINE

RATIO

HEARTLAND BIOWORKS HQ
ISSUED FOR BID
1200 Indiana Avenue, Indianapolis, IN 46202

ITEM CODE: TB04

ISSUE DATE: 11/02/2026
REVISION DATE:

SPECIFICATIONS

MANUFACTURER	SYSTEMS
ITEM CODE	TB04
ITEM NAME	TABLE - 36" ROUND WORK HEIGHT

DESCRIPTION

ROUND WORK HEIGHT TABLE
36" DIA X 30" H
TABLE TOP FINISH: SELECT FROM FULL RANGE OF MANUFACTURERS WOOD LOOK LAMINATES; BEVELED EDGE WITH MATCHING TP BANDING
LEG FINSH: SELECT FROM FULL RANGE OF MANUFACTURERS METAL POWDER COAT FINISH
POWER: NONE

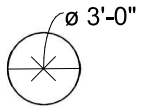
FABRIC CODE 1- SEAT	
FABRIC CODE 2 - BACK	

SPECIAL INSTRUCTIONS

TOTAL QUANTITY	

DEALERSHIP RESPONSIBLE FOR VERIFYING PLAN QUANTITIES

PLAN REPRESENTATION



REFERENCE IMAGE ONLY -
MAY NOT MATCH EXACT SPECIFICATION

FINISH 1 FINISH 2

FABRIC 1 FABRIC 2

RATIO

HEARTLAND BIOWORKS HQ
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1200 Indiana Avenue, Indianapolis, IN 46202

ITEM CODE: TB05

ISSUE DATE: **11/02/2026**
REVISION DATE:

SPECIFICATIONS

MANUFACTURER	KEILHAUER
ITEM CODE	TB05
ITEM NAME	TABLE - BREAKROOM

DESCRIPTION

AWLA TABLE
36" W X 90" D X 36" H
TABLE TOP FINISH:
LEG FINISH:
POWER: INCLUDE 4 UNDERMOUNT POWER UNITS, EACH WITH 1 OUTLET AND (2) USB
GLIDE: FOR HARD SURFACE
CUSTOM LAMINATE TOP FINISH: WILSONART NATURAL RECON 7996-38
LEG FINISH: ASH WOOD STAIN IN COLOR SNOW AHS
POWDER COAT FOOTREST: PC21 MATTE BLACK

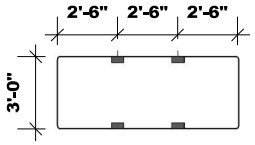
FABRIC CODE 1- SEAT	
FABRIC CODE 2 - BACK	

SPECIAL INSTRUCTIONS

TOTAL QUANTITY	

DEALERSHIP RESPONSIBLE FOR VERIFYING PLAN QUANTITIES

PLAN REPRESENTATION



REFERENCE IMAGE ONLY -
MAY NOT MATCH EXACT SPECIFICATION

FINISH 1

FABRIC 1

FINISH 2

FABRIC 2

PROJECT NO: 24317.000

Furniture Specifications
FURN-TB05
PACKAGE: OPEN LINE

RATIO

HEARTLAND BIOWORKS HQ
ISSUED FOR BID
1200 Indiana Avenue, Indianapolis, IN 46202

ITEM CODE: TB06

ISSUE DATE: **11/02/2026**
REVISION DATE:

SPECIFICATIONS

MANUFACTURER	ALLERMUIR
ITEM CODE	TB06
ITEM NAME	TABLE - CONFERENCE, LARGE

DESCRIPTION

SULA COFERENCE TABLE
CUSTOM: 48" W X 86" L X 29" H
CUSTOM LAMINATE TOP: WILSONART NATURAL RECON WITH MATCHING EDGE BAND
PILL BASE: BLACK
POWER: CENTRAL POWER WITH 3 POWER SOCKETS, 3 DUAL USB
PLASTIC GUIDES WITH LEVELING ADJUSTMENT

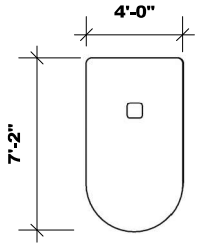
FABRIC CODE 1- SEAT	
FABRIC CODE 2 - BACK	

SPECIAL INSTRUCTIONS

TOTAL QUANTITY	

DEALERSHIP RESPONSIBLE FOR VERIFYING PLAN QUANTITIES

PLAN REPRESENTATION



REFERENCE IMAGE ONLY -
MAY NOT MATCH EXACT SPECIFICATION

FINISH 1

FABRIC 1

FINISH 2

FABRIC 2

PROJECT NO: 24317.000

Furniture Specifications
FURN-TB06
PACKAGE: OPEN LINE

RATIO

HEARTLAND BIOWORKS HQ
ISSUED FOR BID
1200 Indiana Avenue, Indianapolis, IN 46202

ITEM CODE: TB07

ISSUE DATE: 11/02/2026
REVISION DATE:

SPECIFICATIONS

MANUFACTURER	ALLERMUIR
ITEM CODE	TB07
ITEM NAME	TABLE- CONFERENCE, SMALL

DESCRIPTION

SULA COFERENCE TABLE
72" W X 60" D X 29" H
CUSTOM LAMINATE TOP: WILSONART NATURAL RECON WITH MATCHING EDGE BAND
PILL BASE: BLACK
POWER: CENTRAL POWER WITH 3 POWER SOCKETS, 3 DUAL USB
PLASTIC GUIDES WITH LEVELING ADJUSTMENT

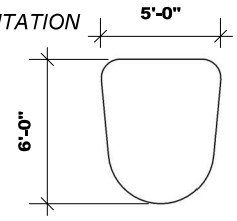
FABRIC CODE 1- SEAT	
FABRIC CODE 2 - BACK	

SPECIAL INSTRUCTIONS

TOTAL QUANTITY	

DEALERSHIP RESPONSIBLE FOR VERIFYING PLAN QUANTITIES

PLAN REPRESENTATION



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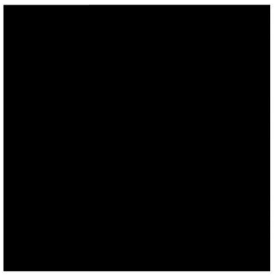
FINISH 1

FABRIC 1

FINISH 2



FABRIC 2

PROJECT NO: 24317.000

Furniture Specifications
FURN-TB07
PACKAGE: OPEN LINE

RATIO

HEARTLAND BIOWORKS HQ
ISSUED FOR BID
1200 Indiana Avenue, Indianapolis, IN 46202

ITEM CODE: TB08

ISSUE DATE: **11/02/2026**
REVISION DATE:

SPECIFICATIONS

MANUFACTURER	VERSTEEL
ITEM CODE	TB08
ITEM NAME	TABLE - TRAINING 2 PERSON (ADDER)

DESCRIPTION

TROUPE SERIES TRAINING TABLE, ADDER
24" W X 60" L X 30" H
SLIM-TILT WITH SWING-AWAY MODESTY PANEL
TOP: HPL WILSONART NATURAL RECON
MODESTY PANEL: HPL TO MATCH TOP
BASE: SLIM TILT BASE WITH CASTERS
BASE FINISH: WHITE LINEN
INCLUDE DUAL WHEEL "VERSTEEL" LOCKING CASTERS FOR CARPET
POWER: INCLUDE (1) BYRNE INTERLINK IQ SYSTEM, (ADDER) WITH (1) CUSTOM BYRNE DEAN IN-SURFACE UNIT (2 POWER OUTLETS); ROTATE OUTLETS TO ACCOMODATE DIFFERENT CHARGER SIZES; INCLUDE MECHANICAL FASTENERS FOR DAISY CHAINED CORDS ON UNDERSIDE OF TOP.
INCLUDE TABLE LINK- ENDS ONLY

FABRIC CODE 1- SEAT	
FABRIC CODE 2 - BACK	

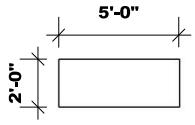
SPECIAL INSTRUCTIONS

STARTER TABLES= BEGINNING OF THE DAISY CHAINED ROW THAT WILL PLUG INTO BUILDING POWER
ADDER TABLES = TABLE DAISY CHAINED TO STARTER TABLE ITILIZING INTERLINK SYSTEM

TOTAL QUANTITY	

DEALERSHIP RESPONSIBLE FOR VERIFYING PLAN QUANTITIES

PLAN REPRESENTATION



REFERENCE IMAGE ONLY -
MAY NOT MATCH EXACT SPECIFICATION

FINISH 1

FABRIC 1

FINISH 2

FABRIC 2

PROJECT NO: 24317.000

Furniture Specifications
FURN-TB08
PACKAGE: OPEN LINE

RATIO

HEARTLAND BIOWORKS HQ
ISSUED FOR BID
1200 Indiana Avenue, Indianapolis, IN 46202

ITEM CODE: TB09

ISSUE DATE: **11/02/2026**
REVISION DATE:

SPECIFICATIONS

MANUFACTURER	VERSTEEL
ITEM CODE	TB09
ITEM NAME	TABLE - TRAINING 2 PERSON (STARTER)

DESCRIPTION

TROUPE SERIES TRAINING TABLE, STARTER
24" W X 60" L X 30" H
SLIM-TILT WITH SWING-AWAY MODESTY PANEL
TOP: HPL WILSONART NATURAL RECON
MODESTY PANEL: HPL TO MATCH TOP
BASE: SLIM TILT BASE WITH CASTERS
BASE FINISH: WHITE LINEN
INCLUDE DUAL WHEEL "VERSTEEL" LOCKING CASTERS FOR CARPET
POWER: INCLUDE (1) BYRNE INTERLINK IQ SYSTEM, (STARTER) WITH (1) CUSTOM BYRNE DEAN IN-SURFACE UNIT (2 POWER OUTLETS); ROTATE OUTLETS TO ACCOMODATE DIFFERENT CHARGER SIZES; INCLUDE MECHANICAL FASTENERS FOR DAISY CHAINED CORDS ON UNDERSIDE OF TOP.

FABRIC CODE 1- SEAT	
FABRIC CODE 2 - BACK	

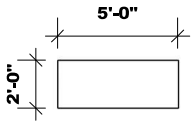
SPECIAL INSTRUCTIONS

STARTER TABLES= BEGINNING OF THE DAISY CHAINED ROW THAT WILL PLUG INTO BUILDING POWER
ADDER TABLES = TABLE DAISY CHAINED TO STARTER TABLE ITILIZING INTERLINK SYSTEM

TOTAL QUANTITY	

DEALERSHIP RESPONSIBLE FOR VERIFYING PLAN QUANTITIES

PLAN REPRESENTATION



REFERENCE IMAGE ONLY -
MAY NOT MATCH EXACT SPECIFICATION

FINISH 1

FABRIC 1

FINISH 2

FABRIC 2

PROJECT NO: 24317.000

Furniture Specifications
FURN-TB09
PACKAGE: OPEN LINE

RATIO

HEARTLAND BIOWORKS HQ
ISSUED FOR BID
1200 Indiana Avenue, Indianapolis, IN 46202

ITEM CODE: TB10

ISSUE DATE: 11/02/2026
REVISION DATE:

SPECIFICATIONS

MANUFACTURER	VERSTEEL
ITEM CODE	TB10
ITEM NAME	TABLE - TRAINING 3 PERSON (ADDER)

DESCRIPTION

TROUPE SERIES TRAINING TABLE
24" W X 90" L X 30" H
SLIM-TILT WITH SWING-AWAY MODESTY PANEL
TOP: HPL WILSONART NATURAL RECON
MODESTY PANEL: HPL TO MATCH TOP
BASE: SLIM TILT BASE WITH CASTERS
BASE FINISH: WHITE LINEN
INCLUDE DUAL WHEEL "VERSTEEL" LOCKING CASTERS FOR CARPET
POWER: INCLUDE (1) BYRNE INTERLINK IQ SYSTEM, (STARTER) WITH (1)BYRNE DEAN IN-SURFACE UNIT (3 POWER OUTLETS); ROTATE OUTLETS TO ACCOMODATE DIFFERENT CHARGER SIZES; INCLUDE MECHANICAL FASTENERS FOR DAISY CHAINED CORDS ON UNDERSIDE OF TOP.

FABRIC CODE 1- SEAT	
FABRIC CODE 2 - BACK	

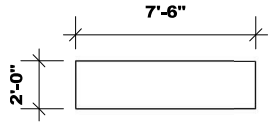
SPECIAL INSTRUCTIONS

STARTER TABLES= BEGINNING OF THE DAISY CHAINED ROW THAT WILL PLUG INTO BUILDING POWER
ADDER TABLES = TABLE DAISY CHAINED TO STARTER TABLE ITILIZING INTERLINK SYSTEM

TOTAL QUANTITY	

DEALERSHIP RESPONSIBLE FOR VERIFYING PLAN QUANTITIES

PLAN REPRESENTATION



REFERENCE IMAGE ONLY -
MAY NOT MATCH EXACT SPECIFICATION

FINISH 1

FABRIC 1

FINISH 2

FABRIC 2

PROJECT NO: 24317.000

Furniture Specifications
FURN-TB10
PACKAGE: OPEN LINE

RATIO

HEARTLAND BIOWORKS HQ
ISSUED FOR BID
1200 Indiana Avenue, Indianapolis, IN 46202

ITEM CODE: WS01

ISSUE DATE: **11/02/2026**
REVISION DATE:

SPECIFICATIONS

MANUFACTURER	SYSTEMS
ITEM CODE	WS01
ITEM NAME	PRIVATE OFFICE - SHIPPING & RECEIVING

DESCRIPTION

REFER TO PROJECT MANUAL- SECTION 12500 CONTRACT FURNITURE FOR ADDITIONAL REQUIREMENTS
PROVIDE (1) QTY 30"W X 72"L FIXED HPL WORKSURFACE WITH METAL PANEL SUPPORTS AND FULL HEIGHT METAL MODESTY PANEL ON THE FRONT SIDE;
PRICE (1) QTY 60"L x 30"W HEIGHT ADJUSTABLE HPL WORKSURFACE WITH EXTENDED HEIGHT RANGE AND T-LEGS;
PROVIDE (1) QTY 72"L x 24"W FIXED HPL WORKSURFACE ON BACK SIDE WITH METAL PANEL SUPPORTS;
STORAGE: PROVIDE (1) QTY 72"L x 15"D x 12"H OVERHEAD STORAGE UNIT WITH SLIDING DOOR, TOP TO BE MOUNTED AT 84"AFF;
WARDROBE: PROVIDE (1) 24"D x 18"W X 84"H METAL WARDROBE WITH BAR PULLS, COAT ROD AND HOOK ON INTERIOR AND BOX/FILE ON BOTTOM;
MARKERBOARD: PROVIDE (1) QTY 68"L x 54"H MARKERBOARD, TOP TO BE MOUNTED AT 84"AFF.
TACK/ACOUSTIC BOARD TO BE +/- 72"W x 42"H SEAMLESS SINGLE FABRIC WRAPPED PANEL, TOP MOUNTED AT 72"AFF, FABRIC TO BE PRICED AS COM AT $45 PER SQUARE YARD;
LAMINATE: TO BE SOLID COLOR HPL WITH MATCHING TP EDGE; PROVIDE PRICING TO SELECT FROM MANUFACTURER'S FULL RANGE OF WOODGRAIN OPTIONS.

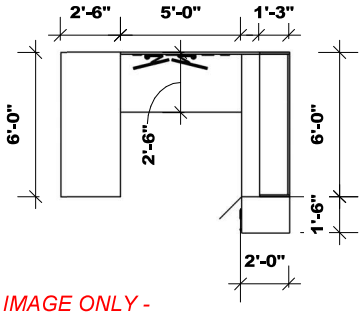
SPECIAL INSTRUCTIONS

WIRE MANAGEMENT: PROVIDE (1) QTY 48"L HUMANSCALE NEATTECH CABLE MANAGEMENT BASKET IN MESH, PINSTRIPE WHITE WITH GRAY TRIM, & (1) ZIPPERED WIRE MANAGEMENT SLEEVE. ITEMS INCLUDED IN OFFICE BUT PRICED SEPARATELY INCLUDE: (2) AC04 MONITOR ARMS, (1) CH03 TASK CHAIR

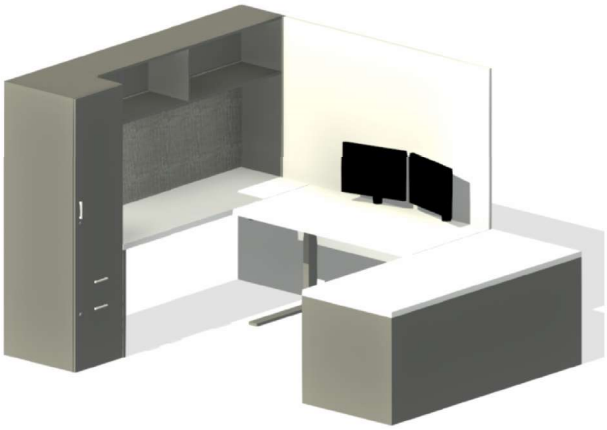
TOTAL QUANTITY	

DEALERSHIP RESPONSIBLE FOR VERIFYING PLAN QUANTITIES

PLAN REPRESENTATION



REFERENCE IMAGE ONLY -
MAY NOT MATCH EXACT SPECIFICATION



PROJECT NO: 24317.000

Furniture Specifications
FURN-WS01
PACKAGE: OPEN LINE

RATIO

HEARTLAND BIOWORKS HQ
ISSUED FOR BID
1200 Indiana Avenue, Indianapolis, IN 46202

ITEM CODE: WS02

ISSUE DATE: 11/02/2026
REVISION DATE:

SPECIFICATIONS

MANUFACTURER	SYSTEMS
ITEM CODE	WS02
ITEM NAME	WORKSTATION- PRIVATE OFFICE W/O COLUMN

DESCRIPTION

REFER TO PROJECT MANUAL- SECTION 12500 CONTRACT FURNITURE FOR ADDITIONAL REQUIREMENTS
72"W x 30"D x 72"L x 24"D L-SHAPE ELECTRIC HEIGHT ADJUSTABLE DESK WITH CURVED INTERIOR CORNER, WATERFALL HPL END PANEL, CORNER POST LEG, AND T-LEG.
INCLUDE +/- 9"H FULL LENGTH MODESTY PANEL, SET BACK WITH WIRE MANAGEMENT GAP;
INCLUDE (1) QTY CONTINUOUS 72"L x 12"D HPL SHELF WITH 72"L x 12"H VERTICAL HPL PANEL ABOVE;
STORAGE: INCLUDE (1) 18"W x 24"D x 84"H HPL WARDROBE WITH BAR PULLS, BAR AND HOOK ON THE INTERIOR, AND BOX/FILE DRAWER ON BOTTOM.
TACK/ACOUSTIC BOARD TO BE +/- 72"W x 42"H SEAMLESS SINGLE FABRIC WRAPPED PANEL, TOP MOUNTED AT 72"AFF; FABRIC TO BE PRICED AS COM AT $45 PER SQUARE YARD;
LAMINATE: TO BE WOODGRAIN HPL WITH MATCHING TP EDGE; PROVIDE PRICING TO SELECT FROM MANUFACTURER'S FULL RANGE OF WOODGRAIN OPTIONS.
HORIZONTAL WIRE MANAGEMENT: PROVIDE (1) QTY 48"L HUMANSCALE NEATTECH CABLE MANAGEMENT BASKET IN MES, PINSTRIPS WHITE WITH GRAY TRIM.
VERTICAL WIRE MANAGEMENT: PROVIDE (1) ZIPPERED WIRE MANAGEMENT SLEEVE;

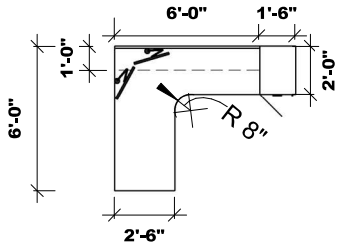
SPECIAL INSTRUCTIONS

ITEMS INCLUDED IN OFFICE BUT PRICED SEPARATELY INCLUDE: (2) AC04 MONITOR ARMS, (1) CH03 TASK CHAIR.

TOTAL QUANTITY	

DEALERSHIP RESPONSIBLE FOR VERIFYING PLAN QUANTITIES

PLAN REPRESENTATION



REFERENCE IMAGE ONLY -
MAY NOT MATCH EXACT SPECIFICATION

PROJECT NO: 24317.000

Furniture Specifications
FURN-WS02
PACKAGE: OPEN LINE

RATIO

HEARTLAND BIOWORKS HQ
ISSUED FOR BID
1200 Indiana Avenue, Indianapolis, IN 46202

ITEM CODE: WS03

ISSUE DATE: **11/02/2026**
REVISION DATE:

SPECIFICATIONS

MANUFACTURER	SYSTEMS
ITEM CODE	WS03
ITEM NAME	WORKSTATION- PRIVATE OFFICE W/COLUMN

DESCRIPTION

WORKSTATION- PRIVATE OFFICE W/COLUMN
REFER TO PROJECT MANUAL- SECTION 12500 CONTRACT FURNITURE FOR ADDITIONAL REQUIREMENTS
72"W x 30"D x 60"L x 24"D L-SHAPE ELECTRIC HEIGHT ADJUSTABLE DESK WITH CURVED INTERIOR CORNER, WATERFALL HPL END PANEL, CORNER POST LEG, AND T-LEG.
INCLUDE +/-9"H FULL LENGTH MODESTY PANEL, SET BACK WITH WIRE MANAGEMENT GAP;
INCLUDE (1) QTY CONTINUOUS 60"L x 12"D HPL SHELF WITH 60"L x 12"H VERTICAL HPL PANEL ABOVE;
STORAGE; INCLUDE (1) QTY 18"W x 24"D x 842"H HPL WARDROBE WITH BAR PULLS, BAR AND HOOK ON THE INTERIOR, AND BOX/FILE DRAWER ON BOTTOM.
TACK/ACOUSTIC BOARD TO BE +/-60"W x 42"H SEAMLESS SINGLE FABRIC WRAPPED PANEL, TOP MOUNTED AT 72"AFF; FABRIC TO BE PRICED AS COM AT $45 PER SQUARE YARD;
LAMINATE: TO BE WOODGRAIN HPL WITH MATCHING TP EDGE; PROVIDE PRICING TO SELECT FROM MANUFACTURER'S FULL RANGE OF WOODGRAIN OPTIONS.
HORIZONTAL WIRE MANAGEMENT: PROVIDE (1) QTY 48"L HUMANSCALE NEATTECH CABLE MANAGEMENT BASKET IN MESH, PINSTRIP WHITE WITH GRAY TRIM.
VERTICAL WIRE MANAGMENET: PROVIDE (1) ZIPPERED WIRE MANAGEMENT SLEEVE.

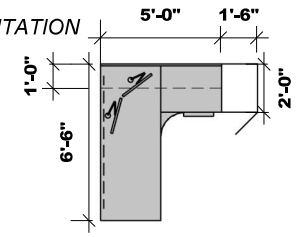
SPECIAL INSTRUCTIONS

ITEMS INCLUDED IN OFFICE BUT PRICED SEPARATELY INCLUDE: (2) AC04 MONITOR ARMS, (1) CH03 TASK CHAIR.

TOTAL QUANTITY	

DEALERSHIP RESPONSIBLE FOR VERIFYING PLAN QUANTITIES

PLAN REPRESENTATION



REFERENCE IMAGE ONLY -
MAY NOT MATCH EXACT SPECIFICATION

PROJECT NO: 24317.000

Furniture Specifications
FURN-WS03
PACKAGE: OPEN LINE

RATIO

HEARTLAND BIOWORKS HQ
ISSUED FOR BID
1200 Indiana Avenue, Indianapolis, IN 46202

ITEM CODE: WS04

ISSUE DATE: 11/02/2026
REVISION DATE:

SPECIFICATIONS

MANUFACTURER	SYSTEMS
ITEM CODE	WS04
ITEM NAME	WORKSTATION-FLEX OFFICE

DESCRIPTION

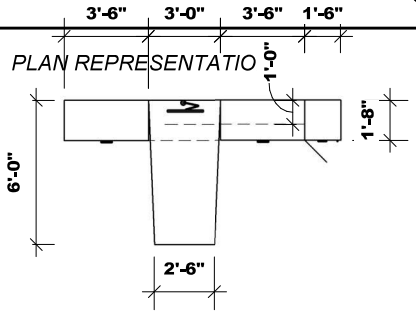
WORKSTATION-FLEX PRIVATE OFFICE
REFER TO PROJECT MANUAL-SECTION 12500 CONTRACT FURNITURE FOR ADDITIONAL REQUIREMENTS
78"L x 30-36"D FIXED DESK WITH CUSTOM TAPERED TRAPEZOID SHAPE WORKSURFACE WITH SINGULAR POST LEG ON ONE END AND INTEGRATED LEG ON THE OTHER END;
NO MODESTY PANEL;
INCLUDE (1) QTY 18"W x 18"D x 84"H HPL WARDROBE WITH BAR PULLS, BAR AND HOOK ON THE INTERIOR, AND BOX/FILE DRAWER ON BOTTOM.
INCLUDE (2) QTY HPL 36"W x 20"D x 21"H LATERAL BOX/FILE DRAWER;
INCLUDE (1) QTY HPL 36"W x 20"D x 21"H OPEN BOOK SHELF
LAMINATE: TO BE WOODGRAIN HPL WITH MATCHING TP EDGE; PROVIDE PRICING TO SELECT FROM MANUFACTURER'S FULL RANGE OF WOODGRAIN OPTIONS.
HORIZONTAL WIRE MANAGEMENT: PROVIDE (1) QTY 48"L HUMANSCALE NEATTECH CABLE MANAGEMENT BASKET IN MESH, PINSTRIPE WHITE WITH GRAY TRIM.
VERTICAL WIRE MANAGEMENT: PROVIDE (1) ZIPPERED WIRE MANAGEMENT SLEEVE.

SPECIAL INSTRUCTIONS

ITEMS INCLUDED IN OFFICE BUT PRICED SEPARATELY INCLUDE: (1) ACO4 MONITOR ARM, (1) QTY CH02 TASK CHAIR.

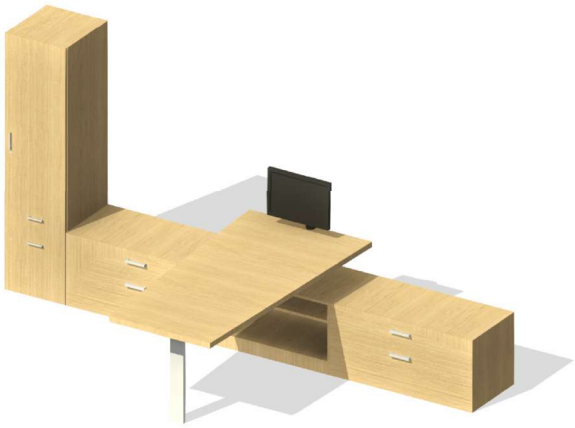
TOTAL QUANTITY	

DEALERSHIP RESPONSIBLE FOR VERIFYING PLAN QUANTITIES



PLAN REPRESENTATIO

REFERENCE IMAGE ONLY -
MAY NOT MATCH EXACT SPECIFICATION



RATIO

HEARTLAND BIOWORKS HQ
ISSUED FOR BID
1200 Indiana Avenue, Indianapolis, IN 46202

ITEM CODE: WS05

ISSUE DATE: **11/02/2026**
REVISION DATE:

SPECIFICATIONS

MANUFACTURER	SYSTEMS
ITEM CODE	WS05
ITEM NAME	WORKSTATION- OPEN OFFICE

DESCRIPTION

WORKSTATION- OPEN OFFICE
REFER TO PROJECT MANUAL- SECTION 12500 CONTRACT FURNITURE FOR ADDITIONAL REQUIREMENTS
INCLUDE ALL FEATURES OF (4) COMPLETE DESKS
28-30"W x 58-60"D RECTANGULAR HPL ELECTRIC HEIGHT ADJUSTABLE DESK WITH EXTENDED HEIGHT RANGE AND MATCHING TP EDGE;
PROVIDE (1) QTY 36"L x 24"W x 24"H TACKABLE ACOUSTIC CURVED L SCREEN MOUNTED TO WORKSURFACE; SCREEN TO EXTEND 12" ABOVE WORKSURFACE; FABRIC TO BE PRICED AS A COM AT $45 PER YARD;
PROVIDE (1) QTY 12"W x 30"D x 42"H STEEL COAT TOWER WITH SWING DOOR AND BAR PULL; ROD AND HOOK TO BE PROVIDED ON INTERIOR; (NO VISIBLE EXTERIOR SEAMS)
HORIZONTAL WIRE MANAGEMENT: PROVIDE (1) QTY HUMANSCALE NEATTECH CABLE MANGEMENT BASKET 38"L MESH, PINSTRIPE WHITE WITH GRAY TRIM.
VERTICAL WIRE MANAGEMENT: PROVIDE (1) ZIPPERED WIRE MANAGEMENT SLEEVE.

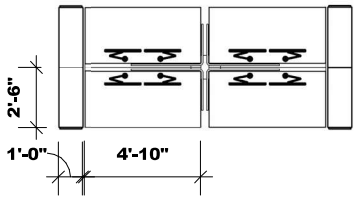
SPECIAL INSTRUCTIONS

ITEMS INCLUDED IN 4-PACK BUT PRICED SEPARATELY: (2) QTY AC04 MONITOR ARMS AND (1) QTY CH09 TASK CHAIR

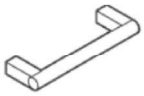
TOTAL QUANTITY	

DEALERSHIP RESPONSIBLE FOR VERIFYING PLAN QUANTITIES

PLAN REPRESENTATION



REFERENCE IMAGE ONLY -
MAY NOT MATCH EXACT SPECIFICATION

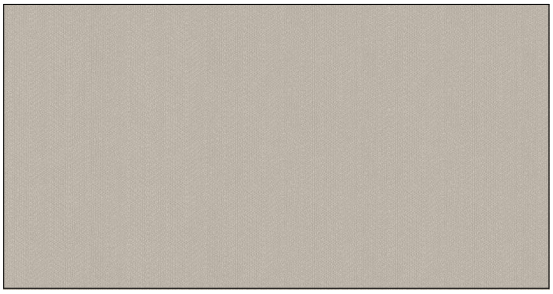
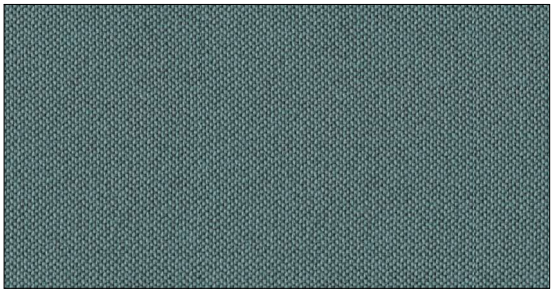


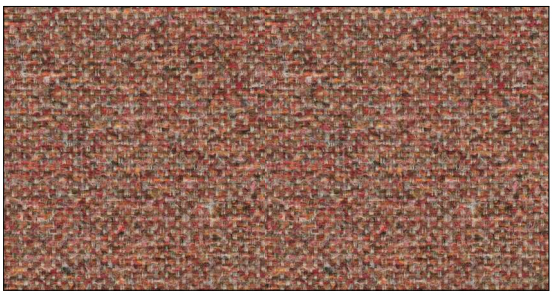
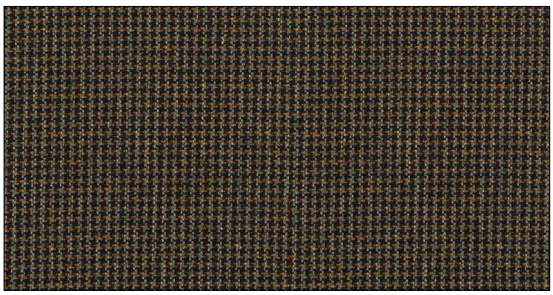
RATIO

HEARTLAND BIOWORKS HQ
ISSUED FOR BID
1200 Indiana Avenue, Indianapolis, IN 46202

ISSUE DATE: **11/02/2026**
REVISION DATE:

SPECIFICATIONS

FABRIC	A	FABRIC	B
MANUFACTURER	MOMENTUM	MANUFACTURER	DESIGNTEX
NAME/COLLECTION	BANYAN CHEVRON CV	NAME/COLLECTION	ROCKET
COLOR/NUMBER	WHITE OAK	COLOR/NUMBER	DARK TURQUOISE, 2693-508
WIDTH/REPEAT	1/4"V X 2 1/4" H, 54" W	WIDTH/REPEAT	54"
REMARK	RAILROAD: NO	REMARK	--
REFERENCE IMAGE ONLY 		*REFERENCE IMAGE ONLY* 	

FABRIC	C	FABRIC	D
MANUFACTURER	ARCHITEX	MANUFACTURER	BRAYTON
NAME/COLLECTION	PUREFLEECE	NAME/COLLECTION	ANCHOR
COLOR/NUMBER	BRICK	COLOR/NUMBER	PIKE PLACE AC02
WIDTH/REPEAT	55"	WIDTH/REPEAT	54"
REMARK	--	REMARK	--
REFERENCE IMAGE ONLY 		*REFERENCE IMAGE ONLY* 	

PROJECT NO: 24317.000

SPECIFICATIONS

FABRIC	E	FABRIC	F
MANUFACTURER	MAHARAM	MANUFACTURER	CARNEGIE
NAME/COLLECTION	LARIAT	NAME/COLLECTION	PARALLELOGRAM
COLOR/NUMBER	440401-002 RUSSET	COLOR/NUMBER	6570 - 5
WIDTH/REPEAT	54" W	WIDTH/REPEAT	14 1/4" L X 14" W, 56" W
REMARK		REMARK	
REFERENCE IMAGE ONLY		*REFERENCE IMAGE ONLY*	
FABRIC	G	FABRIC	H
MANUFACTURER	ANZEA	MANUFACTURER	CF STINSON
NAME/COLLECTION	GHOST PLAID	NAME/COLLECTION	ARCHER
COLOR/NUMBER	TONAL 2977-03	COLOR/NUMBER	RIPTIDE 66759
WIDTH/REPEAT	54" W	WIDTH/REPEAT	54"
REMARK		REMARK	
REFERENCE IMAGE ONLY		*REFERENCE IMAGE ONLY*